AGENDA

REGULAR CITY COMMISSION MEETING
MONDAY, MAY 4, 2026, AT 6:00 P.M.

CITY OF ST. AUGUSTINE BEACH, 2200 A1A South, St. Augustine Beach, FL 32080

NOTICE TO THE PUBLIC

THE CITY COMMISSION HAS ADOPTED THE FOLLOWING PROCEDURE: PERSONS WISHING TO SPEAK ABOUT TOPICS THAT ARE ON THE AGENDA MUST FILL OUT A SPEAKER CARD IN ADVANCE AND GIVE IT TO THE RECORDING SECRETARY. THE CARDS ARE AVAILABLE AT THE BACK OF THE MEETING ROOM. THIS PROCEDURE DOES NOT APPLY TO PERSONS WHO WANT TO SPEAK TO THE COMMISSION UNDER "PUBLIC COMMENTS."

RULES OF CIVILITY FOR PUBLIC PARTICIPATION

1. The goal of Commission meetings is to accomplish the public's business in an environment that encourages fair discussion and exchange of ideas without fear of personal attacks.

2. Anger, rudeness, ridicule, impatience, and lack of respect for others are unacceptable behaviors. Demonstrations to support or oppose a speaker or idea, such as clapping, cheering, booing, hissing, or the use of intimidating body language are not permitted.

3. When persons refuse to abide by reasonable rules of civility and decorum or ignore repeated requests by the Mayor to finish their remarks within the time limit adopted by the City Commission, and/or who make threats of physical violence shall be removed from the meeting room by law enforcement officers, either at the Mayor's request or by an affirmative vote of a majority of the sitting Commissioners.

"Politeness costs so little." – ABRAHAM LINCOLN

I. CALL TO ORDER

II. PLEDGE OF ALLEGIANCE

III. ROLL CALL

IV. APPROVAL OF MINUTES OF THE APRIL 6, 2026, REGULAR COMMISSION MEETING

V. ADDITIONS OR DELETIONS OF THE AGENDA

VI. CHANGES TO THE ORDER OF TOPICS ON THE AGENDA

VII. PRESENTATIONS

A. Report by Mr. Reuben Franklin, St. Augustine Assistant City Manager, Regarding the STAR Circulator for the Nights of Lights Event This Year

VIII. PUBLIC COMMENTS

IX. COMMISSIONER COMMENTS

X. PUBLIC HEARINGS

1. Conditional Use Permit to Construct a Residence in a Commercial Land Use District at 610 A1A Beach Boulevard (Presenter: Patrick Doty, City Planner)
2. Ordinance 26-05, Final Reading, to Amend the City Charter to Adopt Language Regarding Term Limits for City Commissioners (Presenter: John Steinmetz, City Attorney)

XI. CONSENT

(Note: Consent items can be approved by one motion and vote unless a Commissioner wants to remove an item for discussion and separate vote)

3. Budget Resolution 26-07, to Allocate Reserves for Prior Fiscal Year Carryover Expenditures Paid in the Current Fiscal Year
4. Budget Resolution 26-08, to Increase the Fiscal Year 2026 Stormwater Fund Account by $150,000 to Modernize the Linda Mar Subdivision Stormwater Pump Station

XII. OLD BUSINESS

5. Opening of 4th Street between A1A Beach Boulevard and 2nd Avenue: Report on Whether Adjacent Property Owners Agree to Pay Their Share of the Costs (Presenter: Jason Sparks, City Engineer)
6. Regulating the Operation of E-Bikes in the City: Review of Provisions for an Ordinance (Presenter: John Steinmetz, City Attorney)

XIII. NEW BUSINESS

7. Review of Long-Range Financial Report and Related Matters (Presenter: Patty Douylliez, Finance Director)

XIV. STAFF COMMENTS

XV. ADJOURNMENT

NOTICES TO THE PUBLIC

1. **ART AND PARK IN THE PARK**. On Sunday, May 3, 2026, the City will hold its springtime art show and dog adoption event in Lakeside Park south of the police station from 11:00 a.m. to 4:00 p.m.
2. **SUSTAINABILITY AND ENVIRONMENTAL PLANNING ADVISORY COMMITTEE**. It will hold its monthly meeting on Thursday, May 14, 2026, at 6:00 p.m. in the Commission meeting room at City Hall.
3. **COMPREHENSIVE PLANNING AND ZONING BOARD**. It will hold its monthly meeting on Thursday, May 19, 2026, at 6:00 p.m. in the Commission meeting room at City Hall. Topics on the agenda may include: Request for conditional use permit for outside seating at First Watch restaurant in the Publix Shopping Plaza.
4. **HOLIDAY**. It is Memorial Day, Monday, May 25, 2026. CITY OFFICES CLOSED. Monday's pickup of household waste and recyclables will be done on TUESDAY, MAY 26, 2026, along with Tuesday's pickup.
5. **CHANGE OF DATE FOR JUNE COMMISSION MEETING**. The Commission's regular meeting in June will be held on Tuesday, June 9, 2026, starting at 6:00 p.m.

NOTE:

The agenda material containing background information for this meeting is available on the City's website in pdf format or on a CD, for a $5 fee, upon request at the City Manager's office.

NOTICES: In accordance with Florida Statute 286.0105: "If any person decides to appeal any decision made by the City Commission with respect to any matter considered at this scheduled meeting or hearing, the person will need a record of the proceedings, and for such purpose the person may need to ensure that a verbatim record of the proceedings is made, which record includes the testimony and evidence upon which the appeal is to be based.

In accordance with the Americans with Disabilities act, persons needing a special accommodation to participate in this proceeding should contact the City Manager's Office not later than seven days prior to the proceeding at the address provided, or telephone 904-471-2122, or email sabadmin@cityofsab.org.

MINUTES

REGULAR CITY COMMISSION MEETING
MONDAY, APRIL 6, 2026, AT 6:00 P.M.

CITY OF ST. AUGUSTINE BEACH, 2200 A1A South, St. Augustine Beach, FL 32080

I. CALL TO ORDER

Mayor Sweeny called the meeting to order at 6:00 p.m.

II. PLEDGE OF ALLEGIANCE

The Commission recited the Pledge of Allegiance.

III. ROLL CALL

Present: Mayor Beth Sweeny, Vice Mayor Virginia Morgan, and Commissioners Undine C. George, Donald Samora and Dylan Rumrell.

Also Present: City Manager Max Royle, Police Chief Daniel Carswell, City Attorney John Steinmetz, Finance Director Patty Douylliez, City Clerk Dariana Fitzgerald, Building Official Brian Law, Public Works Director Russell Adams, and Engineering Director Jason Sparks.

IV. APPROVAL OF MINUTES OF THE MARCH 2, 2026, REGULAR COMMISSION MEETING

Motion: To approve the minutes of the March 2, 2026, regular Commission meeting. **Moved by** Commissioner Rumrell, **Seconded by** Commissioner Samora. Motion passed unanimously.

V. ADDITIONS OR DELETIONS OF THE AGENDA

There were none.

VI. CHANGES TO THE ORDER OF TOPICS ON THE AGENDA

There were none.

VII. PRESENTATIONS

A. Law Enforcement Commendation Award to Officer Tyler Gill by the Sons of the American Revolution

Paul Sapp, Awards Chairman of the St. Augustine Chapter of the Sons of the American Revolution (SAR), addressed the City Commission on behalf of the organization, which is dedicated to historical, educational, and patriotic activities honoring the nation's founders. He noted SAR's involvement in the placement of Liberty Trees as part of America 250 commemorative efforts, including a Liberty Tree installed last year at the Oldest House Museum in downtown St. Augustine and an upcoming installation by the Daughters of the American Revolution nearby. As part of the presentation, SAR recognized a local law enforcement officer for exceptional service.

The Sons of the American Revolution formally presented Officer Tyler Gill of the St. Augustine Beach Police Department with the 2026 SAR Officer of the Year Award. Officer Gill was commended for responding to more than 700 calls for service in the prior year, conducting extensive traffic enforcement, and making numerous arrests, including significant narcotics trafficking cases and violent offender apprehensions. He was also recognized for serving in multiple specialized roles within the department, including evidence specialist, honor guard member, field training officer, special response team member, and newly appointed K-9 handler following extensive certification training. Officer Gill's community involvement and strong reputation among colleagues and residents were highlighted, and the Commission thanked SAR for the recognition and Officer Gill for his exemplary service.

B. Proclamations:

1) to Declare April 2026 as Sexual Assault Awareness Month (Presenters: Representatives of the Betty Griffin Center)

City Clerk Fitzgerald read the proclamation in full.

Allison Hashaw, Sexual Assault Program Director, Betty Griffin Center, thanked the Commission for the recognition and accepted the proclamation.

2) to Declare April 2026 as Water Conservation Month (Presenter: Representative from the St. Johns River Water Management District)

City Clerk Fitzgerald read the proclamation in full.

Gretchen Smith, Water Conservation Coordinator, St. Johns River Water Management District, accepted the proclamation and emphasized this year's focus on efficient outdoor irrigation practices and the importance of properly functioning rain shutoff devices. She noted that ensuring these systems are installed and operating correctly helps reduce water waste and allows the community to make better use of recent rainfall. Ms. Smith discussed current drought conditions affecting Florida and stressed that water conservation is a shared community responsibility. She encouraged residents to take simple actions such as checking for leaks, reducing irrigation, shortening shower times, and adopting everyday conservation habits, noting educational outreach efforts including the distribution of five-minute shower timers.

During the discussion, a Commissioner asked for clarification regarding current water restrictions. Ms. Smith confirmed that Stage I water restrictions are in effect, limiting lawn irrigation to one day per week based on address schedules. It was noted that the restrictions are being closely monitored and will be adjusted as conditions improve, with rainfall being the primary factor for easing limitations. The presentation concluded with appreciation for community participation in conservation efforts and continued encouragement for responsible water use during the ongoing drought.

3) to Declare Friday, April 17, 2026, as Arbor Day in the City (Presenter: Dariana Fitzgerald, City Clerk)

City Clerk Fitzgerald highlighted the details of the upcoming Arbor Day event on April 17 from 5:30-7:30 p.m. at City Hall and read the proclamation in full.

Mr. Todd Grant, Vice Chair, SEPAC, noted that there would be a raffle for a new compost bin as well as the tree giveaway.

C. Applicants to Serve on the Code Enforcement Board (Presenter: Max Royle, City Manager)

1) Interview of Mr. Jim LeClare for Position of Senior Alternate

Jim LeClare, 115 Whispering Oaks Circle, St. Augustine Beach, FL, summarized his background and expertise from his application.

Motion: To appoint James LeClare to the Position of Senior Alternate on the Code Enforcement Board. **Moved by** Commissioner George, **Seconded by** Commissioner Rumrell. Motion passed unanimously.

2) Interview of Ms. Mary Celeste Burns for Position of Junior Alternate

Mary Celeste Burns, 394 Ocean Forest Drive, St. Augustine Beach, FL, summarized her background and expertise from her application.

Motion: To appoint Mary Celeste Burns to the Position of Junior Alternate on the Code Enforcement Board. **Moved by** Commissioner George, **Seconded by** Commissioner Rumrell. Motion passed unanimously.

D. Audit Report for Fiscal Year 2025 (Presenter: Representative of Auditing Firm, James Moore and Associates)

Spencer Machuga, CPA, Audit Supervisor, James Moore & Associates, presented the City's financial statement audit for the fiscal year ending September 30, 2025, and thanked City staff for their assistance during the audit process. The auditors reported an unmodified opinion, indicating the financial statements were presented fairly in all material respects. There were no findings or modifications related to internal controls, and a prior material weakness was confirmed as corrected. One recommendation in the Auditor General report was noted as resolved, and there were no comments on the Florida Investment Statute report.

The presentation highlighted a steady increase in the City's general fund balance over the past decade, with reserves remaining above policy thresholds. Revenues and expenses increased primarily due to the establishment of the stormwater fund. New debt in FY 2025 was limited to a small financing arrangement for police body cameras, along with a related subscription-based IT agreement. Commissioners asked questions regarding revenue growth, reserve levels, and audit-identified risks, which were clarified by the auditors as standard considerations rather than findings.

Motion: To approve the audit report for fiscal year 2025. **Moved by** Commissioner Rumrell. **Seconded by** Commissioner Samora. Motion passed unanimously.

VIII. PUBLIC COMMENTS

Dave Hinton, 20 Dondanville Road, St. Augustine, FL, SAB Civic Association, expressed concerns about development plans affecting the large oak tree on 7th Street and emphasized its significance to St. Augustine Beach residents. It was noted that there had been prior understanding that the area would remain preserved, and the speaker presented informational materials along with a petition containing over 400 signatures in support of protecting the tree [Exhibit A].

IX. COMMISSIONER COMMENTS

Commissioner George asked whether the City actively enforces current water use and irrigation restrictions. Staff responded that enforcement is challenging and primarily handled through education and notification, with follow-up occurring if repeated violations are observed. Commissioner George expressed support for the educational approach to compliance. She also noted there were no additional substantive updates from recent meetings and thanked the Commission for their understanding regarding her absence at the prior meeting due to a family matter. An additional comment was made advising awareness of broader external issues that could impact local conditions.

Vice Mayor Morgan commented on recent emails and correspondence received regarding the SUN Trail project. She clarified that the project is not managed by the City and spans a larger regional area, and therefore it is not a project the City can stop. She noted that the project is currently in the design phase and that this is an appropriate time for the City and residents to provide constructive feedback, particularly related to safety, line-of-sight, and design considerations. She encouraged the public to direct questions and concerns to the designated County representative and emphasized the importance of offering specific improvement suggestions rather than general opposition. She stated that the project is intended to enhance infrastructure and safety.

Mayor Sweeny reported that the Florida Legislature has not yet finalized the state budget, with completion anticipated later in the month. She noted that the City will continue advocating for its priorities and expressed encouragement that three City projects are currently included in the proposed budget. The Mayor thanked City Manager Royle, Public Works Director Adams, and other involved City Staff in assisting with the issues reported by residents at the 15th Street intersection.

Commissioner Rumrell reminded residents that increased traffic is expected during beach season and encouraged beachgoers to exercise caution when entering the ocean due to frequent rip currents and red flag conditions. He emphasized the importance of swimming safely and acknowledged ongoing public safety and conservation efforts.

Commissioner Samora spoke about maintaining constructive communication with neighbors, residents, and local businesses. He also referenced upcoming County-level discussions and asked whether the City could assist the County Chair by providing feedback or support related to issues being raised.

Clay Murphy, County Commission Chair, addressed the Commission regarding the SUN Trail project, noting that it has been in planning for approximately 20 years and involves five counties. He stated that the project alignment and safety measures, including entrance signage and boulevard routing, were determined through extensive safety studies and are considered the safest approach. Chair Murphy acknowledged receiving significant public correspondence and emphasized that while the project will bring change, it remains open to feedback and constructive suggestions. He expressed confidence that the project will be viewed positively over time and encouraged continued communication with County and state representatives. Chair Murphy thanked the Commission for its engagement and support.

X. PUBLIC HEARINGS

1. Ordinance 26-05, Second Reading, to Amend the City Charter to Adopt Language Regarding Term Limits for City Commissioners (Presenter: John Steinmetz, City Attorney)

   City Attorney Steinmetz provided an updated draft of Ordinance 2026-05 to the Commission [Exhibit B] and reviewed the Ordinance language, focusing primarily on effective date provisions and ballot language requirements.

   It was noted that the proposed ballot summary was at or near the statutory word limit, and Commissioners discussed whether minor clarifying language regarding the amendment's effective date could be included without exceeding that limit. The City Attorney advised that the Ordinance, as amended, was legally sufficient and met all procedural requirements, emphasizing that the voters would ultimately decide the proposal.

   Commissioners discussed the application of the term limits, including how consecutive terms would be calculated and how the amendment would affect current and future Commissioners.

Motion: To amend the Ordinance per the City Attorney's suggestions. **Moved by** Mayor Sweeny. **Seconded by** Vice Mayor Morgan. Motion passed unanimously.

Mayor Sweeny opened public comment.

Susan Brady, 121 14th Street, asked what happens when the Commissioners reach their limit, but no one else chooses to run for the position.

Mayor Sweeny closed public comment.

Commissioners clarified that the Ordinance did not advocate for or against term limits, but merely placed the question before the electorate for consideration. City Manager Royle explained that any vacancy would be filled by appointment until the next general election, at which time the seat would be up for election.

City Attorney Steinmetz read the preamble.

Motion: To approve Ordinance 26-05 as amended. **Move by** Commissioner Rumrell. **Seconded by** Vice Mayor Morgan. Motion passed unanimously.

XI. CONSENT

(Note: Consent items can be approved by one motion and vote unless a Commissioner wants to remove an item for discussion and separate vote)

2. Resolution 26-01, to Declare Items of City Property as Surplus and Authorize Their Disposal
3. Budget Resolution 26-05, to Appropriate $5,000 from Event Vendor Fees
4. Budget Resolution 26-06, to Increase Revenue and Expenditures for Two Grants Received by the Police Department

Motion: To approve the Consent Agenda. **Moved by** Commissioner Rumrell, **Seconded by** Commissioner George. Motion passed unanimously.

XII. OLD BUSINESS

5. Former Hotel/City Hall (Presenter: Jeff Potts. Executive Director, St. Johns Cultural Council)

   a) Review of Revised Agreement to Extend Lease to October 1, 2029

   Mr. Potts provided an overview of the facility's ongoing maintenance needs, recent operational challenges, and planned improvements, including ADA accessibility to the second floor and potential build-out of additional studio space. It was noted that while initial improvements would address only a portion of the second floor, full completion would require significant future investment and long-term sustainability planning.

   Commissioners and the Cultural Council discussed the proposed lease term, with general consensus forming around a three-year lease with an option to return to the Commission for consideration of an extension, rather than an automatic long-term renewal. This approach was supported as a way to allow progress on renovations while giving both parties an opportunity to reassess financial sustainability and building use before extending the agreement. Staff confirmed that renewal language could be structured to require Commission approval following the initial term.

   Discussion also addressed lease provisions related to subletting and facility use. Clarification was provided that short-term rentals or programming activities could be managed by the Cultural Council without requiring Commission approval, while long-term subleases would continue to require City consent, consistent with prior agreements. Commissioners expressed

general comfort with this framework, provided the City retained appropriate oversight for long-term tenancy arrangements.

Mayor Sweeny opened public comment.

Susan Brady, 121 14th Street, St. Augustine Beach, FL, requested a formal lease for The Art Studio with the Cultural Council or the City and emphasized the importance of lease stability to maintain programming and public access.

Mayor Sweeny closed public comment.

The Cultural Council affirmed its commitment to keeping existing tenants in place during the initial lease term and throughout planned renovations, with future arrangements to be evaluated as redevelopment progresses.

The Commission provided direction to staff and the City Attorney to finalize a clean version of the lease agreement reflecting the discussed terms, including the renewal option, and to return the agreement for formal approval at a subsequent meeting.

b) Consideration of Appointing a Committee to Develop Long Range Plan for Use of the Building and How to Pay Maintenance/Operating Costs

The Commission discussed the potential formation of a committee to provide recommendations regarding the future use and development of the building. Commissioners reviewed a proposal outlining potential committee composition, including representation from current tenants, the Cultural Council, City staff, and community or business stakeholders. Discussion focused on whether the committee should be a formal City committee subject to Sunshine Law requirements or an advisory group led by the Cultural Council with City participation.

Commissioners expressed differing views on committee membership, including whether members should be limited to City residents or expanded to include individuals with relevant experience outside the City, such as representatives from regional cultural organizations or the business community. Concerns were raised regarding the administrative and legal requirements associated with appointing a formal City committee and the potential limitations Sunshine Law could place on participation by current tenants and Cultural Council members.

After discussion, consensus emerged in support of allowing the Cultural Council to lead the advisory effort, with meaningful involvement from City representatives, rather than creating a formal City committee. This approach was viewed as a way to ensure timely progress, maintain flexibility, and avoid procedural constraints, while still preserving City oversight of a City-owned asset. Commissioners emphasized that recommendations should be financially feasible and aligned with the long-term sustainability of the building.

The Commission indicated support for City representation at advisory meetings, with a Commissioner volunteering to stay engaged in discussions. Commissioner George volunteered for the position, noting her long involvement and history with the building.

Staff and the Cultural Council were encouraged to continue developing the advisory structure, incorporate additional perspectives as appropriate, and provide updates to the Commission as planning for the second-floor improvements and future use of the facility progresses.

6. 4th Street between A1A Beach Boulevard and 2nd Avenue: Report on Constructing It and Method to Pay Cost for Paving and Infrastructure (Presenter: Jason Sparks, City Engineer)

Engineering Director Sparks provided a packet of additional information [Exhibit C] on the 4th Street roadway and infrastructure improvement project. He reported that, following prior Commission approval of funding for design and permitting, plans for utilities, sidewalks, and associated roadway improvements are now 100% complete, along with updated construction cost estimates. The project scope includes improvements serving multiple parcels along the corridor, with the number of affected parcels reduced from the original concept.

He discussed the anticipated construction costs, special assessment considerations, and cost-sharing among benefiting property owners. Commissioners reviewed prior experiences with similar projects, noting that final assessments are typically based on actual bid costs and may increase if construction costs rise. Questions were raised regarding the response status of impacted property owners and whether all had formally indicated support or opposition to the project. Engineering Director Sparks confirmed that outreach efforts had occurred and indicated they would continue attempting to engage property owners who had not yet responded.

Mayor Sweeny opened public comment.

Kevin Vahey, 40 Jessica Lynn Place, St. Augustine, FL, noted that he and his wife own both of the south side parcels and object to the road. He also feels that since they own two parcels, they should count as two votes.

Mayor Sweeny closed public comment.

Commissioners discussed the importance of fairness, transparency, and continued communication with property owners before proceeding further. Direction was given for staff to continue outreach to remaining parcel owners, provide additional information as needed, and return to the Commission with further updates before any final action is taken regarding project advancement or initiation of the assessment process.

XIII. NEW BUSINESS

7. Regulating E-Bikes (Presenter: John Steinmetz, City Attorney)

City Attorney Steinmetz provided an overview regarding the City's authority to regulate the use of electric bicycles under Florida law. He explained that while state statutes classify e-bikes and establish certain traffic standards, municipalities retain home-rule authority to regulate where e-bikes may operate within their jurisdiction, including sidewalks, streets, beach areas, and designated corridors, and to establish civil penalties for violations.

Commissioners discussed growing safety concerns related to e-bike operation on sidewalks, particularly involving minors traveling at high speeds near pedestrians. Multiple Commissioners cited recent incidents and near-misses involving children and pedestrians, emphasizing the need to prioritize public safety. Consideration was given to potential regulatory approaches, including prohibiting e-bikes on sidewalks, reinforcing helmet requirements for riders under 16, and adopting a civil fine structure to support enforcement. Enforcement challenges were discussed, including difficulties associated with speed measurement and officer discretion, with several Commissioners expressing support for a reckless-operation standard rather than strict speed thresholds.

Significant discussion centered on the importance of regulatory consistency across jurisdictions, with Commissioners noting concerns about differing e-bike rules between the City, County, and neighboring areas. Consensus emerged favoring coordination with St. Johns County to pursue a more uniform approach countywide, potentially through a joint workshop or parallel ordinance development. Commissioners expressed interest in models adopted by other Florida cities, such as Palm Coast, that focus on prohibiting reckless operation regardless of location.

Mayor Sweeny opened public comment.

Clay Murphy, Chair, County Commission, noted a willingness for the City and County to work together to create unified regulations and noted this was something the County was discussing.

Jim LeClare, 115 Whispering Oaks Circle, St. Augustine Beach, FL, expressed concern about notification about regulations and encouraged signage at key cycling points.

Mayor Sweeny closed public comment.

The Commission directed staff to begin drafting ordinance language reflecting the discussion, including provisions related to sidewalk use, helmet requirements, and penalties, while continuing coordination efforts with the County to align regulations where feasible. Emphasis was placed on education, signage, and public outreach as key components of implementation. Staff were asked to return with draft ordinance language for future consideration.

8. Mickler Boulevard: Request to Transfer Ownership to City (Presenter: Russell Adams, Public Works Director)

Engineering Director Sparks provided a report regarding Mickler Boulevard, which functions as a major drainage conveyance for the City but is currently owned by St. Johns County. He explained that Mickler Boulevard, including the associated ditch, roadway, sidewalks, and access to the 11th Street Canal, serves as a central component of the City's stormwater system and has historically been operated and maintained by the City despite County ownership. Recent coordination with the County identified the need for additional survey and title work before any transfer of ownership or formal agreement could proceed.

Commissioners discussed options for addressing long-term operation and maintenance responsibilities, including potential transfer of the right-of-way to the City, establishment of a drainage easement, or development of an updated interlocal agreement with the County. Several Commissioners expressed concern about formally assuming ownership of additional infrastructure without corresponding cost-sharing or tax base benefits, while others noted that the City has already been maintaining the corridor and may benefit from clearer authority and reduced uncertainty moving forward. The need to clarify responsibilities for adjacent County-owned roads, sidewalks, and drainage connections was also discussed.

Public Works Director Adams noted that existing interlocal agreements with the County are outdated and do not clearly address Mickler Boulevard or current conditions. Commissioners generally agreed that further coordination with the County was necessary to explore feasible options, including cost-sharing arrangements, easements, or right-of-way transfer, before taking formal action.

Mayor Sweeny opened public comment, being none, she closed public comment.

Motion: To approve the transfer of ownership from St. Johns County to the City of County Deed Parcel Two on 11th Street and Mizell Road. **Moved by** Commissioner George, **Seconded by** Commissioner Rumrell. Motion passed unanimously.

Direction was given for staff to continue discussions with St. Johns County, evaluate available alternatives, and return to the Commission with additional information and recommendations for future consideration.

9. Florida League of Cities' E. Harris Drew Municipal Official Lifetime Achievement Award: Consideration of a Nomination (Presenter: Max Royle, City Manager)

The Commission discussed a potential nomination for the E. Harris Drew Municipal Official Lifetime Achievement Award, which recognizes outstanding public service by an elected official.

City Manager Royle noted that the nomination process requires support from at least two elected officials and formal action by the Commission. Commissioners briefly reviewed the criteria for the award and discussed the service contributions of eligible candidates.

Following discussion, the Commission decided to nominate Commissioner Rumrell in recognition of his service and commitment to the community. City Manager Royle advised that the required nomination paperwork would be completed and signed by the appropriate Commissioners, with coordination to finalize the supporting documentation for submission.

Motion: To nominate Commissioner Rumrell for the Florida League of Cities' E. Harris Drew Municipal Official Lifetime Achievement Award. **Moved by** Mayor Sweeny, **Seconded by** Commissioner Samora. Motion passed unanimously.

10. City Attorney Services Contract: Request by Vice Mayor Virginia Morgan to Discuss

The Commission held a discussion regarding the City's current City Attorney contract and potential options moving forward. It was noted that Douglas Law has represented the City since 2020, with the most recent contract renewal occurring in 2023. Commissioners discussed the importance of proactively reviewing the arrangement well ahead of the upcoming budget cycle and contract timeline in order to avoid last-minute decisions.

Several potential options were discussed, including renewing or amending the existing contract, issuing a Request for Proposals (RFP) for legal services, or exploring alternative service models such as in-house counsel or separating day-to-day legal services from specialized litigation work. Commissioners generally agreed that periodically issuing an RFP is the best practice to assess market rates and service options, but also emphasized the value of continuity, institutional knowledge, and stability during a period of ongoing projects and transitions.

Consensus emerged around maintaining the current City Attorney for day-to-day legal services in the near term while exploring the possibility of issuing an RFP for specialized or litigation-related services. Commissioners expressed a desire to carefully review contract terms, costs, and scope of services, and to consider a short-term extension to support continuity while longer-term options are evaluated. Direction was given for the City Manager to engage in further discussions and, if appropriate, return with a proposed contract extension and additional information for Commission consideration at a future meeting.

XIV. STAFF COMMENTS

City Manager Royle recounted as April Fools' prank on City Staff by Commissioner Rumrell and noted that Commissioner George had requested that the June 1st regular meeting be rescheduled. The Commission decided to hold that month's meeting on Tuesday, June 9th. He also discussed planning for an America 250th event, clarifying that the event would be modest in scale and not include a parade due to logistical constraints. He indicated that further details would be brought back to the Commission as plans develop.

Engineering Director Sparks updated to Commission on the status of several projects and noted a neighborhood meeting that will be held here regarding Oceanside Circle on April 22nd from 5:30-6:30 p.m.

Public Works Director Adams reported a significant increase in brush collection volume over the past three to four weeks, which means brush pickup has extended beyond the normal Wednesday schedule into later in the week, prompting increased service calls. He provided an update on the 15th Street area, stating that planned work was temporarily delayed due to weather and coordination needs, including vegetation management along fence lines and adjustments related

to parking and striping. He indicated that trimming and cleanup work is expected to be completed within the next two to three weeks.

Building Official Law notes several projects are moving along.

Chief Carswell noted the Police Department's recent e-bike safety course and the upcoming Cruisin' With Cops event on May 2nd, which will include safety checks and education.

Finance Director Douylliez noted that she is looking at the next budget, but isn't quite sure what the increases will be yet. She also detailed the upcoming Arbor Day and Art and Bark in the Park events on April 17th and May 3rd.

City Clerk Fitzgerald complimented Administrative Assistant Melissa Keenan for her coordination of the City's events and thanked her for all the additional work she has taken on to do so.

XV. ADJOURNMENT

Mayor Sweeny adjourned the meeting at 9:01 p.m.

_____

Beth Sweeny, Mayor

ATTEST:

_____

Dariana Fitzgerald, City Clerk

MEMORANDUM

TO: Mayor Sweeny
Vice Mayor Morgan
Commissioner Rumrell
Commissioner George
Commissioner Samora

FROM: Max Royle, City Manager mk

DATE: April 22, 2026

SUBJECT: Report by Mr. Reuben Franklin, St. Augustine Assistant Clyt Manager, Regarding the STAR Circulate for the Nights of Lights Event

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Mr. Reuben has asked to present the attached report to you.

For St. Augustine's 2025-26 Nights of Lights, the south parking lot of our City Hall was used by attendees for parking. The City Hall was stop for the STAR Circulator bus. On some evenings, especially Fridays and Saturdays, the bus would be packed.

Mr. Reuben will discuss with you the STAR Circulator for 2026-27 Nights of Lights and the possibility of providing the service throughout the year.



2025-2026
Nights of Lights

STAR CIRCULATOR REVIEW & UPDATE

City Commission Meeting
May 4, 2026

CITY OF ST AUGUSTINE
EST. 1565

Transportation and Mobility: STAR Circulator

Challenges from 2024-2025 Season

- Downtown STAR Circulator operations concluded at 5PM
- No transportation service operating to/from St. Augustine Beach

Solutions Implemented for 2025-2026 Season

- Expanded STAR Circulator service to Anastasia Island and St. Aug. Beach
- Hours of operation 5PM to midnight daily



Current Season Observations

- **Downtown STAR Circulator ridership**
  - 6,841 passenger, 2,362 passengers during peak times
  - No wait times or operational issues reported

Transportation and Mobility: STAR Circulator

Current Season Observations Continued

- **Anastasia Island STAR Circulator**
  - 16,391 total passengers, 8,203 during peak period
  - Operated 56 nights, excluding New Year's Eve
  - Initial wait time of 30 minutes with two buses operating
  - Improved wait time to 15 minutes with four buses operating
- Expanded circulator services reduced the number of vehicles driving into downtown
- Received positive feedback, interest to expand to year-round service



Future Season Recommendations

- Continue Anastasia Island STAR Circulator
- Evaluate opportunities for expansion

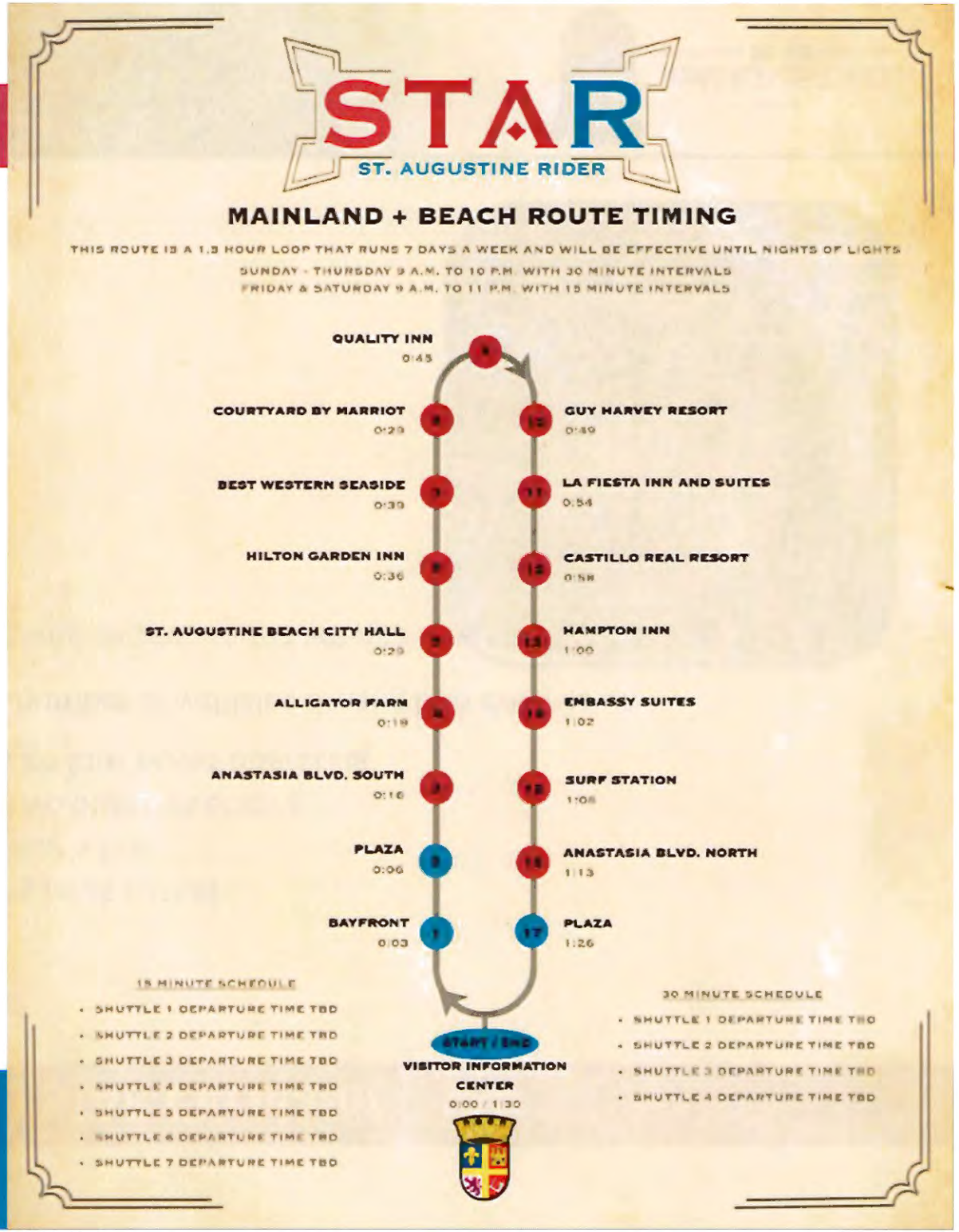
Cost of Operations

- Downtown STAR Circulator: $27,558
- Anastasia STAR Circulator Shuttle: $40,804

Draft Proposed "Year Round" Route

The full loop is approximately 1 hour and 30 minutes and is designed to account for typical traffic conditions.

At that duration, a 15-minute frequency would require seven vehicles in circulation, while a 30-minute schedule would require four. A 20-minute schedule operating seven days a week, which would provide good service while remaining more cost-effective.



Questions & Discussion

Thank You

Agenda Item # 1
Meeting Date 5-4-26

MEMORANDUM

TO: Mayor Sweeny
Vice Mayor Morgan
Commissioner Rumrell
Commissioner George
Commissioner Samora

FROM: Max Royle, City Manager mk

DATE: April 22, 2026

SUBJECT: Conditional Use Permit to Construct a Residence in a Commercial Land Use District at 610 A1A Beach Boulevard

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INTRODUCTION

The address is currently a vacant lot on the east side of A1A Bach Boulevard, just north of the intersection of 5th Street with the Boulevard. As the lot's owner wants to construct a residence in the commercial zone adjacent to the Boulevard, his request requires review by the Comprehensive Planning and Zoning Board and approval by the City Commission.

At its April 21, 2026, meeting, the Planning Board recommended approval of the request with five conditions. The conditions are listed in the attached memo from the City's Senior Planner, Mr. Patrick Doty, who will be at your May 4th meeting.

ATTACHMENTS

Attached for your review is the following information:

a. Mr. Doty's memo.
b. Pages 1-27, the application for the permit that the Planning Board reviewed at its April 21st meeting.

SUGGESTED PROCEDURE

For the public hearing, we suggest the following procedure:

1. Mr. Doty presents the request and explains the Planning Board's recommendation.
2. The applicant, Mr. Scott Patrou, speaks to you about the request.
3. The Mayor asks for public comment.
4. You decide whether to grant the conditional use permit.

ACTION REQUESTED

It is that you hold the public hearing and then decide whether grant the permit with or without changing the conditions recommended by the Comprehensive Planning and Zoning Board.

City of St. Augustine Beach Building and Zoning Department

To: Max Royle, City Manager
From: Patrick Doty, Senior Planner
CC: Brian Law, Director of Building & Zoning, Gil Timmons, Planner
Date: April 22nd, 2026
Re: Conditional Use Permit Application No. 2026-01 for 610 A1A Beach Blvd

At the Comprehensive Planning and Zoning Board meeting on April 21st, 2026, the Board made the recommendation to approve the proposed Conditional Use Permit 2026-01 for a proposed single-family residence located in a commercial land use district at 610 A1A Beach Blvd. with the conditions.

- The site shall be developed in accordance with medium density single-family residence regulations established in LDR Sec. 6.01.00.
- A maximum of 35% lot coverage as it is a residential use and shall be regulated as such
- Buffers are required as established in LDR 6.06.04
- This request shall expire (1) yeah following approval consistent with LDR Sec. 10.03.02. and is subject to the entirety of section.
- Requirement to have a front facing façade, facing A1A Beach Blvd. without changing setbacks.

The Board voted 5-0 to recommend that the Commission approve the new proposed residence to follow the above conditions.

Sincerely,

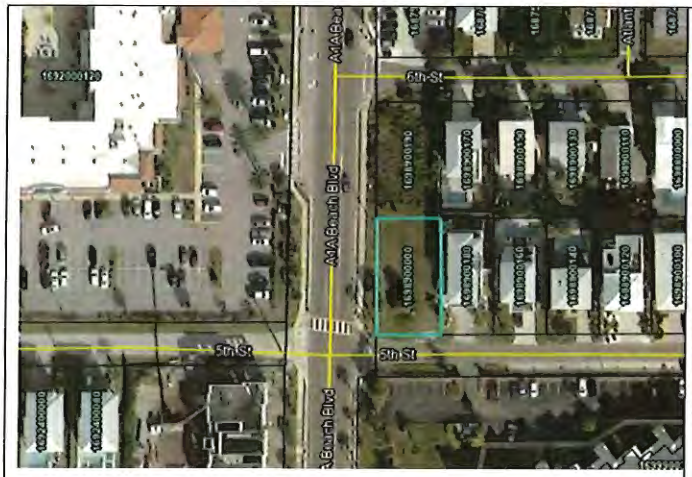
Patrick Doty PHD

Senior Planner
Planning and Zoning Division

Planning & Zoning Board Staff Report

Conditional Use CU2026-01
Planning & Zoning Department

REQUEST / CASE NO	**CU-2026-01**
PUBLIC HEARING DATE	April 21, 2026
APPLICANT / OWNER	Scott Patrou, / 610 A1A Properties LLC
PROPERTY ADDRESS / PARCEL ID	610 A1A Beach Blvd / 169890-0000
ZONING DISTRICT	Commercial
FUTURE LAND USE DESIGNATION	Commercial
SIZE OF PROPERTY	0.140 acres / ~6,098 sq. ft.
SITE IMPROVEMENTS	None, Vacant
FLOODZONE/ SEAWARD OF CCCL?	X-shaded / No





SURROUNDING ZONING & LAND USE	**NORTH**	**SOUTH**	**EAST**	**WEST**
	Commercial	PUD / Commercial	Commercial	Commercial

PROPERTY HISTORY, ANALYSIS, COMPATIBILITY WITH THE COMPREHENSIVE PLAN & ZONING ORDINANCE

Conditional Use Permit Application File No. CU 2026-01 is an application to build a single-family residence in a commercial district located at 610 A1A Beach Blvd. This property is on the southwest corner of A1A Beach Blvd and 5th St. The property directly to the east is also a single-family residence in the commercial district. The Applicant has provided a survey and architectural elevations of the proposed single-family home.

This property was the subject of conditional use CU2024-04, requesting a single-family home on a commercially zoned parcel, that was heard at the May 21, 2024. The PZB tabled the item with mixed decision on the item expressing concerns of loss of commercial space along A1A Beach Blvd and support of the request given the size and difficulty developing the lot with commercial use to allow the applicant to provide better justification for the development of the lot.

Historically, conditional use permits to build a single-family residence in a commercial zoning district are required to conform to the medium density single-family residence regulations in the LDR Sec. 6.01.00.

Planning & Zoning Board Staff Report

Conditional Use CU2026-01
Planning & Zoning Department

Comprehensive Plan (2020) – L.1.3.3 The City shall maintain in the Land Development Regulations design guidelines and standards for buffering, location of curb cuts, landscaping and signage associated with proposed development.; L.1.3.5 The City shall promote the compatibility of adjacent land uses through its development review process and implementation of the Land Development Regulations.

Land Development Regulations – LDR Sec. 6.01.00 – Lot area, lot coverage, floor area and setbacks; Sec. 6.06.04. - Buffer requirements between uses. LDR Sec. 10.03.01 & LDR Sec. 10.01.02 – Conditional Use Permits - Procedures & Limitations on Granting conditional Use permits.

STAFF RECOMMENDATION - APPROVE WITH CONDITIONS - Staff has reviewed the application submittal for compliance with Land Development Regulations and Comprehensive plan policies and has found the request to be compliant with requirements established for granting a conditional use for a single-family home within a commercial district with conditions.

The following conditions are recommended should the Planning and Zoning Board approve this conditional use request:

1. The site shall be developed in accordance with medium density single-family residence regulations established in LDR Sec. 6.01.00.
2. A maximum of 35% lot coverage as it is a residential use and shall be regulated as such.
3. Buffers are required as established in LDR 6.06.04.
4. This request shall expire one (1) year following approval consistent with LDR Sec. 10.03.02. and is subject to the entirety of section.

ATTACHMENTS -
A – Application
B - Legal Notice
C – Minutes from PZB hearing for CU 2024-04

Patrick H. Doty
Patrick H. Doty AICP, CFM
Senior Planner

City of St. Augustine Beach Building and Zoning Department
Conditional Use Permit Application

2200 A1A SOUTH, ST. AUGUSTINE BEACH, FLORIDA 32080
WWW.STAUGBCH.COM BLDG. & ZONING (904)471-8758 FAX (904) 471-4470

1. Legal description of the parcel for which the conditional use permit is being sought:

   Lot(s) 20 Block(s)_____ Subdivision St. Augustine Beach

   Street Address c/o A1A Beach Blvd St. Augustine, FL 32080

2. Location (N, S, W, E): East Side of (Street Name): A1A Beach Blvd

3. Is the property seaward of the Coastal Construction Control Line (CCCL)? Yes (No) (Circle one)

4. Real estate parcel identification number: 169890 0000

5. Name and address of owner(s) as shown in St. Johns County Public Records:

   c/o A1A Properties LLC.

   50 Marine Street, St. Augustine, FL 32084

6. Current land use classification: Vacant / Commercial

7. Section of land use code from which the conditional use permit is being sought: 3.02.03, 7.02.01 10.03.00 - 10.03.04

8. Description of conditional use permit being sought:

   Seeking to use the lot for residential purposes by constructing a home on the property.

9. Supporting data which should be considered by the Board:

10. Has an application for a conditional use permit been submitted in the past year? Yes (No) (Circle one)

    If yes, what was the final result? _____

11. Please check if the following information required for submittal of the application has been included:

( ) Legal description of property

( ) Copy of warranty deed

( ) Owner Permission Form (if applicable)

( ) List of names and addresses of all property owners within 300-foot radius

( ) First-class postage-stamped legal-size (4-inch-by-9½-inch) envelopes with names and addresses of all property owners within 300-foot radius

( ) Survey to include all existing structures and fences

( ) Elevations and overall site plan of proposed structure if conditional use is requested for construction of a residential structure in a commercial land use district

( ) Other documents or relevant information to be considered

( ) Fourteen (14) copies of the completed application including supplemental documentation and/or relevant information

In filing this application for a conditional use permit, the undersigned acknowledges it becomes part of the official record of the City Commission and Comprehensive Planning and Zoning Board and does hereby certify that all information contained is true and accurate, to the best of his/her knowledge.

Scott Patrou	
Print name (owner or his/ her agent)	Print name (applicant or his/her agent)
Signature/date	Signature/date
4160 A1A Beach Blvd, St. Augustine, FL 32080	
Owner/agent address	Applicant/agent address
904-461-3000	
Phone number	Phone number
Spatrou@ainnpatrou.com	
Email address	Email address

All agents must have notarized written authorization from the property owner(s)
Conditional use permits shall be recorded prior to issuance of the building/development permit
** Please note that if you are a resident within a development or subdivision that has covenants and restrictions, be aware that approval of this application by the City Commission or Comprehensive Planning and Zoning Board does not constitute approval for variation from the covenants and restrictions.**

Date: _____

Conditional Use File #: _____

Applicant's name: Scott Patrou

Applicant's address: 4160 A1A Beach Blvd, St. Augustine, FL 32080

For conditional use permit at: C/O A1A Beach Blvd. St. Augustine, FL 32080

Charges

Application Fee: $400.00 Date Paid:_____

Legal Notice Sign: $10.00 Date Paid:_____

Received by_____

Date_____

Invoice # _____

Check # or type of credit or debit card_____

St. Johns County, FL

Apply for Exemptions

Homestead Compliance

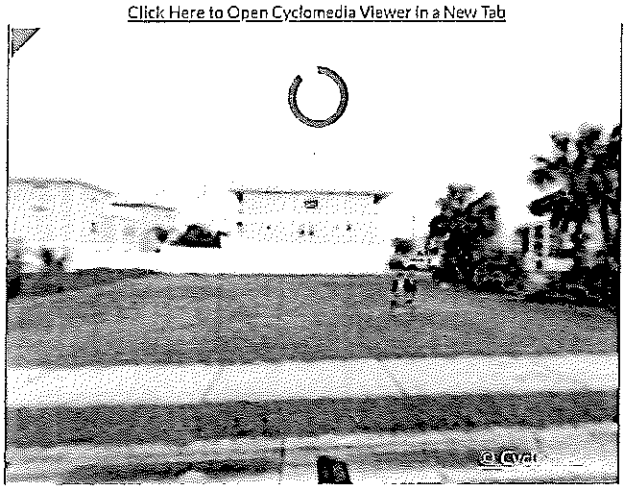
This form is not a Homestead Exemption application. To apply online for homestead and related exemptions, please click here.

2024 TRIM Notice

Summary

Parcel ID	1698900000
Location Address	610 A1A BEACH BLVD SAINT AUGUSTINE 32080-0000
Neighborhood	A1A Beach Boulevard (COM) (717.02)
Tax Description*	3-140 ST AUG BCH LOT 20 OR5544/867 *The Description above is not to be used on legal documents.
Property Use Code	Vacant Commercial (1000)
Subdivision	St Augustine Beach
Sec/Twp/Rng	34-7-30
District	City of St Augustine Beach (District 551)
Millage Rate	16.1093
Acreage	0.140
Homestead	N

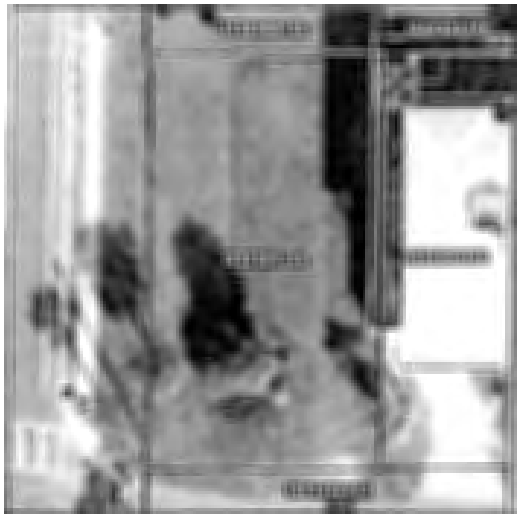
Click Here to Open Cyclomedia Viewer in a New Tab



Owner Information

Owner Name	610 A1a Properties LLC 100%
Mailing Address	50 MARINE ST SAINT AUGUSTINE, FL 32084-0000

Map



Valuation Information

Assessed Year	2026
Building Value	$0.00
Extra Features Value	$0.00
Total Land Value	$464,625.00
Agricultural (Assessed) Value	$0.00
Agricultural (Market) Value	$0.00
Just Market	$464,625.00
Total Deferred	$0.00
Assessed Value	$464,625.00
Total Exemptions	
Taxable Value	$464,625.00

Values listed are from our working tax roll and are subject to change. Exemption and taxable values shown reflect County-level assessment.

Historical Assessment Information

Year	Building Value	Extra Feature Value	Total Land Value	Ag (Market) Value
2025	$0	$0	$464,625	$0
2024	$0	$0	$464,625	$0
2023	$0	$0	$464,625	$0
2022	$0	$0	$247,800	$0
2021	$0	$0	$247,800	$0
2020	$0	$0	$270,375	$0
2019	$0	$0	$270,375	$0
2018	$0	$0	$434,700	$0
2017	$0	$0	$547,833	$0
2016	$0	$0	$547,833	$0
2015	$0	$0	$547,833	$0

Land Information

Use Description	Front	Depth	Total Land Units	Unit Type	Land Value
Vacant Commercial	105	59	6195	SF	$464,625

Sale Information

Recording Date	Sale Date	Sale Price	Instrument Type	Book	Page	Qualification	Vacant/Improved	Grantor	Grantee
4/25/2022	4/25/2022	$507,500.00	WARRANTY DEED	5544	867	Q	V	MIKMA PROPERTIES LLC	610 A1A PROPERTIES LLC
12/21/2018	12/28/2018	$320,000.00	WARRANTY DEED	4658	555	Q	V	CAM-ST AUGUSTINE LLC	MIKMA PROPERTIES LLC
	6/25/2009	$100.00	WARRANTY DEED	3210	957	U	V	MILLER GARY A TRUSTEE	CAM-ST AUGUSTINE LLC
	11/30/2004	$2,000,000.00	WARRANTY DEED	2328	1094	Q	V	REAVES HELEN FAMILY LTD PRTNSHIP &JOHN J REAV	MILLER GARY A TRUSTEE
	8/21/2003	$186,900.00	WARRANTY DEED	2040	680	U	V	REAVES HELEN M (1/2 INT)	REAVES HELEN FAMILY LIMITED PARTNERSHIP
	6/11/2003	$100.00	QUIT CLAIM DEED	1977	271	U	V	REAVES JOHN J SR (1/2 INT)	REAVES HELEN M
	6/11/2003	$100.00	WARRANTY DEED	1977	268	U	V	REAVES JOHN J SR	REAVES JOHN J SR TRUSTEE
	6/2/1993	$100.00	WARRANTY DEED	997	782	U	V	REAVES JOHN J SR	REAVES JOHN J SR ETAL

No data available for the following modules: Sales Questionnaire Form, Exemption Information, Building Information, Sketch Information, Extra Feature Information.

The St. Johns County Property Appraiser's Office makes every effort to produce the most accurate information possible. No warranties, expressed or implied, are provided for the data herein, its use or its interpretation.
| User Privacy Policy | GDPR Privacy Notice
Last Data Upload: 2/26/2026, 3:49:02 AM

Contact Us

Developed by SCHNEIDER GEOSPATIAL

Instr #2022042219 BK: 5544 PG: 867, Filed & Recorded: 4/25/2022 3:09 PM #Pgs:2
Brandon J. Patty,Clerk of the Circuit Court and Comptroller St. Johns County FL Recording $18.50 Doc. D $3,552.50

This instrument was prepared by:
Nick Asselta
Action Title Services of St. Johns County, Inc.
3670 US 1 South, Suite 110, St. Augustine, Florida 32086
File Number:22793
Consideration: $507,500.00
Documentary Stamps Paid: $3,552.50

This Warranty Deed

Made this April 25, 2022 A.D. By
Mikma Properties, LLC, a Florida limited liability company hereinafter called the grantor,
to 610 A1A Properties, LLC, a Florida limited liability company, whose post office address is: 56 Marine Street St. Augustine, FL 32084, hereinafter called the grantee:

(Whenever used herein the term "grantor" and "grantee" include all the parties to this instrument and the heirs, legal representatives and assigns of individuals, and the successors and assigns of corporations)

Witnesseth, that Grantor, for the sum of Ten Dollars and no cents ($10.00) and other good and valuable consideration, the receipt of which is hereby acknowledged, hereby grants, bargains, sells, aliens, remises, releases, conveys and confirms unto Grantee the following described property:

Lot 20, St. Augustine Beach, according to the map or plat thereof, as recorded in Map Book 3, Page 140, of the Public Records of St. Johns County, Florida.

Parcel ID Number: 169890-0000

Grantor warrants that said property is not the homestead of the Grantor(s) under the laws and constitution of the State of Florida in that neither Grantor(s) or any members of the household of Grantor(s) reside thereon as defined by Article X, Section 4 of the Florida Constitution, nor is it adjacent to or contiguous with any of his/their homestead(s) and that the property described herein is not now, nor has it ever been, the primary residence/homestead of the owner or the owner's spouse or dependent child, if any.

Together with all the tenements, hereditaments and appurtenances thereto belonging or in anywise appertaining.

[signature page to follow]

SUBJECT TO covenants, restrictions, easements, limitations and reservations of record, if any. However, this reference does not reimpose same. Subject to all applicable zoning ordinances and/or restrictions and prohibitions imposed by governmental authorities, if any.

To Have and to Hold, the same in fee simple forever.

And the grantor hereby covenants with said grantee that the grantor is lawfully seized of said land in fee simple; that the grantor has good right and lawful authority to sell and convey said land; that the grantor hereby fully warrants the title to said land and will defend the same against the lawful claims of all persons whomsoever; and that said land is free of all encumbrances except taxes and assessments accruing subsequent to **December 31, 2021.**

In Witness Whereof, the said grantor has signed and sealed these presents the day and year first above written.

TWO DIFFERENT WITNESSES HAVE SIGNED BELOW (THE NOTARY MAY BE ONE OF THE TWO WITNESSES) AND NEITHER WITNESS NOR THE NOTARY IS RELATED TO THE GRANTOR(S) OR HAS A BENEFICIAL INTEREST IN THE SALE OF THIS PROPERTY DESCRIBED HEREIN.

Mikma Properties, LLC

Signed, sealed and delivered in our presence:

[1] _____

Witness Printed Name: Nick Asselta

[2] _____

Witness Printed Name WENDY M. KEHANE

_____ (Seal)
By Michael Mounir
Its Manager
Address: 931 Oak Arbor Circle St. Augustine, FL 32084

_____ (Seal)
By Marta Hornyak
Its Manager
Address: 931 Oak Arbor Circle St. Augustine, FL 32084

State of FLORIDA
County of ST. JOHNS

The foregoing instrument was acknowledged before me by means of ☒ physical presence or ☐ online notarization, this April 22, 2022, by Michael Mounir and Marta Hornyak as the Managers of, Mikma Properties, LLC, a Florida limited liability company. Such person (notary must check applicable box):

- ☐ **is / are personally known to me.**
- ☒ **produced a current Florida Driver's license as identification.**
- ☐ **produced** _____ **as identification.**

NICK ASSELTA MY COMMISSION EXPIRES JANUARY 27, 2024 #GG 924289 Bonded thru Notary Public Underwriters NOTARY PUBLIC, STATE OF FLORIDA

(NOTARY SEAL)

_____
Notary Public
Print Name: Nick Asselta
My Commission Expires: 1/27/2024

City of St. Augustine Beach Building and Zoning Department
Owner Authorization Form

2200 A1A SOUTH ST. AUGUSTINE BEACH, FLORIDA 32080
WWW.STAUGBCH.COM BUILDING & ZONING (904)471-8758

To: St. Augustine Beach Building and Zoning Department
2200 A1A South
St. Augustine Beach, Florida 32080

From: Owner Name(s) & Phone #: Rebecca Smith on behalf of 610 A1A Properties LLC

Address: 50 Marine St

City, State & Zip Code: St Augustine, FL 32084

This is to advise you that I hereby give permission to:

Contractor/Agent Name(s) & Phone #: Scott M. Patrou

Address: 460 A1A Beach Blvd

City, State, Zip Code: St Augustine FL 32080

Who is my contractor/agent, to perform the following on my behalf pertaining to an application for construction, development, land use, zoning, conditional use permit, special events permit, variance, or any other action pursuant to an application for:

The conditional use permit for 610 A1A Beach Blvd

I hereby designate and authorize the agent listed above to act on my behalf, or on behalf of my corporation, as the agent in the processing of this application for approval to conduct any development authorized pursuant to this application and to furnish, on request, supplemental information in support of this application. In addition, I authorize the above-listed agent to bind me, or my corporation, to perform any requirements that may be necessary to procure such approval.

I hereby recognize that any duly authorized agent of City of Saint Augustine Beach (CoSAB) may enter and inspect any parcel of land for which a development approval or permit has been issued, or where there is a reasonable cause to believe that a development activity is being carried out, for the purpose of ascertaining the state of compliance with City Codes. The interiors of buildings shall not be subject to such inspections unless related to the enforcement of the building code. No person shall refuse immediate entry or access to any authorized representative of the CoSAB or one of the specified agencies who requests entry for the purpose of inspection and who presents appropriate credentials. No person shall obstruct, hamper or interfere with any such inspection. If requested, the owner or operator of the premises shall receive a report setting forth the facts and results of the compliance determination.

I further understand incomplete or false information provided on this form may lead to revocation of permits and/or termination of development activity.

Date: 10/21/25 Rebecca Smith (Typed or Printed Name of Property Owner) (Signature of Property Owner)

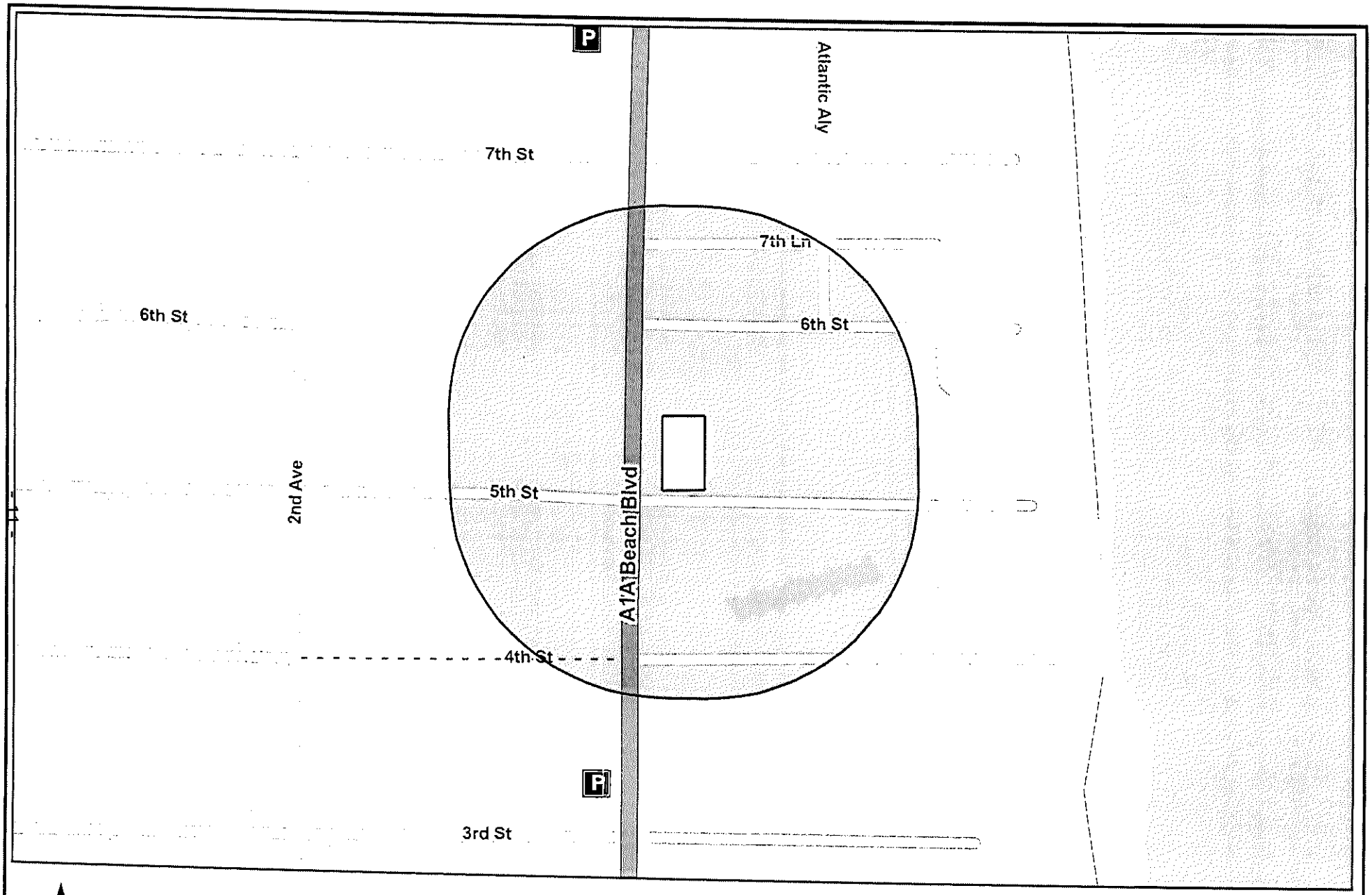
State of Florida County of: St. Johns

Subscribed and sworn before me this 21 day of October, 20 25, by Rebecca Smith

Who is/are personally known to me or who has/have produced _____ as identification.

Signature of Notary Public, State of Florida
Typed or Printed Name: Michelle Todrick
My Commission Expires: 04/23/2028

MICHELLE HOLLAND TODRICK
MY COMMISSION # HH 519624
EXPIRES: April 23, 2028
(Stamp or Seal)



Map Printed: 2/25/2026

Parcels within 300 ft of Parcel 169890 0000

Buffer

Selected Parcels

18 HMR LLC
6271 SAINT AUGUSTINE RD STE 24 BOX 125
JACKSONVILLE FL 32217-2555

ABBOTT JOHN G,JESSICA
2449 FAWNLAKE TRL
ORLANDO FL 32828

BNE SRGN INVESTMENTS 2 TWELFTH LANE LLC
PO BOX 2230
SAINT AUGUSTINE FL 32085-0803

BRANCH MARC,CYD C
4333 SW 78TH ST
GAINESVILLE FL 32606-0000

BS UNLIMITED LLC
620 A1A S UNIT 17
SAINT AUGUSTINE BEACH FL 32080-0000

BUNNELL FAMILY TRUST D:09/30/11
201 RIVER RD
DAYTON NV 89403

CONLEE KIM L,ELIZABETH W
620 A1A BEACH BLVD
UNIT 32
SAINT AUGUSTINE FL 32080-7927

COOK JASON ALEXANDER,LORI MARIE
11 7TH ST
SAINT AUGUSTINE FL 32080-2080

DENINIS TOM
1123 HYACINTH ST
SAINT AUGUSTINE FL 32092

E KOMO MAI VACATION RENTAL LLC
352 ARLINGTON PARK CT
HOT SPRINGS AR 71901

FERGUSON CHRISTOPHER IAN,MICHELLE
3626 SUMMERFORD WAY
MARIETTA GA 30062

FERRELL JUSTIN,JESSICA
4239 MANUELA AVE
PALO ALTO CA 94306-0000

FOLEY FRANCES ALEXANDER,MICHAEL P
10 ASHBURY AVE
GREENVILLE SC 29601

FORGETTE KAREN C REVOCABLE TRUST D: 06/05/2008
2131 LARKDALE DR
GLENVIEW IL 60025-0000

GENIE ALVARO
14 5TH ST
SAINT AUGUSTINE FL 32080

GINN & PATROU HOLDINGS LLC
460 A1A BEACH BLVD
SAINT AUGUSTINE FL 32080

GODDARD GEORGE R REVOCABLE LIVING TRUST D:06/05/2000
982 OVERBROOK CIR
MARIETTA GA 30062-0000

HANSTEIN HEIDI ETAL
1776 WEST BRIDGE CIR
LAKE FOREST IL 60045

HELLER JASON ERIC,JESSICA LYNN
2421 NE 12TH ST
FORT LAUDERDALE FL 33304-1530

HENDRY LYNDIA,WILLIAM
1039 REGIONAL RD 97 RR 3
PUSLINCH -
ON N0B2J0

HUFF JACQUELINE D
173 BROWN FARM TER SW
CALHOUN GA 30701-0000

HVG PROPERTIES LLC
1812 A1A S
SAINT AUGUSTINE FL 32080-

JENNINGS CYNTHIA M
1312 QUEENS ISLAND CT
JACKSONVILLE FL 32225-0000

JENSEN LYNNE E
2717 APPLESEED ROAD
FINKSBURG MD 21048

KAIN JEFFREY,MARCIA
1580 MAIDENCANE LOOP
OVIEDO FL 32765

KEADY MITCHELL J
155 ISTORIA DR
SAINT AUGUSTINE FL 32095-8017

KING SANDRA L
620 A1A BEACH BLVD
UNIT 16
SAINT AUGUSTINE FL 32080-0000

KNIGHT PHYLLIS,CHARLES
8 5TH ST
SAINT AUGUSTINE FL 32080

L & L PIRTON INC
312 VIEW POINT PL
SAINT AUGUSTINE FL 32080

LESLIE KAREN
13 6TH ST
SAINT AUGUSTINE FL 32080

LOTT TOBY G,PATRICIA A
620 A1A BEACH BLVD UNIT 22
SAINT AUGUSTINE FL 32080-7926

LUNDGREN TERESA,PAUL
321 LOLLY LN
SAINT JOHNS FL 32259-0000

MAINES-DEVOE REVOC TRUST
PO BOX 162
LAKE BUTLER FL 32054-0000

MIKELL STEVEN,KELLY
4224 WATERFORD LN
TRUSSVILLE AL 35173-0000

MILLICAN ROBERT DANCY ET AL
3956 WAYNESVILLE RD
WAYNESVILLE GA 31566-0000

MSB HOTELS I LLC
45 SETON TR
ORMOND BEACH FL 32176

NAJOUR LAWRENCE J,JUDY G
1665 NATCHEZ WAY
GRAYSON GA 30017-1068

OBERMAN CONNIE J
13 7TH ST
SAINT AUGUSTINE FL 32080-3878

PASTOR LIVING TRUST D:12/17/21
108 CENTRL AVE N
VERSAILLES PA 15137

PAUL DONALD,LINDA
7 6TH ST
SAINT AUGUSTINE FL 32080

PUYEAR MICHELE LEE TRUST D:
11/28/2023
3295 BLAKE ST UNIT 102
DENVER CO 80205-0000

SALT LIFE LAND TRUST D:8-13-2015
6700 COLLIER RD
SAINT AUGUSTINE FL 32092

SIMMONS GREGORY S
PO BOX 8225
THE WOODLANDS TX 77387

SLACK TIDE STAYS LLC
1617 TAYO LANE
JACKSONVILLE FL 32223-0000

SPANGLER JEANINE DANIELLE
2558 NILES CORTLAND ROAD
CORTLAND OH 44410-0000

ST JOHNS COUNTY UTILITY DEPARTMENT
500 SAN SEBASTIAN VW
SAINT AUGUSTINE FL 32084

STEVENSON ALAN R JR,JENNIFER L
580 A1A BEACH BLVD
SAINT AUGUSTINE FL 32080

STONAKER ROLAND H III
117 SPARTINA AVE
SAINT AUGUSTINE FL 32080-5388

THE GOLDEN PALMS AT ST AUGUSTINE
BEACH LLC
87 TIMBERCREEK DR
PONTE VEDRA BEACH FL 32081

VAHEY KEVIN F,JO ANN H ETAL
40 JESSICA LYNN PL
SAINT AUGUSTINE FL 32080-8426

VINCENT JAMES N ET AL
15 6TH ST
SAINT AUGUSTINE FL 32080

ZUBER PENELOPE A ET AL
1819 GREENWOOD AVE
JACKSONVILLE FL 32205-0000

ZUBER PENELOPE ARIAS ET AL
1819 GREENWOOD AVE
JACKSONVILLE FL 32205

PIN	NAME	ADDRESS	ADDRESS 2	CITY ST ZIP	LEGAL DESCRIPTION
1699900180	18 HMR LLC	6271 SAINT AUGUSTINE RD STE 24 BOX 125		JACKSONVILLE FL 32217-2555	(OR625/29) ISLAND SOUTH CONDO PH 2 UNIT 18 OR4157/1916
1687300000	ABBOTT JOHN G,JESSICA	2449 FAWNLAKE TRL		ORLANDO FL 32828	2-5 CHAUTAUQUA BCH LOT 7 BLK 5 OR4737/1144
1699900310	BNE SRGN INVESTMENTS 2 TWELFTH LANE LLC	PO BOX 2230		SAINT AUGUSTINE FL 32085-0803	(OR625/29) ISLAND SOUTH CONDO PH 2 UNIT 31 OR5412/1844
1699900290	BRANCH MARC,CYD C	4333 SW 78TH ST		GAINESVILLE FL 32606-0000	(OR625/29) ISLAND SOUTH CONDO PH 2 UNIT 29 OR2435/892
1699900170	BS UNLIMITED LLC	620 A1A S UNIT 17		SAINT AUGUSTINE BEACH FL 32080-0000	(OR625/29) ISLAND SOUTH CONDO PH 2 UNIT 17 OR4178/69
1698900110	BUNNELL FAMILY TRUST D:09/30/11	201 RIVER RD		DAYTON NV 89403	3-140 ST AUG BCH LOT 11 OR4069/1708 & 4976/1822(Q/C)
1699900320	CONLEE KIM L,ELIZABETH W	620 A1A BEACH BLVD	UNIT 32	SAINT AUGUSTINE FL 32080-7927	(OR625/29) ISLAND SOUTH CONDO PH 2 UNIT 32 OR2051/1333
1687400000	COOK JASON ALEXANDER,LORI MARIE	11 7TH ST		SAINT AUGUSTINE FL 32080-2080	2-5 CHAUTAUQUA BCH LOT 8 BLK 5 OR5459/1248
1687900000	DENINIS TOM	1123 HYACINTH ST		SAINT AUGUSTINE FL 32092	2-5 CHAUTAUQUA BEACH LOT 17 BLK 5 OR5492/1022
1698900180	E KOMO MAI VACATION RENTAL LLC	352 ARLINGTON PARK CT		HOT SPRINGS AR 71901	3-140 ST AUG BCH LOT 18 OR5971/802
1698900120	FERGUSON CHRISTOPHER IAN,MICHELLE	3626 SUMMERFORD WAY		MARIETTA GA 30062	3-140 ST AUG BCH LOT 12 OR5676/1265
1699900190	FERRELL JUSTIN,JESSICA	4239 MANUELA AVE		PALO ALTO CA 94306-0000	(OR625/29) ISLAND SOUTH CONDO PH 2 UNIT 19 OR5144/708
1698700000	FOLEY FRANCES ALEXANDER,MICHAEL P	10 ASHBURY AVE		GREENVILLE SC 29601	3-140 ST AUGUSTINE BCH LOT 5 (EX E 12FT) & ALL LOT 7 OR5886/716 & 719
1699900270	FORGETTE KAREN C REVOCABLE TRUST D: 06/05/2008	2131 LARKDALE DR		GLENVIEW IL 60025-0000	(OR625/29) ISLAND SOUTH CONDO PH 2 UNIT 27 OR650/258 &885/1132(Q/C) OR1036/1457-1466 &1354/71 & 5764/447(Q/C) & 5770/67(T/R)
1698900160	GENIE ALVARO	14 5TH ST		SAINT AUGUSTINE FL 32080	3-140 ST AUG BCH LOT 16 OR5778/305
1692400010	GINN & PATROU HOLDINGS LLC	460 A1A BEACH BLVD		SAINT AUGUSTINE FL 32080	2-5 CHAUTAUQUA BEACH LOTS 1 THRU 6 & VAC ALLEY LYING BETWEEN OR5614/64
1699900340	GODDARD GEORGE R REVOCABLE LIVING TRUST D:06/05/2000	982 OVERBROOK CIR		MARIETTA GA 30062-0000	(OR625/29) ISLAND SOUTH CONDO PH 2 UNIT 34 OR2463/295 & 5469/1802
1698900190	HANSTEIN HEIDI ETAL	1776 WEST BRIDGE CIR		LAKE FOREST IL 60045	3-140 ST AUG BCH LOT 19 OR4707/738
1698900170	HELLER JASON ERIC,JESSICA LYNN	2421 NE 12TH ST		FORT LAUDERDALE FL 33304-1530	3-140 ST AUG BCH LOT 17 OR4625/1849
1699900330	HENDRY LYNDIA,WILLIAM	1039 REGIONAL RD 97 RR 3		PUSLINCH -	(OR625/29) ISLAND SOUTH CONDO PH 2 UNIT 33 OR3955/1551
1699900200	HUFF JACQUELINE D	173 BROWN FARM TER SW		CALHOUN GA 30701-0000	(OR625/29) ISLAND SOUTH CONDO PH 2 UNIT 20 OR3536/595 & 4735/1475 (D/C)
1692400070	HVG PROPERTIES LLC	1812 A1A S		SAINT AUGUSTINE FL 32080-	2-5 CHAUTAUQUA BEACH LOT 7 & VAC ALLEY LYING N OR5013/35
1699900140	JENNINGS CYNTHIA M	1312 QUEENS ISLAND CT		JACKSONVILLE FL 32225-0000	(OR625/29) ISLAND SOUTH CONDO PH 2 UNIT 14 OR922/1451

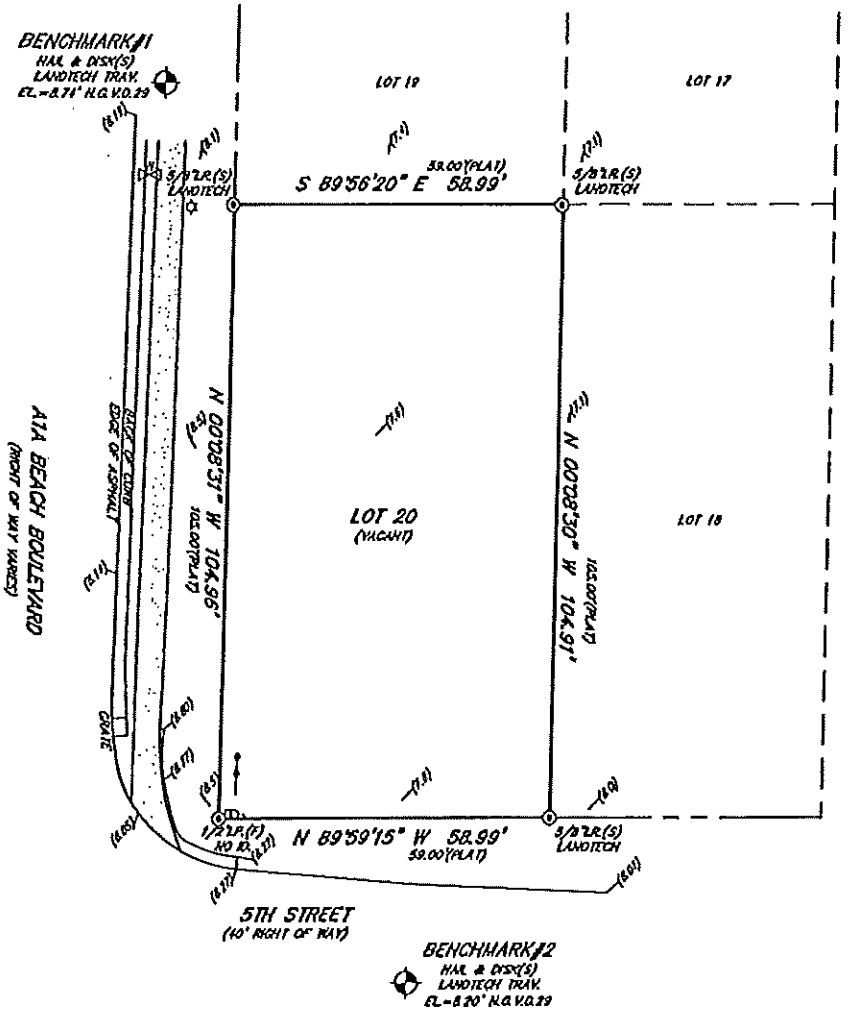
PIN	NAME	ADDRESS	ADDRESS 2	CITY ST ZIP	LEGAL DESCRIPTION
1687000000	JENSEN LYNNE E	2717 APPLESEED ROAD		FINKSBURG MD 21048	2-5 CHAUTAUQUA BCH LOT 3 BLK 5 OR4226/192 & 6020/1782(Q/C)
1687700000	KAIN JEFFREY,MARCIA	1580 MAIDENCANE LOOP		OVIEDO FL 32765	2-5 CHAUTAUQUA BCH LOT 13 BLK 5 OR3142/1702
1699100270	KEADY MITCHELL J	155 ISTORIA DR		SAINT AUGUSTINE FL 32095-8017	3-140 ST AUG BCH LOT 27 OR3873/1842
1699900160	KING SANDRA L	620 A1A BEACH BLVD	UNIT 16	SAINT AUGUSTINE FL 32080-0000	(OR625/29) ISLAND SOUTH CONDO PH 2 UNIT 16 OR1435/1068(F/J) & 5140/1114 & 6280/536 (L/E)
1698900100	KNIGHT PHYLLIS,CHARLES	8 5TH ST		SAINT AUGUSTINE FL 32080	3-140 ST AUG BCH LOT 10 OR5535/910
1698700080	L & L PIRTON INC	312 VIEW POINT PL		SAINT AUGUSTINE FL 32080	3-140 ST AUGUSTINE BEACH LOT 8 OR4109/88
1698900130	LESLIE KAREN	13 6TH ST		SAINT AUGUSTINE FL 32080	3-140 ST AUG BCH LOT 13 OR896/1341 & 901/105(Q/C) &2483/1570(F/J)
1699900220	LOTT TOBY G,PATRICIA A	620 A1A BEACH BLVD UNIT 22		SAINT AUGUSTINE FL 32080-7926	(OR625/29) ISLAND SOUTH CONDO PH 2 UNIT 22 OR3682/124
1699900280	LUNDGREN TERESA,PAUL	321 LOLLY LN		SAINT JOHNS FL 32259-0000	(OR625/29) ISLAND SOUTH CONDO PH 2 UNIT 28 OR4958/1592
1699900240	MAINES-DEVOE REVOC TRUST	PO BOX 162		LAKE BUTLER FL 32054-0000	(OR625/29) ISLAND SOUTH CONDO PH 2 UNIT 24 OR2482/816 OR2597/68 (Q/C)
1699900360	MIKELL STEVEN,KELLY	4224 WATERFORD LN		TRUSSVILLE AL 35173-0000	(OR625/29) ISLAND SOUTH CONDO PH 2 UNIT 36 OR5935/1040
1699900130	MILLICAN ROBERT DANCY ET AL	3956 WAYNESVILLE RD		WAYNESVILLE GA 31566-0000	(OR625/29) ISLAND SOUTH CONDO PH 2 UNIT 13 OR6292/97(P/R)
1692000120	MSB HOTELS I LLC	45 SETON TR		ORMOND BEACH FL 32176	2-5 CHAUTAUQUA BCH ALL OF BLKS 16 & 17 (EX R/W OF A1A) & INCLUDING 15FT ALLEYS & 6TH ST LYING BETWEEN BEING VACATED BY ORD #07-16 IN OR3859/739 OR2984/497 & 3226/1361
1699900210	NAJOUR LAWRENCE J,JUDY G	1665 NATCHEZ WAY		GRAYSON GA 30017-1068	(OR625/29) ISLAND SOUTH CONDO PH 2 UNIT 21 OR1880/1320
1687600000	OBERMAN CONNIE J	13 7TH ST		SAINT AUGUSTINE FL 32080-3878	2-5 CHAUTAUQUA BCH LOT 10 BLK 5 OR1526/952
1698900140	PASTOR LIVING TRUST D:12/17/21	108 CENTRL AVE N		VERSAILLES PA 15137	3-140 ST AUG BCH LOT 14 OR4352/1878 & 5483/1474(Q/C)
1698800000	PAUL DONALD,LINDA	7 6TH ST		SAINT AUGUSTINE FL 32080	3-140 ST AUG BCH LOT 9 OR4029/197
1699900350	PUYEAR MICHELE LEE TRUST D: 11/28/2023	3295 BLAKE ST UNIT 102		DENVER CO 80205-0000	(OR625/29) ISLAND SOUTH CONDO PH 2 UNIT 35 OR4622/1883 & 5878/1274
1687200000	SALT LIFE LAND TRUST D:8-13-2015	6700 COLLIER RD		SAINT AUGUSTINE FL 32092	2-5 CHAUTAUQUA BCH LOT 5 BLK 5 OR749/1896 OR637/334 &4100/20
1698700060	SIMMONS GREGORY S	PO BOX 8225		THE WOODLANDS TX 77387	3-140 ST AUGUSTINE BEACH LOT 6 OR4523/527
1699900150	SLACK TIDE STAYS LLC	1617 TAYO LANE		JACKSONVILLE FL 32223-0000	(OR625/29) ISLAND SOUTH CONDO PH 2 UNIT 15 OR5870/1944
1699900300	SPANGLER JEANINE DANIELLE	2558 NILES CORTLAND ROAD		CORTLAND OH 44410-0000	(OR625/29) ISLAND SOUTH CONDO PH 2 UNIT 30 OR5773/1724
1699900001	ST JOHNS COUNTY UTILITY DEPARTMENT	500 SAN SEBASTIAN VW		SAINT AUGUSTINE FL 32084	3-140 (1-1) ST AUG BCH SUBD PT OF HOTEL LOT 20FT ON 4TH ST X 20FT (LIFT STATION SITE) OF ISLAND SOUTH CONDO OR654/1823

PIN	NAME	ADDRESS	ADDRESS 2	CITY ST ZIP	LEGAL DESCRIPTION
1687800000	STEVENSON ALAN R JR,JENNIFER L	580 A1A BEACH BLVD		SAINT AUGUSTINE FL 32080	2-5 CHAUTAUQUA BCH LOTS 14 & ALL LOT 18 (EX R/W RD A1A) BLK 5 OR3904/397(TRUSTEES DEED)
1699200000	STONAKER ROLAND H III	117 SPARTINA AVE		SAINT AUGUSTINE FL 32080-5388	3-140 ST AUG BCH E PT OF LOT 28 25 X 100 X 30FT OR3606/1172
1692400000	THE GOLDEN PALMS AT ST AUGUSTINE BEACH LL	87 TIMBERCREEK DR		PONTE VEDRA BEACH FL 32081	2-5 CHAUTAUQUA BEACH LOT 10 & VAC ALLEY LYING S OR6147/643
1692700000	VAHEY KEVIN F,JO ANN H ETAL	40 JESSICA LYNN PL		SAINT AUGUSTINE FL 32080-8426	2-5 CHAUTAUQUA BCH LOT 2 (EX R/W OF RD A1A) & ALL OF LOTS 4 6 8 & VACA ALLEY TO THE SOUTH BLK 19 OR1124/905 & 4387/516
1698900150	VINCENT JAMES N ET AL	15 6TH ST		SAINT AUGUSTINE FL 32080	3-140 ST AUG BCH LOT 15 OR4697/1841
1699900260	ZUBER PENELOPE A ET AL	1819 GREENWOOD AVE		JACKSONVILLE FL 32205-0000	(OR625/29) ISLAND SOUTH CONDO PH 2 UNIT 26 OR6044/775
1699900250	ZUBER PENELOPE ARIAS ET AL	1819 GREENWOOD AVE		JACKSONVILLE FL 32205	(OR625/29) ISLAND SOUTH CONDO PH 2 UNIT 25 OR5096/1367

MAP SHOWING SURVEY OF

LOT 20, ST. AUGUSTINE BEACH, ACCORDING TO THE MAP OR PLAT THEREOF AS RECORDED IN MAP BOOK 3, PAGE 14, OF THE PUBLIC RECORDS OF ST. JOHNS COUNTY, FLORIDA.

CERTIFIED TO:
VENVA PROPERTIES, LLC
RCUNION BANK OF FLORIDA
ISLAND TITLE OF ST. AUGUSTINE LLC
OLD REPUBLIC NATIONAL TITLE INSURANCE COMPANY



AREA = 0.14 ± ACRES
OR 6,195 ± sq. ft.

LEGEND

A/C	– AIR CONDITIONER PAD	RES.	– RESIDENCE
ID.	– IDENTIFICATION	℄	– CENTERLINE
N.G.V.D.	– NATIONAL GEODETIC VERTICAL DATUM	±	– DENOTES NOT TO SCALE
sq. ft.	– SQUARE FEET	WM	– WATER METER
I.P.(F)	– IRON PIPE FOUND		– EXPOSED CONCRETE
I.R.(F)	– IRON ROD FOUND		– COVERED AREA
I.R.(S)	– 5/8" IRON ROD SET (LANDTECH)		– GUY ANCHOR
	– LIGHT POLE		– WOOD POWER POLE
WV	– WATER VALVE		

GRAPHIC SCALE
20 0 10 20
1"=20'

GENERAL NOTES:
- This survey made without benefit of an abstract of title, the right-of-way or easements of record were furnished to this firm except as shown.
- The certification of this survey is a professional opinion based on the existing field and documentary evidence matters of title that this survey was prepared.
- This office has not abstracted this parcel of land for any recorded claims of title, easements or restrictions. This survey shall not be held liable for the existence of any such claims.
- Use of this survey for purposes other than that which it was intended, without written verification, will be at the user's risk and without liability to the surveyor. Nothing herein shall be intended to give any rights or benefits to anyone other than those this survey was prepared for.
- All disputes that cannot be resolved by direct negotiation in accordance with rules set forth by the American Arbitration Association.
- No underground structures, utilities or foundations were located or determined by this survey.
- For building setbacks and site applicable zoning ordinances, architectural, parking or other use restrictions not shown hereon, refer to the applicable zoning ordinances as noted if different.
- The measurements for this survey were made in accordance with the United States Standards.
- Encroachments as shown hereon are only those above ground, visible objects observed by the surveyor.
- This survey is certified to the field date.
- This survey does not reflect or determine ownership.
- The words "certify" or "certification" as used hereon are professional opinions based upon the information available to the surveyor and are not guarantees or warranties, expressed or implied.
- This surveyor's liability shall not exceed the fee as stated by this surveyor.

NOTE:
THIS SURVEY IS PROTECTED BY COPYRIGHT AND IS CERTIFIED ONLY TO THE PARTIES LISTED ABOVE AND ONLY FOR THIS PARTICULAR TRANSACTION. ANY USE OR REPRODUCTION OF THIS SURVEY WITHOUT THE EXPRESS PERMISSION OF THE SURVEYOR IS PROHIBITED. USE OF THIS SURVEY IN ANY SUBSEQUENT TRANSACTION IS NOT AUTHORIZED. THE SURVEYOR EXPRESSLY DISCLAIMS ANY CERTIFICATION TO ANY PARTIES IN FUTURE TRANSACTIONS. NO PERSON OTHER THAN THOSE LISTED SHOULD RELY UPON THIS SURVEY.

- According to the Federal Emergency Management Agency Flood Map No. 12109C0482H effective date 06/05/14, the property described hereon appears to be in Zone AE at 8'.
- Basis of bearing structure REFER TO SURVEY
- Basis of elevation NAVD 88

FIELD WORK	DRAWING	SCALE	FIELD BOOK	SHT. NO.	SHT. NO.
10-11-16	11/08/18	1"=20'	113/74	N/A	2 A.M.

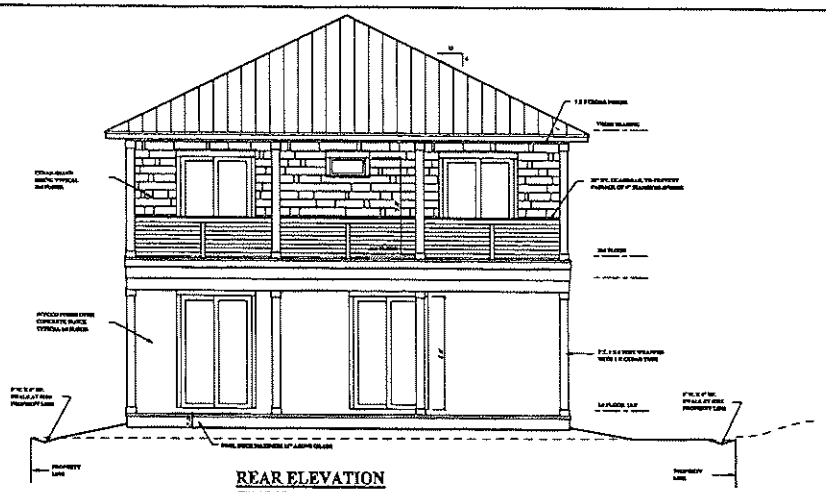
TYPE BOUNDARY

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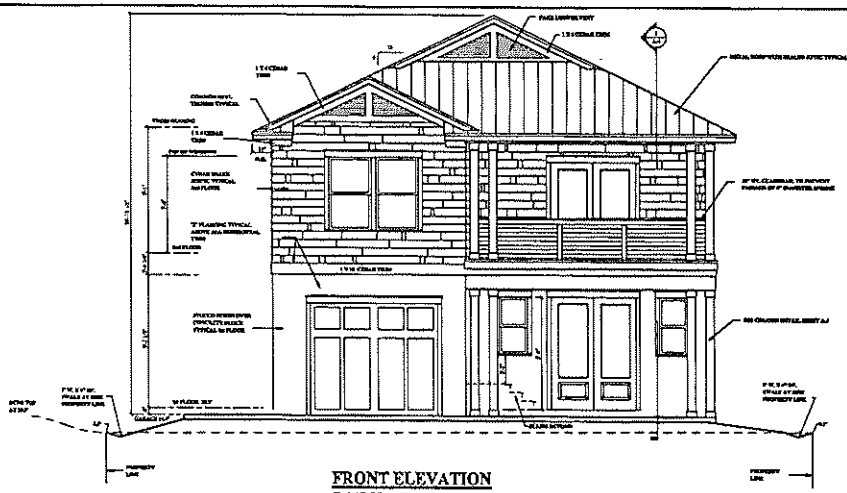
NICHOLAS H. FRANKLIN
6170 A1A SOUTH #310
ST. AUGUSTINE, FLORIDA 32080
(904) 471-8477 FAX (904) 471-8478

Not valid without the signature and the original raised seal of a Florida licensed surveyor and mapper or unless it bears a digital signature as defined by rule. Additions or deletions to survey maps or reports by other than the signing party or parties without the written consent of the signing party is prohibited.

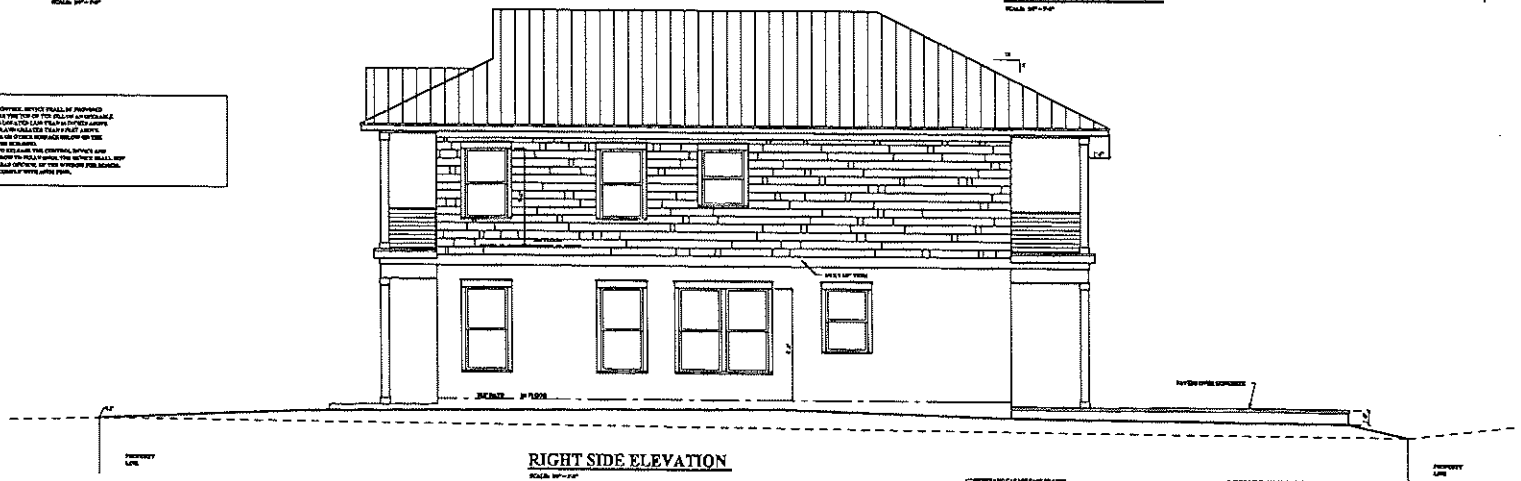
NICHOLAS H. FRANKLIN, P.L.S. 4020
FOR LANDTECH AND ASSOCIATES



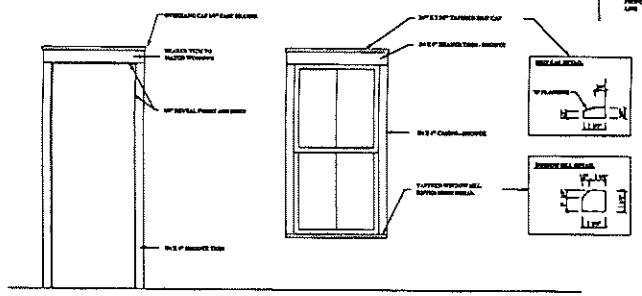
REAR ELEVATION



FRONT ELEVATION



RIGHT SIDE ELEVATION



EXTERIOR TRIM DETAILS

karen cowart
DESIGN ASSOCIATES

ELEVATIONS

LOT 13, BLOCK 34, CODESSA GARDENS

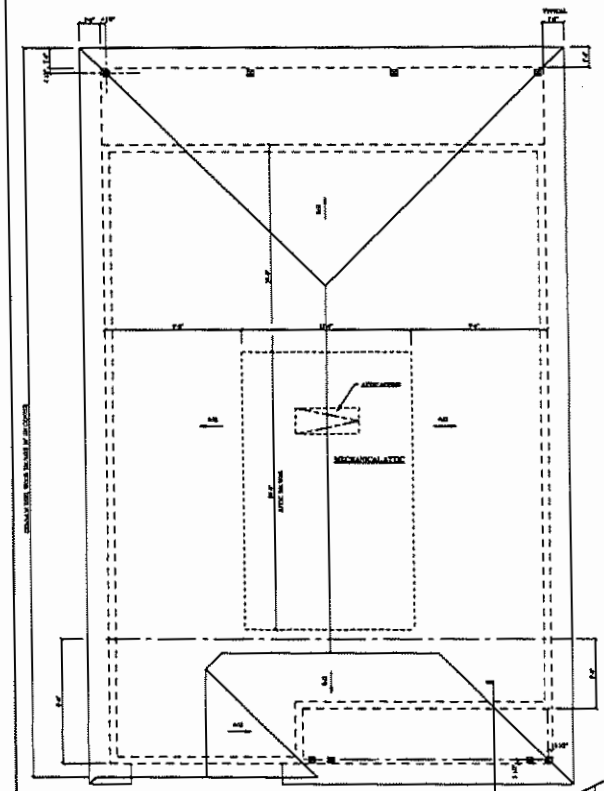
MODEL FOR:
HVO PROPERTIES, LLC

AUGUST 9, 2025

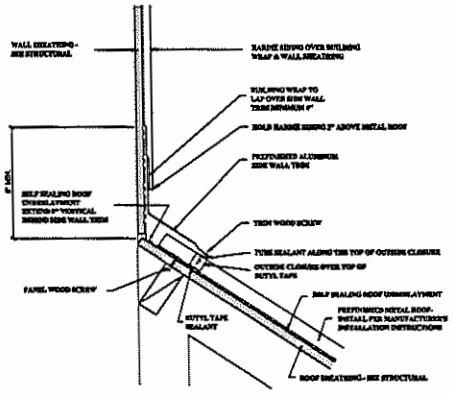
AS NOTED

A-2

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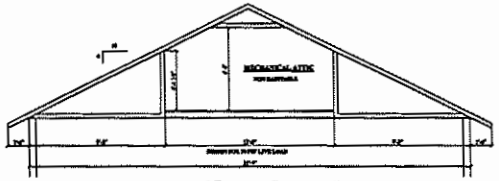


ROOF DIAGRAM

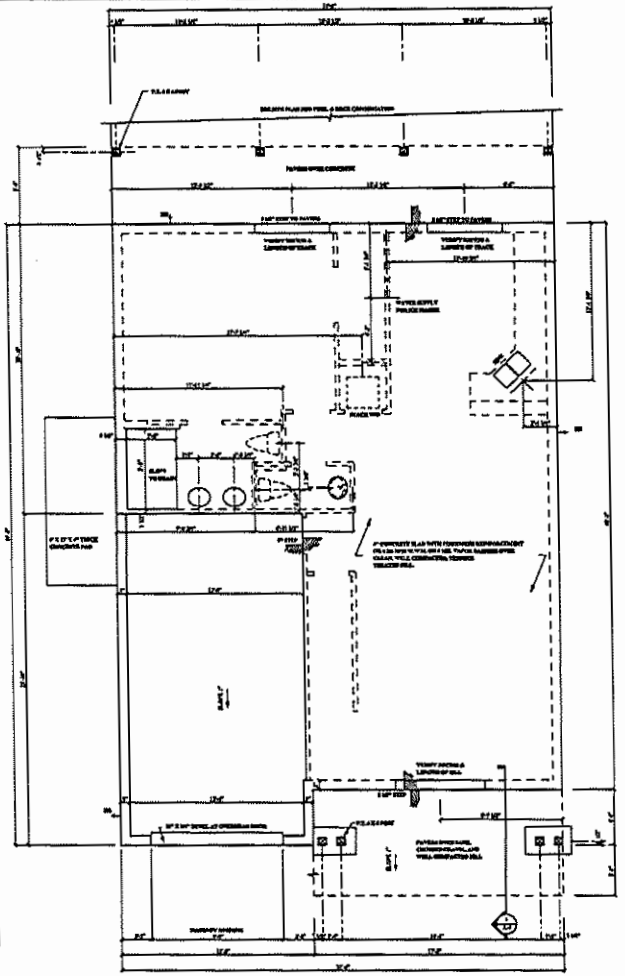


END WALL FLASHING DETAIL

SCALE: 3" = 1'-0"

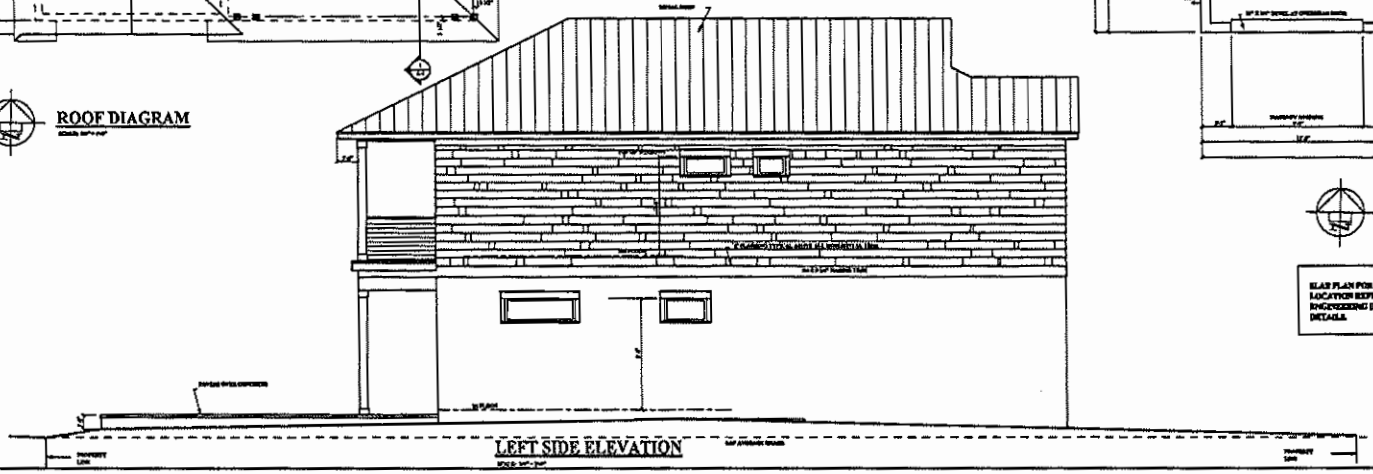


ATTIC TRUSS PROFILE



SLAB PLAN

SLAB PLAN FOR CONCRETE POURING AND PLUMBING LOCATION REFERENCE ONLY. REFER TO ASSOCIATED ENGINEERING DRAWINGS FOR FOOTER LOCATIONS & DETAILS.



LEFT SIDE ELEVATION

©2023 KAREN COWART DESIGN ASSOCIATES, INC.

karen cowart
DESIGN ASSOCIATES

SHEET TITLE: ELEVATION / ROOF / SLAB

LOT 14, BLOCK M, COQUINA GABLES
CITY OF ST. AUGUSTINE BEACH
MODEL FOR:
HVO PROPERTIES, LLC

DRAWN BY: KC
CHECKED: KC
DATE: AUGUST 9, 2023
SCALE: AS NOTED
JOB NUMBER: ONGOING H.D.SV

A-3

MEETING NOTICE OF PUBLIC HEARINGS
COMPREHENSIVE PLANNING AND ZONING BOARD
OF THE CITY OF ST. AUGUSTINE BEACH, FLORIDA

The regular monthly meeting of the City of St. Augustine Beach Comprehensive Planning and Zoning Board will be held Tuesday, April 21st, 2024, at 6:00 p.m. at City Hall, 2200 A1A South, St. Augustine Beach, Florida, 32080. The following four (2) items are on the agenda: 1) Conditional Use File No. 2026-01, filed by Scott Patrou, Ginn Patrou Attorneys, Agent for 610 A1A Properties LLC, Applicant, PERTAINING TO PARCEL IDENTIFICATION NUMBER 169890-0000, ST. AUGUSTINE BEACH LOT 20, AKA 610 A1A BEACH BOULEVARD, SECTION 34, TOWNSHIP 7, RANGE 30, AS RECORDED IN THE PUBLIC RECORDS OF ST. JOHNS COUNTY, FLORIDA, for a conditional use permit for proposed new construction of a single-family residence on the property described above in a commercial land use district at 610 A1A Beach Boulevard; 2) Conditional Use File No. CU 2026-02, filed by Jason Stancil, Agent for Colour Homes, LLC, Applicant, PERTAINING TO PARCEL IDENTIFICATION NUMBER 169170-0070, ST. AUGUSTINE BEACH LOT 7, AKA 106 7TH ST., SECTION 34, TOWNSHIP 7S, RANGE 30E, AS RECORDED IN THE PUBLIC RECORDS OF ST. JOHNS COUNTY, FLORIDA, for a conditional use permit for proposed new construction of a single-family residence on the property described above in a commercial land use district AT 106 7TH st.

Persons interested may appear and be heard at the time and place specified. If any person decides to appeal any decision made by the Board with respect to any matter considered, he or she will need a record of the proceedings, and for such purpose, may need to ensure that a verbatim record of the proceedings is made, which includes the testimony and evidence upon which the appeal is to be based.

One or more members of the St. Augustine Beach City Commission may attend this meeting. Persons or parties who may subject the Commissioners to ex-parte communication should limit contact with the Commissioners.

For more information on any of the above agenda items, please see the meeting schedule information on the City's website, staugbch.com, or call the City of St. Augustine Beach Building and Zoning Department at (904) 471-8758. Persons requiring special accommodation to participate in this proceeding should call this telephone number no later than seven (7) days prior to the meeting date and time.

Kevin Kincaid, Chairperson

(Please run one time only as a legal ad in *The St. Augustine Record* on Monday, April 6, 2026)

Jennifer Thompson: That's completely up to the Board. I will say that we've never had any complaints regarding this business.

Motion: to approve the requested application for equipment rental outside of an enclosed building on the property of the Hampton Inn located at 430 A1A Beach Boulevard, Applicant Charles Dewitt, Beach Life Rentals LLC dba Barney's Beach Services. Moved by Hulsey Bray, seconded by Victor Sarris, passed 6-0 by unanimous voice-vote.

C. Conditional Use File No, 2024-04 application for proposed new construction of a single-family residence in a commercial land use district on lot 20, St. Augustine Beach Subdivision, at 610 A1A Beach Blvd, St. Augustine Beach, FL 32080, Scott Patrou, Ginn & Patrou, Agent for Applicant 610 A1A Properties LLC

Jennifer Thompson: The next item is a conditional use application to build a single-family residence in a commercial district located at 610 A1A Beach Boulevard. Directly east of this property, there is another single-family residence, as well as one diagonally from it. The property to the north of it is currently vacant. The applicant is here if you have any questions.

Scott Patrou: Good evening, Scott Patrou, 460 A1A. I appreciate your time. I'm the applicant on this. This is for a client of ours. She owns several properties in St. Augustine Beach. She purchased this property originally with the intent to do some sort of commercial development with it. And then as she started doing the planning and things, she kept running into issues with fitting it on the space. It's extremely difficult to do a commercial development on a single lot. The houses that you see directly to the east, those were all previously commercial as well. That whole block there was for sale at one point in time. And then they got sold off. And when the Conditional Use Permits were granted for those, to a degree, it really handicapped the ability... It left these odd parcels that are 60 feet wide. And so, she tried to do something, wasn't able to come up with a plan that worked and fit and met all the parking requirements. Then she listed it, sat for over a year as a commercial listing for a commercial lot with no one making offers on it. And so, I mentioned to her, I said, "The area that it's in right here, there's all houses to it right behind it. That whole strip is houses, so it's contiguous or it would flow with what's there." The Board's aware that it's difficult to do commercial development on a single toenail lot. And so, I said I'd be willing to bring it and see if we could get a conditional use and then maybe she can develop it for a house or move the lot that way. So, it's a product of being stuck, frankly. I know the Board, I know the Commission, everybody likes having business on the boulevard and I think that was everyone's intent. Again, once all the ones all around it were given the permits, it just leaves you with this one piece and it's just not economical to do much with it. In fact, they even had one group that was looking at it for a parking lot to just run a commercial parking lot and they ended up backing out. They're like, "We can't even get a parking lot in there, much less a business and a parking lot." So, it's just a tough spot. Happy to field any questions.

Conner Dowling: Does your client own the lot to the north or just the one lot?

Scott Patrou: Just the one lot.

Conner Dowling: Isn't the lot directly to the north, the Obi's Filling Station, isn't it on one single lot?

Scott Patrou: I think that it is, but for a long-time half their parking was in the lot behind it, and on the ones they built the house, they just built a house there in the same story.

Jennifer Thompson: From the aerial imagery, it does appear that the Obi's lot is slightly larger. It does seem slightly larger than these lots across the street. This was previously Obi's parking lot, and it is now a single-family residence.

Rhys Slaughter: Just a comment, not much of a question necessarily. Personally, the last thing I would like to see in a commercial area on A1A Beach is another three-story giant house. Not ideal, I get that. But we're also in a place now where property values are a whole different ballgame than they were when that business that we're talking about right now came into play and was established. And figuring out somebody that's going to come in and pay that amount of money for that lot, have 4 parking spaces, and think they're going to make a run at another restaurant or something like that. I think is not really feasible with that layout. If you just see the scope of the cars that are parked right there, even if you got 4 or 5 cars on there, you're going to have a place with 30 seats in it and they're going to probably be running into each other. And then we're going to be having a conditional use meeting about, "Hey, we want to get 50 tables and we have 4 parking spaces and what do we do?" So, my opinion on this is that it does wind up being kind of the best use of the lot at the current values of the lot. That's just my feeling.

Victor Sarris: Although you don't want to see another three-story, the feasibility dictates that that's probably the only practical thing.

Rhys Slaughter: That's my feeling on this.

Hester Longstreet: I don't see that. I'm sorry.

Hulsey Bray: I'd like to counter that. His office, I think, is on a pretty small lot and has very few parking spots. There are several businesses that don't need restaurant parking. A realtor or a title company, they only need 3 or 4. There's numerous businesses up and down the boulevard that are small, there's a graphics arts place right down there. They don't have a lot of traffic. There's a lot of smaller businesses that have less traffic. And I'd also like to note that there are 9 of these exact houses within two blocks of where they're proposing to build this one.

Scott Patrou: And I can offer some clarification, specifically to that piece. My office is on two and a half lot, or it was on 3 lots. And when we carved it up, we had to cut it out. So, it exceeds a lot by a fair margin, just to hit the bare minimum parking for our office. But it's a catch-22 that I think I've talked about in front of this board before. You can't submit a Conditional Use Permit without a house plan. The house plan that we

submitted, like to go get a house plan. It's a lot of money. So, the house plan that I submitted, they're clients and friends of mine. And I said, "Hey, I've got a client that's going in for a Conditional Use Permit. They need a house plan to submit that would fit on this lot. Can we borrow this house plan? Because the approval of the conditional use has no tie of that house plan to that lot." So, there's no present desire or intent of any kind to build that house plan on that lot. It was just one of my other clients being generous and saying, "Sure, you can use this for the submission."

Hester Longstreet: Same cookie-cutter houses now. St. Augustine Beach has become this cookie-cutter place instead of this cool place that it used to be 30 years ago. And St. Augustine Beach, we kept talking about it being a walkable place. And we've done all these walkability studies and everything. There's also a lot of people now, especially the ice cream shops and Obi's and Jack's and places like that. People are not parking there. The Taco Shop, people aren't parking there. They're walking there. They're going there. You don't need a big parking lot anymore. You just need a little space and people are going to walk there. You need something with a sign and something nice and bright. We're losing our commercial space and it's a shame that we have allowed it. Those spaces should not have gone residential. At least 2 of those houses should not be there. Those should have been commercial spots. And that's a shame. A shame on the Board or a shame on the Commission. And it's sad that we're losing all our commercial space. The little commercial space that we have, we need to keep.

Conner Dowling: To me, there's 3 things about this lot particularly, Scott, that make this hard. One is there's a lot immediately to the north that's vacant. It's easy to say, "Well, those two combined... yeah, you can do something." And I know you're not coming to us with that in your pocket. The second thing for me is immediately across the street is a setback hotel. If we had some retail or some mixed-use across the street that was up the street, I'd say, "Well, maybe it's okay to have some houses all the way up to the boulevard. To which that condition exists in other locations like F Street, for example." The fact that if we say yes to this for you, the point that makes it hard for this is that with the lot to the north, we're basically granting 2 conditional uses tonight for your one lot. The Board could say no to that one, for sure. But that would be a hard argument. While I think you're right that a restaurant or something would be hard, I also think if your client had something mixed-use like a project like down on D Street, where there was an apartment above, an office below. I would love to see that, because, just like Ms. Longstreet just said, we're counting these in single digits now. And making this decision sort of affects our boulevard for decades to come.

Scott Patrou: So, I would like to address a couple of the things that you said, and I get it. Frankly, as I think they would say, they feel like they're already in the position that you just stated that the other lot holder has because all the ones around them, like all the ones that are down a little bit further to the south on D Street and A Street and B Street, like all those that are on the west side of the boulevard, in fact, even my old office, they all sat on 2 lots, and it was the parking lot was in the front 50 or 60 feet, and then the building was on the back 50 or 60 feet. And so, like, man, it would be great if there was some of the ability to nab that north partial and extend it there, and that may be the

one possibility to develop this piece. It's just become a game of hot potato, because all the ones, all the depth where they've otherwise had, this board's given them the Conditional Use Permits, and so now they're just squeezed up against the outside. So I completely understand, and I just feel like they're kind of in that position now, and it's a last-ditch effort to save it, but it's like, I think the time to save this piece was back when you had the 150 feet, not the last 50 feet.

Hester Longstreet: You still have the other side. Whoever owns the piece right next to it, either they can combine it themselves, or one can sell to the other, or vice versa, they can join forces. If we give it to you, then suddenly, the next person that owns that property, well, then that's an automatic yes. We'd have to give it to them because we gave it to you. Then we've lost 2 spaces right there.

Scott Patrou: I don't think there's any precedent that's created by it.

Hester Longstreet: We would be sending a precedent right there. If we gave it to you, we would be not losing one lot, we would be losing two.

Scott Patrou: My question then, by that argument, why does the lot behind it that you gave it to, why does that same argument not apply to this lot?

Conner Dowling: This is on the boulevard.

Scott Patrou: Yeah, but I mean, that piece was...

Conner Dowling: Front-facing.

Scott Patrou: Yeah.

Scott Patrou: So, the only other comment I want to make is because you were talking about what's directly across the street from it. So, the courtyard is right there, but cut the corner to it, to the south there is where our new commercial development's going. That is going to be up against the boulevard, a big professional office. So as far as what's happening in that space, there is commercial development going on there. You've got the commercial development immediately to the north. But this entire piece here is going to be a big commercial development directly on the boulevard.

Conner Dowling: I remember you showing it to us.

Scott Patrou: So, you've got the final plans for that.

Conner Dowling: From my perspective and my experience as an architect, you have to think about this like a planner in a street section. That's what's hard for me. But I do, and I'm excited about that piece because, across the street from it is a condominium that's pushed 200 feet, or 150 feet from the street.

Scott Patrou: I just think the practical matter of it, it's great to talk about there being a shop there, but to what Rhys said, it's just not going to happen. Nobody's going to go put the money there. So, it would be great to have some cute shops there, but it's not going to happen. It's just going to sit as vacant land that people park cars in, throw trash in, or that stormwater piles up in because right now it's not going to get developed.

Conner Dowling: Situations like this are what drive owners to be creative and come to the Planning Department, the Commission, and say, "Hey, I want to do this, and I can't, let me off on some parking," or like, "Maybe it's time for us to look at our parking codes," or we have a different conversation. I think that's naturally how cities develop. There's a reason why it's zoned commercial.

Hester Longstreet: Partial on the bottom, and mixed-use. That would be a perfect place for mixed use and that wouldn't be a problem, but because we still have a commercial spot there. But to put a house, we're just killing our commercial viability.

Victor Sarris: Well, I think that we all would like to see something different than a home there. I understand that, but when you have something that's roughly 60 by 100, they'd have to be very creative. And there's probably going to be a variance. There's going to be considerations for parking, handicap parking, drainage issues that you don't have in a residential application. It is a stretch to say that there's something realistically feasible, monetarily viable that you're going to be able to put there. I don't want to shove that down everyone's throat tonight. If there's a possibility to do something like that, then let's look at it. But in the same sense, we could all be back here again saying the only thing we can put in there is a house and you must understand that. It's a real challenge to put something commercial, no matter how small it is with the requirements that we have on a 60 by 100.

Hester Longstreet: I don't see that. Look at how many small businesses are downtown St. Augustine.

Victor Sarris: I mean, there are small businesses down there, but whether they were grandfathered in a hundred years ago and they're using the same building or not, I don't know.

Scott Patrou: The other thing too is they've owned this lot for a while. They didn't just buy this lot last week and say, "Scott, go see if you can get this approved." This is something where they bought it. They looked at it. They own the mixed-use building across the street from my office. They're very familiar with the concept of utilizing mixed-use and they got drug through the mud on that one too. They understand the concepts and understand the challenges. They've tried to develop it. They said that they ran into a wall and it's not the same thing. They own these buildings. They know how stuff works. They know how to get creative with things. None of it worked. They listed it for sale, said, "Somebody else come give this a shot." Over a year it sat. So, this is not just some whimsical thought here. This is, "Hey, we've tried this. We're members of the community. We own a lot of property here. We've tried to come up with something."

Like I said, all the adjacent lots, except for the one behind it have already been granted these, that whole street is houses.

Conner Dowling: I mean, personally, if you presented us with 7 options and 7 reasons that didn't work, and visually I could look and agree with that. As someone who does this for a living, there's a lot of things you can do. Yet, there's a lot of regulations. There's a lot of rules, a hundred percent, but there's a lot of different ways to skin the cat. It's hard for me in my position just to say carte blanche like, "You can't do it." That's a difficult thing.

Victor Sarris: Although we certainly understand your position, to see a concrete concerted effort that we've tried this, it doesn't work, and then you present that to us. Maybe we can go back and say, "All right, well, these are the facts. They tried to put an ice cream shop there. They tried to put a retail shop there and due to these and these issues, it did not work." That's what it's going to take for these people to be able to do what they want to do. They need to really come back with some cold-hearted presentation on why it doesn't work.

Rhys Slaughter: I agree with that as well. I took what you were saying very much at face value. We tried X, Y, and Z, but not having that there, I think that would certainly play to their case to have it, but not knowing what those were or anything. It certainly does make total sense seeing that we did try X, Y, or Z, or that it was turned down for A, B, and C.

Scott Patrou: I understand that there are parameters around when a case can be reheard. Based on your comments, I'd rather be able to go back to them. Sounds like you're asking, "Hey, can you come back and show us an effort?"

Hester Longstreet: I wish you would come back in a month or two and come back with ideas of something commercial. We will work with you. Give us commercial ideas. "We would like to do this, this, this." I think the Board would work with the owner to come up with something viable to put on that piece of property for commercial use. It's just, we don't want to see another house.

Scott Patrou: I understand. I guess my request would be, and I'm actually familiar with the language as it is in here but is there a way, short of denial or approval where it's like, "Hey, we're going to withdraw." Can we withdraw?

Hester Longstreet: Can they come back in a couple of months with another idea?

Brian Law: This is a Conditional Use Permit for a single-family residence in a commercial sector. To bring in a commercial plan wouldn't work with this particular application. However, the Board has the authority to table this until another meeting. Keep in mind, you're making a recommendation tonight to the Commission for approval or denial because it is a single-family residence in the commercial. If he's to come back with a mixed-use development or a commercial development, it doesn't work with this current

application. Once again, I'm just going to reiterate one more time. This is a single-family residence in a commercial sector. If they wanted to use a mixed-use district, that would just be a separate application where the Planning and Zoning Board makes a final decision.

Scott Patrou: I think there's a slight miscommunication somewhere. I was understanding you to say to me that perhaps if there was evidence presented that they've already tried multiple things and not been able to do those things, it would be nice to know that they have tried and not just me saying they've tried.

Conner Dowling: Well, I think that we're doing this for your sake. I think the Board could make a motion to deny this application as you've written it. But for your sake, if you would like us to table it and you bring us some new information, we'd be willing and happy to do that.

Scott Patrou: True.

Conner Dowling: And if circumstances change and it ends up being a mixed-use and you're coming to us for some specific variance to that or something, that's fine. But I think like Brian Law was saying, that would be a different conditional use, or it would be a variance at that time versus a Conditional Use Permit.

Scott Patrou: It's still up to you all, but it would be to table it to allow me to go and gather some of the materials that they've put together in their initial plannings back before they listed it.

Conner Dowling: Would there be any interest from your perspective of them doing a mixed-use or something that's not just a residential property?

Scott Patrou: I don't know.

Victor Sarris: Just to repeat, they bought it, they knew it was commercial. The assumption would be, "Okay, we're buying it commercial. We have a plan to do this." They then looked at that, it didn't work. What is that plan? Did they look at 2 or 3 things? What are they?

Scott Patrou: Fair. I know the most recent one was a parking lot. There was a group trying to use our space, but they were trying to do a parking lot. And because there's no cut out there, because there's no lane there, it was like an 8, it wasn't a big parking lot. Then the parking lot company backed out and they were going to rent it for next to nothing. I'll go get what they tried to put there together. My request then would be to table it.

Motion: to table Conditional Use No, 2024-04. **Moved** by Conner Dowling, **seconded** by Victor Sarris, **passed 5-1** with Hester Longstreet dissenting.

MEMORANDUM

Agenda Item # 2
Meeting Date 5-4-26

TO: Mayor Sweeny
Vice Mayor Morgan
Commissioner Rumrell
Commissioner George
Commissioner Samora

FROM: Max Royle, City Manager mk

DATE: April 23, 2026

SUBJECT: Ordinance 26-05, Final Reading, to Amend the City Charter to Adopt Language Regarding Term Limits for City Commissioners

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The Ordinance is attached and with the amendment's language in both English and Spanish is ready for your final review and, if approved, forwarding to the Supervisor of Elections. The amendment will be on the ballot for the November 3, 2026, general election.

ACTION REQUESTED

It is that you hold the public hearing and approve Ordinance 26-05 on its final reading.

ORDINANCE NO. 2026-05

AN ORDINANCE OF THE CITY OF SAINT AUGUSTINE BEACH, FLORIDA, SUBMITTING TO THE ELECTORS OF SAINT AUGUSTINE BEACH PROPOSED AMENDMENTS TO THE CHARTER OF THE CITY OF SAINT AUGUSTINE BEACH; PROVIDING BALLOT TITLES, SUMMARIES AND TEXT FOR THE PROPOSED AMENDMENTS; PROVIDING DIRECTIONS TO THE CITY MANAGER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE FOR APPROVED AMENDMENTS; PROVIDING FOR AN EFFECTIVE DATE FOR THE ORDINANCE.

WHEREAS, pursuant to the City Charter, the City of Saint Augustine Beach established a Charter Review Committee to review the City Charter and make recommendations to the City Commission for proposed amendments thereto; and

WHEREAS, the Charter Review Committee reviewed, considered, studied, and analyzed the City Charter and received public input during its multiple public meetings; and

WHEREAS, on April 8, 2024, the Charter Review Committee submitted its final report, attached hereto as **Exhibit "A,"** with recommendations to the City Commission; and

WHEREAS, on April 8, 2024, following a public hearing wherein the City Commission reviewed the final report and recommendations, received public comment, the City Commission accepted the final report, modified certain proposed charter amendments, and directed the City Attorney to prepare an appropriate ordinance to place the proposed charter amendment before the registered voters of Saint Augustine Beach at the election to be held on November 3, 2026; and

WHEREAS, Section 166.031, *Florida Statutes,* provides that the governing body of a municipality may, by ordinance, submit to the electors of said municipality proposed amendments to its charter, which amendments may be to any part or to all of its charter except that part describing the boundaries of such municipality and other matters prohibited by general law; and

WHEREAS, the City Commission finds it to be in the best interests of its citizens to submit said proposed Charter amendments to the voters at the municipal election on November 3, 2026.

NOW, THEREFORE, BE IT ENACTED BY THE CITY OF SAINT AUGUSTINE BEACH, FLORIDA, AS FOLLOWS:

Section 1. The City Commission of the City of Saint Augustine Beach, pursuant to Section 166.031, *Florida Statutes,* hereby proposes and approves amendments to the Charter of the City of Saint Augustine Beach to be submitted to the electorate for consideration, which proposed amendments and the complete text thereof, as amended, are set forth in Section 3 below. Additions are shown with underlining, deletions are shown with strike through type, and asterisks (***) indicate an omission from the existing text which is intended to remain unchanged.

Section 2. Such election shall be held in conformity with the laws of the State of Florida and the Charter and ordinances of the City of Saint Augustine Beach now in force relating to elections in the City of Saint Augustine Beach. The Supervisor of Elections of Saint Johns County is hereby requested to coordinate all matters to said referendum election with the City Manager. The proposed charter amendments shall be submitted to the voters at the November 3, 2026, election.

Section 3. The proposed amendments, the ballot title, and the wording of the substance of the proposed amendments to the Charter, as contained in this Ordinance, shall appear on the ballot in the form of questions as follows:

CITY CHARTER AMENDMENT QUESTION #1: AMENDING WHEN COMMISSIONERS ASSUME OFFICE AND MINIMUM TERM LIMITATIONS.

A. Introduction.

This Charter amendment provides that each commissioner shall have a term limit of three (3) consecutive four (4) year terms with a limited exception for appointments to office, provides a restriction of a former commissioner from being elected or appointed to the commission for a period of two (2) years after concluding service on the commission, and removes unnecessary language relating to the 1968 election.

B. Ballot Proposal: The ballot title and question for Question# 2 are as follows:

In English:

ENACTING TERM LIMITATIONS FOR CITY COMMISSIONERS AND REQUIREMENTS FOR REELECTION OR APPOINTMENT OF FORMER COMMISSIONERS.

Amending the Charter by providing term limits for city commissioners of three consecutive four-year terms, providing an exception to the term limit in cases of appointment to the commission, deleting provisions no longer applicable, allowing a former commissioner to return to office by appointment or election two years after his or her last date of service on the commission, and providing an effective date.

Budget Director's estimated financial impact: NONE.

--- Yes

--- No

En Espanol:

ESTABLECIMIENTO DE LÍMITES DE MANDATO PARA LOS COMISIONADOS MUNICIPALES Y REQUISITOS PARA LA REELECCIÓN O NOMBRAMIENTO DE EXCOMISIONADOS.

Enmienda de la Carta Orgánica para establecer límites de mandato para los comisionados municipales de tres períodos consecutivos de cuatro años; establecer una excepción al límite de mandato en casos de nombramiento en la comisión; eliminar disposiciones que ya no son aplicables; permitir que un excomisionado regrese al cargo por nombramiento o elección dos años después de su última fecha de servicio en la comisión; y establecer una fecha de vigencia.

Budget Director's estimated financial impact: NONE.

____ Yes/Sí

____ No/No

C. **Text Revisions:** Article II, Section 2-3. (Underline text 1s added to the Charter and strikethrough text is removed).

Article II, Section 2-3

~~In the primary election and in the general election to be held in 1968, and in each primary election and in each general election thereafter,~~ The candidates for city commission shall run in five (5) groups, designated as Groups One, Two, Three, Four and Five, and each voter may vote for one candidate in each group. Groups One and Two will be voted on in Presidential election years. Groups Three, Four, and Five will be voted on in off-year election cycles. ~~In the general election in 1968, the successful candidates in Groups One and Two shall be elected for a full term of four (4) years, and the successful candidates in Groups Three, Four and Five shall be elected for a full term of two (2) years. Commencing with the election to be held in 1970, and in elections thereafter, the successful candidates in Groups Three, Four and Five shall be elected for a full term of four (4) years. Commencing with the election to be held in 1972, and in each election thereafter, the~~ All successful candidates ~~in Groups One and Two shall be elected for a full~~ shall serve a term of four (4) years. No city commissioner may serve more than three (3) consecutive four (4) year terms; however, an appointment to fill a vacancy on the city commission as a result of the death, resignation or disqualification of a city commissioner shall toll the limitation of three (3) consecutive four (4) year terms until that commissioner is a

successful candidate in his or her election. A former city commissioner may return to office by appointment or election if said person has not served on the city commission for a period of two (2) or more years. Calculation of term limits for currently sworn in city commission as of November 3, 2026, shall start with each Group's first election held after the November 3, 2026, general election. By way of example, if a sitting commissioner sworn in at the time of passage of the November 3, 2026, Charter Amendment runs for reelection in the 2028 election cycle, that certain commissioner could not serve more than three (3) consecutive four (4) year terms from the 2028 election cycle.

D. Financial Analysis and Impact:

Based on information provided by the Budget Director, the cost of the proposed amendment is approximately NONE.

Section 4. The City Manager is hereby directed to ensure that all advertising, translation, and notice requirements are complied with and to coordinate all activities necessary to conduct the election called for in Section 2 of this Ordinance with the Supervisor of Elections for Saint Johns County.

Section 5. If any section, subsection, sentence, clause, phrase, or portion of this Ordinance is for any reason held invalid or unconstitutional by any court of competent jurisdiction, such portion shall be deemed a separate, district, and independent provision and such holding shall not affect the validity of the remaining portion hereto. Further, the lack of approval by a majority of electors of one or more separate amendments to this Charter, as set forth in Section 2 herein, shall not be deemed to affect the validity of any amendments that may be approved by a majority of the electors.

Section 6. This Ordinance shall take effect immediately upon approval by the City Commission. The revised Charter provisions proposed for approval in this Ordinance shall become effective upon their approval at a referendum election of the electors of the City of Saint Augustine Beach and in accordance with Section 166.031, *Florida Statutes*. If the electors reject a proposed amendment, the rejected amendment shall not take effect.

PASSED by the City Commission of the City of St. Augustine Beach, Florida, this day of _____, 2026.

_____
Beth Sweeny, Mayor

ATTEST:

_____
City Manager

Agenda Item # 3

Meeting Date 5-4-26

M E M O R A N D U M

TO: MAX ROYLE, CITY MANAGER

FROM: PATTY DOUYLLIEZ, FINANCE DIRECTOR

SUBJECT: BUDGET RESOLUTION 26-07

DATE: 4/13/2026

The attached budget resolution is needed to allocate reserves for prior year carryover expenditures paid in the current fiscal year. The unused funds were rolled into reserves at the close of the fiscal year.

BUDGET RESOLUTION 26-07

CITY OF ST. AUGUSTINE BEACH
ST. JOHNS COUNTY

RE: TO AMEND THE FY2026
STORMWATER FUND BUDGET

The City Commission does hereby approve the transfer and appropriation from within the Fiscal Year 2025-2026 General Fund Budget as follows:

INCREASE: Account 105-3800-538-3400 (Stormwater-Oth Contract Svc) in the amount of $200 which will increase the appropriation in this account to $26,851.

INCREASE: Account 105-3800-538-4100 (Stormwater-Telephone) in the amount of $91 which will increase the appropriation in this account to $608.

INCREASE: Account 105-3800-538-4310 (Stormwater-Electricity) in the amount of $1,254 which will increase the appropriation in this account to $25,484.

INCREASE: Account 105-3800-538-4680 (Stormwater-Electricity) in the amount of $88,754 which will increase the appropriation in this account to $303,754.

INCREASE: Account 105-381-000 (Transfer from Stormwater Reserves) in the amount of $90,299 which will increase the appropriation in this account to $90,299.

RESOLVED AND DONE, this 4th day of May 2026 by the City Commission of the City of St Augustine Beach, St. Johns County, Florida.

_____
Mayor – Commissioner

ATTEST:

_____
City Manager\

Agenda Item # 4
Meeting Date 5-4-26

City of St. Augustine Beach

2200 A1A South
St. Augustine Beach, FL 32080
www.staugbch.com

Memorandum

Date: April 13, 2026

From: Jason D. Sparks, P.E., City Engineer

To: Max Royle, City Manager
Patty Douylliez, Finance Director
Russell Adams, Public Works Director

Subject: FDEP Grant Agreement L0108 - 25RCP08 St. Augustine Beach Oceanside Circle Roadway Resiliency / Floodwater Mitigation System -- Budget Resolution

Amendment #1 to grant agreement number L0108 between the Florida Department of Environmental Protection and the City of St. Augustine Beach was executed on April 3, 2026. The amendment enables the city to modernize the Linda Mar stormwater pump station this fiscal year.

The overall grant funding amount is $1,500,000. The approved FY2026 design & permitting phase budget funding amount is $165,000. Staff requests the FY2026 budget be increased by $150,000.

Recommended Action

City Commission approve a budget resolution to increase the FY2026 Stormwater Fund Account ID# 105-3800-538-6380 by $150,000.

BUDGET RESOLUTION 26-08

CITY OF ST. AUGUSTINE BEACH
ST. JOHNS COUNTY

RE: TO AMEND THE FY2026
STORMWATER FUND BUDGET

The City Commission does hereby approve the transfer and appropriation from within the Fiscal Year 2025-2026 General Fund Budget as follows:

INCREASE: Account 105-3800-538-6380 (Stormwater-Drainage) in the amount of $150,000 which will increase the appropriation in this account to $1,536,363.

INCREASE: Account 105-334-100 (Stormwater-State Grant Government) in the amount of $150,000 which will increase the appropriation in this account to $1,426,363.

RESOLVED AND DONE, this 4th day of May 2026 by the City Commission of the City of St Augustine Beach, St. Johns County, Florida.

_____
Mayor – Commissioner

ATTEST:

_____
City Manager\

Agenda Item # 5

Meeting Date 5-4-26

City of St. Augustine Beach

2200 A1A South
St. Augustine Beach, FL 32080
www.staugbch.com

Memorandum

Date: April 23, 2026

From: Jason D. Sparks, P.E., City Engineer JDS

To: Max Royle, City Manager
Russell Adams, Public Works Director

Subject: 100 Block of 4th Street – Parcel Owner Votes

Background

During the July 2025 Commission Meeting, the City Commission approved $65,000 from the City's road impact fees to fund the design and permitting of a new roadway and infrastructure on 4th Street between 2nd Avenue and A1A Beach Boulevard. The City has received 100% plans and the engineer's estimated construction cost is $641,000.

Historically, the City has required support from at least two-thirds (2/3) of affected parcel owners before proceeding with construction and levying a special assessment. Staff sent letters via certified mail on February 13 and March 12, 2026 to the 6 parcel owners (8 parcels total) along the 100 block of 4th Street requesting their vote about whether roadway, utility and drainage construction should move forward.

As of April 4, 2026, four parcel owners had responded, two "Yes" votes and two "No" votes.

During the April 4, 2026 City Commission meeting, Commission directed staff to follow up with the two parcel owners who had not responded. Staff followed up and the two remaining parcel owners did not provide a clear "Yes" or "No" response. One response was "an official request for the addition of a roadway with improvements to 4th street" and the other is "generally supportive of the concept of paving Fourth Street" and "support is conditioned on the project being paid for by the City and not shifting costs to adjacent property owners or other private parties." See email responses, Exhibits F&G.

Responses (See Exhibits A-G):

- 2 - Yes
  - HVG Properties (STRAPs: 1692400090, 1692400070)
  - James and Charlene Scheideman - STRAP: 1692400150
- 2 – No
  - Rob Taylor - STRAP: 1692400110
  - Kevin & JoAnn Vahey (STRAPs: 1693100000 & 1692700000)
- 2 – Unclear/conditional or "not a yes" response
  - Eric Kinney - STRAP: 1692400130

City of St. Augustine Beach
2200 A1A South
St. Augustine Beach, FL 32080
www.staugbch.com

EXHIBIT G

From: Scott M. Patrou, Esq. <spatrou@ginnpatrou.com>
Sent: Thursday, April 16, 2026 10:44:43 AM
To: Jason Sparks <jsparks@cityofsab.org>
Subject: 4th Street

CAUTION: This message originated from outside of your organization. Clicking on any link or opening any attachment may be harmful to your computer or the City. If you do not recognize the sender or expect the email, please verify the email address and any attachments before opening. If you have any questions or concerns about the content, please contact IT staff at IT@cityofsab.org.

Dear Mr. Sparks,

I am writing regarding the proposed paving of Fourth Street in St. Augustine Beach. We are generally supportive of the concept of paving Fourth Street and believe that a properly executed project could be a benefit to the area.

That said, our support is not intended as a blanket approval of construction at any cost. Before moving forward, we would appreciate the opportunity to further discuss how the City intends to fund the construction. In particular, it is important to us to understand whether the City plans to fully fund the project, as our support is conditioned on the project being paid for by the City and not shifting costs to adjacent property owners or other private parties.

We look forward to continuing a constructive dialogue on this issue and would welcome a discussion at your convenience to better understand the funding approach and next steps.

Thank you for your time and consideration.

Sincerely,

GINN PATROU
ATTORNEYS

Scott Patrou
Partner
Florida Bar No: 106138
p: 904-461-3000 f: 844-730-9828
a: 460 A1A Beach Blvd., St. Augustine, FL 32080
e: spatrou@ginnpatrou.com
w: www.ginnpatrou.com

City of St. Augustine Beach
2200 A1A South
St. Augustine Beach, FL 32080
www.staugbch.com

EXHIBIT F

From: Eric Kenney <infill.lots@gmail.com>
Sent: Tuesday, April 7, 2026 3:50 PM
To: PWD Admin <pwdadmin@cityofsab.org>
Cc: Jason Sparks <jsparks@cityofsab.org>
Subject: 4th street road addition

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Jason
please use this email as my official request for the addition of a roadway with improvements to 4th street, St Augustine Beach

Eric Kenney
125 5th street
St Augustine FL 32080

City of St. Augustine Beach
2200 A1A South
St. Augustine Beach, FL 32080
www.staugbch.com

EXHIBIT E

From: Saint Augustine Beach FL <noreply@civicplus.com>
Sent: Saturday, April 4, 2026 8:36 AM
To: Max Royle <mroyle@cityofsab.org>
Subject: 4th Street extension

CAUTION: This message originated from outside of your organization. Clicking on any link or opening any attachment may be harmful to your computer or the City. If you do not recognize the sender or expect the email, please verify the email address and any attachments before opening. If you have any questions or concerns about the content, please contact IT staff at IT@cityofsab.org.

Name: Kevin Vahey
Email: Joannvahey@gmail.com

Message:

Max, As we discussed we own parcels 169270-0000 & 169310-0000. We get 2 separate tax bills. We have multiple residential and Commercial lots and believe we should have multiple votes. We have been maintaining the existing roadway for over 30 years. We are opposed to any contributions for the cost of road improvements. We will be attending Mondays meeting.

Kevin and JoAnn Vahey

City of St. Augustine Beach
2200 A1A South
St. Augustine Beach, FL 32080
www.staugbch.com

EXHIBIT D

From: Jim S <motoaloha@hotmail.com>
Sent: Sunday, March 22, 2026 9:42 PM
To: PWD Admin <pwdadmin@cityofsab.org>
Cc: James S <motoaloha@hotmail.com>
Subject: 100 Block 4th Street Improvements

CAUTION: This message originated from outside of your organization. Clicking on any link or opening any attachment may be harmful to your computer or the City. If you do not recognize the sender or expect the email, please verify the email address and any attachments before opening. If you have any questions or concerns about the content, please contact IT staff at IT@cityofsab.org.

Good Evening,

On Friday, March 20th we received your certified letter regarding potential improvements to the 100 block of 4th Street.

Yes, we would like the City Commission to consider moving forward with this project, and we look forward to future discussions and cost-share details.

Kind Regards,

James & Charlene Scheideman

130 4th Street

904-209-9390

EXHIBIT C

From: Rob Taylor <rob@2traveldads.com>
Sent: Wednesday, February 18, 2026 11:37 AM
To: PWD Admin <pwdadmin@cityofsab.org>
Cc: Jason Sparks <jsparks@cityofsab.org>; Husband Husband <taylorchriso@gmail.com>
Subject: 100 block of 4th Street - NO

CAUTION: This message originated from outside of your organization. Clicking on any link or opening any attachment may be harmful to your computer or the City. If you do not recognize the sender or expect the email, please verify the email address and any attachments before opening. If you have any questions or concerns about the content, please contact IT staff at IT@cityofsab.org.

Today we received the certified letter asking for input on the development of the 100 block of 4th Street. We vote vehemently NO and would NOT benefit from this development and we OPPOSE this proceeding.

We are already greatly impacted by the Tides Oyster House at 4th & Beach Blvd and its extreme noise and uncontrollable/irresponsible traffic, and have reported this to the city commission (written form and many police reports to St Johns County Sherriff) with no action to deal with it, and developing 4th Street will only make our neighborhood more unsafe due to the parking overflow, the foot traffic and the continual post 10pm noise disturbances.

Also, the environmental impact of developing this stretch would be very negative on the listed-endangered Anastasia Beach Mouse (present and SEEN in this sandy habitat). We have a large amount of wildlife in this small patch of dune pathway that includes rabbits, snakes, armadillos and the noted mouse.

Thank you for our input and we will be present at whatever public meeting there is where we can provide input.

Rob Taylor, founder + editor
2TRAVELDADS giving the kids a broad world view

2TravelDads: the original LGBT family travel blog
MyAlaskaTrip: THE resource for planning unforgettable Alaska travel
TheKeysExplored: the insider guide to Florida Keys travel
MyAlohaTrip: meaningful travel guidance for visiting Hawaii
MaineExplored: lobstering, lighthouses & sustainable travel

author of the *Road Trip Survival Guide* and the *Ultimate Travel Journal for Kids*
Member of *IGLTA*: International LGBTQ Travel Assoc | *OWAA*: Outdoor Writers Assoc of America
substack | instagram | facebook

City of St. Augustine Beach
2200 A1A South
St. Augustine Beach, FL 32080
www.staugbch.com

EXHIBIT B

From: Vince Groome <vgroome1206@gmail.com>
Sent: Monday, February 23, 2026 4:47 PM
To: PWD Admin <pwdadmin@cityofsab.org>
Subject: 100 Block of 4th Street Parcel Owners

CAUTION: This message originated from outside of your organization. Clicking on any link or opening any attachment may be harmful to your computer or the City. If you do not recognize the sender or expect the email, please verify the email address and any attachments before opening. If you have any questions or concerns about the content, please contact IT staff at IT@cityofsab.org.

Hello, I received a letter regarding roadway, drainage and utility improvements on 4th St. I own two parcels in this area and yes, I would like the city commission to consider moving forward with this project. Please let me know if you need anything else.

Thanks,

Vince Groome

Owner, HVG Properties, LLC

** PLEASE NOTE: Under Florida Law, most messages to or from this individual are public record. Any emails, including email address may be subject to public disclosure. **

City of St. Augustine Beach
2200 A1A South
St. Augustine Beach, FL 32080
www.staugbch.com

EXHIBIT A



Yes: Green

No: Red

- Sent via email an "official request for the addition of a roadway with improvements to 4th street"

o Ginn & Patrou Holdings, LLC – STRAP: 1692400010

- Sent via email "generally supportive of the concept of paving Fourth Street" and "support is conditioned on the project being paid for by the City and not shifting costs to adjacent property owners or other private parties."

Parcel owner "Yes" votes remain at 33.3%.

Additionally, on past similar street projects, construction costs have typically been shared between the City and benefiting parcel owners. Most recently, the 200 block of 2nd Street was constructed with two-thirds (2/3) of the construction cost paid by benefiting parcel owners through a special assessment, amortized over a six-year period, and one-third (1/3) of the construction cost funded by the City.

Requested Action

City staff requests that the City Commission provide direction on how it would like to proceed with the 100 block of 4th Street project.

Potential Discussion Topics, in this order:

1. Project status with less than two-thirds "Yes" vote from affected parcel owners
2. Cost Sharing Between Parcel Owners and City
3. Construction Funding Source
4. Fiscal Year funding
5. Direct Staff to Solicit Proposals from Contractors to Construct the Roadway and Infrastructure

MEMORANDUM

Agenda Item # 6
Meeting Date 5-4-26

TO: Mayor Sweeny
Vice Mayor Morgan
Commissioner Rumrell
Commissioner George
Commissioner Samora

FROM: Max Royle, City Manager mk

DATE: April 22, 2026

SUBJECT: Regulating the Operation of E-Bikes in the City: Review of Provisions for an Ordinance

---

At your April 6th meeting, you discussed regulating e-bikes. The outcome was your direction to staff to begin drafting ordinance language reflecting that discussion.

Attached from the City Attorney are proposed regulations for an e-bike ordinance. We ask that you review the regulations with him. Based on the review, he can prepare an ordinance for first reading at your June 9th meeting.

A copy of the attached was sent to Chief Carswell.

ORDINANCE 2026-__

AN ORDINANCE OF THE CITY ST. AUGUSTINE BEACH, FLORIDA, AMENDING CHAPTER 19, TRAFFIC, ARTICLE I, IN GENERAL, CREATING SECTION 19-4 OF THE CODE OF ORDINANCES OF THE CITY OF ST. AUGUSTINE BEACH TO PROVIDE FOR THE USE AND OPERATION OF BICYCLES, ELECTRIC BICYCLES, OFF-ROAD ELECTRIC MOTOR-DRIVEN CYCLES; AMENDING CHAPTER 19, TRAFFIC, ARTICLE IV PUBLIC SIDEWALKS AND WALKWAYS, SECTION 19-6 TO PROVIDE CONSISTENCY, PROVIDING FOR SEVERABILITY, CODIFICATION, CONFLICTS, AND AN EFFECTIVE DATE.

WHEREAS, the City of St. Augustine Beach is granted authority, under §2(b) Article VIII, of the State Constitution, to exercise any power for municipal purposes, except when expressly prohibited by law; and

WHEREAS, the City Commission desires to adopt an ordinance controlling and regulating the operation of Bicycles, Electric Bicycles, Off-Road Electric Motor-Driven Cycles, as those terms are defined herein, within the City of St. Augustine Beach; and

WHEREAS, Section 316.008, Florida Statutes, Powers of local authorities, permits local authorities to regulate and exercise police powers with respect to streets and highways within their jurisdictions; and

WHEREAS, Section 316.20655, Florida Statutes, Electric bicycle regulations, permits a local government to adopt an ordinance governing the operation of electric bicycles on streets, highways, sidewalks, sidewalk areas, including bike paths, multiuse paths, and trail networks under the local government's jurisdiction, and to establish minimum age requirements and require government-issued photographic identification for electric bike operators; and

WHEREAS, the City of St. Augustine Beach finds adopting an Ordinance will aid in establishing an efficient and safe environment for the public use of city pathways, streets, sidewalks paths and trails; and

WHEREAS, the City Commission of the City of St. Augustine Beach, Florida, hereby finds this Ordinance to be in the best interest of the public health, safety, and welfare of its citizens.

WHEREAS, words with <u>underlined</u> type shall constitute additions to the original text and ~~strike through~~ shall constitute deletions to the original text, and asterisks (***) indicate that text shall remain unchanged from the language existing prior to adoption of this Ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COMMISSION OF THE CITY OF ST. AUGUSTINE BEACH THAT:

SECTION 1. LEGISLATIVE AND ADMINISTRATIVE FINDINGS.

The above recitals (whereas clauses) are hereby adopted as the legislative and administrative findings of the City Commission. Further, it is the intent of this section to, under certain circumstances, authorize municipal regulation of the operation of electric bicycles, off-road electric motor-driven cycles within the City's jurisdiction. Adoption of this section shall not be relied upon as a determination the operation of electric bicycles, electric powered cycles and/or any other vehicle or device on roads is safe or advisable. All persons operating the devices described herein do so at their own risk, and must be observant of, and attentive to, the safety of themselves and other motorists, cyclists and pedestrians.

SECTION 2. AMENDMENT TO CHAPTER 19 OF THE CITY OF ST. AUGUSTINE BEACH ORDINANCES

SECTION 19-4: REGULATION OF BICYCLES AND CERTAIN MOTORIZED VEHICLES

(a) Definitions. In this section:

1. BICYCLE means a vehicle propelled solely by human power, having two tandem wheels, and including any device generally recognized as a bicycle though equipped with two front or two rear wheels. The term does not include a scooter or similar device.

2. BICYCLE LANE means any portion of a roadway or highway which is designated by pavement markings and signs for preferential or exclusive use by bicycles.

3. BICYCLE PATH means any road, path, or way open to bicycle travel, which road, path, or way is physically separated from motorized vehicular traffic by an open space or by a barrier and is located either within the highway right-of-way or within an independent right-of-way.

4. CITY OWNED means

   a. Property in which the City has a property interest, such as fee simple ownership or an easement, and

   b. Property in which the City maintains regardless of ownership, such as rights-of-way which are in incorporated areas but are maintained by the City.

5. CROSSWALK means:

a. Part of a roadway at an intersection included within the connections of the lateral lines of the sidewalks on opposite sides of the highway, measured from the curbs or, in the absence of curbs, from the edges of the traversable roadway.

b. Any portion of a roadway at an intersection or elsewhere distinctly indicated for pedestrian crossing by lines or other markings on the surface.

6. DAYTIME means the period from a half hour before sunrise to a half hour after sunset. The term NIGHTTIME means at any other hour.

7. ELECTRIC BIKE or E-BIKE- means a bicycle or tricycle equipped with fully operable pedals, a seat or saddle for the use of the rider, and an electric motor of 750 watts or less. This term includes devices defined as electric bicycles pursuant to §316.003(23), Fla Stat., as may be amended. E-BIKES are divided into three general classes:

a. Class 1: E-bikes are pedal-assisted only, with no throttle, and have a maximum assisted speed of 20 miles per hour.

b. Class 2: E-bikes having a maximum speed of 20 miles per hour, but are throttle-assisted.

c. Class 3: E-bikes which are pedal-assisted only, with no throttle, and a maximum assisted speed of 28 miles per hour.

Any and all E-bikes shall not have any throttle-assistance above 20 miles per hour.

All E-bikes shall have a permanently affixed label that contains the classification number, top assisted speed, and motor wattage pursuant to §316.20655(3), Fla Stat.

8. OFF-ROAD ELECTRIC MOTOR-DRIVEN CYCLE means any motor vehicle having a seat or saddle for the use of the rider and designed to travel on not more than three wheels in contact with the ground. This vehicle has no pedals or has a motor that exceeds 750 watts or is powered by an electric motor which may exceed speeds of 28 miles per hour. These vehicles are best understood as off-highway motorcycles (Dirt bikes) as defined by 317.0003(5), Fla. Stat. and powered by an electric engine, which was not designed for and are not authorized to operate on roadways.

9. RIDER OR OPERATOR means a person riding, driving, or otherwise operating a Bike, E-Bike, or Electric Cycle.

10. RIGHT OF WAY means land devoted to or required for use as a roadway, sidewalk, or other associated feature, and includes, without limitation, (i) all existing or dedicated road rights-of-way and (ii) all proposed dedications of road rights-of-way set forth on official grading and drainage plans approved pursuant to plats.

11. ROAD means a road, street, or highway or designated segment thereof in the incorporated area of the City, pursuant to F.S. ch. 316.

12. SIDEWALK means the portion of a right-of-way between the curbline, or the lateral line, of a roadway and the adjacent property lines, intended for use by pedestrians.

13. GOVERNMENT ISSUED PHOTOGRAPHIC IDENTIFICATION means a driver license, passport, military ID, school ID, identification card issued under ch. 322, Fla. Stat. or comparable government ID displaying an individual's name, date of birth, and photograph.

(b) Proper usage and Prohibitions

1. Bicycles

   a. Bicycles shall be operated consistent with §316.2065, Bicycle regulations, except as otherwise provided in this section. Bicycles may be operated on bicycle lanes, bicycle paths, roadways, and sidewalks consistent with this ordinance. When operating on roadways, bicycle operators shall comply with all traffic regulations.

   b. Every bicycle operated at nighttime shall be equipped with a lamp on the front exhibiting a white light visible from a distance of at least 500 feet to the front and a lamp and reflector on the rear, each exhibiting a red light visible from a distance of 600 feet to the rear. All safety lights shall be on and operational when used at nighttime.

2. Electric Bike or E-Bike

   a. E-Bikes shall be operated consistent with §316.2065, Bicycle regulations, and §316.20655, Electric Bicycle regulations. E-Bikes may be operated on bicycles lanes, bicycles paths, and roadways consistent with this ordinance. When operating on roadways, E-Bike operators shall comply with all traffic regulations. When operating on bike paths, E-bike operators shall comply with all pedestrian traffic signs and intersection signalization.

   b. It is unlawful to operate an E-Bike in a bicycle lane, bicycles path, right-of-way, and roadways in an unsafe and reckless manner to include but not limited to

failure to yield, failure to slow when passing pedestrians, failure to give an audible signal when passing, failure to operate with due care, and excessive speed. The operation of an E-Bike that produces more than 750 watts of power is prohibited on the roadways, sidewalks, right-of-ways, bicycles paths, and bicycles lanes within the jurisdiction of the City of St. Augustine BeachSt. Augustine Beach.

c. Removal of pedals from E-Bikes and/or modification to the propulsion system either physically or via software prohibits the use of an E-bike within the jurisdiction of the City of St. Augustine BeachSt. Augustine Beach. The E-bike shall display the manufacturer's class label consistent with §316.20655(3), Fla Stat. Tampering that alters class characteristics without relabeling is prohibited pursuant to §316.20655(3), Fla Stat.

d. E-Bikes operated at nighttime shall be equipped with a lamp on the front exhibiting a white light visible from a distance of at least 500 feet to the front and a lamp and reflector on the rear each exhibiting a red light visible from a distance of 600 feet to the rear. All safety lights shall be on and operational when used at nighttime.

e. A person operating an E-Bike across a roadway upon and along a crosswalk, shall yield the right-of-way to any pedestrian and shall give an audible signal before overtaking and passing such pedestrian pursuant to §316.206(10), Fla. Stat.

f. No person under 11 years of age may operate an E-Bike on any road, right-of-way, bicycle lane, bicycle path, sidewalk, or other City-owned property. Nothing herein prohibits a minor under the minimum age from riding as a passenger on an Electric Bicycle designed and equipped for a passenger in compliance with §316.2065, Fla. Stat.

g. Passengers are prohibited on electric bicycles unless the bicycle is specifically equipped with a designated passenger seat and meets all applicable safety standards under Florida Statutes §316.2065 and §316.20655.

h. Any person operating an E-Bike shall carry a government-issued photographic identification and shall present such identification upon lawful request of a law enforcement officer.

i. Within posted school zones when flashing, and within 50 feet of any marked crosswalk or intersection corner, an E-bike operator shall slow to pedestrian speed and yield to pedestrians. Pedestrian speed is considered a speed not exceeding 5 miles per hour or slow enough for the operator to yield to pedestrians and stop within a short distance to avoid conflict.

3. Helmet Requirements

   a. An operator or passenger under 16 years of age on a Bicycle or Electric Bicycle must wear a properly fitted, securely fastened bicycle helmet upon the operator's or passenger's head that meets the federal safety standard for bicycle helmets, final rule, 16 C.F.R. part 1203. A parent or legal guardian may not knowingly permit a child under 16 years of age to violate this subsection.

4. Off-Road Electric Motor-Driven Cycles

   It shall be unlawful for any person to operate an Off-Road Electric Motor-Driven Cycle on:

   a. On any Bike Lane within the City;
   b. On any Bike Path within the City;
   c. On any City owned or controlled property including parks;
   d. On any City owned or maintained right of way;
   e. In any public space or pathway within the City;
   f. On any roads or crosswalk within the City;
   g. On any sidewalk or public pathway within the City.

   Such devices may operate only on private property with owner consent

(c) **Penalties** The following civil and criminal penalties may be assessed by administrative or judicial process.

1. Bicycle and E-Bike. In addition to other penalties authorized herein or by statute, a person who violates this Section may be administratively or judicially assessed a civil penalty of up to $100 for each violation.

2. Off-Road Electric Motor-Driven Cycle. In addition to other penalties authorized herein or by statute, a person who violates this Section may be administratively or judicially assessed a civil penalty of up to $100 for each violation. Further, Law enforcement officers are authorized to remove and impound a vehicle found in violation of this Section. No vehicle impounded as provided in this section shall be released therefrom until:

   a. The charges for towing such vehicles to the impound lot, storage, and administrative fees have been paid;

   b. Proper proof of ownership has been exhibited; and

   c. Any hold which has been placed upon the vehicle by law enforcement has been removed by law enforcement.

(d) **Enforcement.** This Article shall apply to and be enforced within the City of St. Augustine Beach. The Chief of Police shall be responsible for enforcement of the provisions of this Article. It is a violation of this Article for any person to resist, obstruct, hinder, or interfere with the Chief of Police or his/her designee in the enforcement of this Article. Any person who willfully refuses to sign and to accept a warning notice of violation or a written citation issued by a law enforcement officer shall be guilty of a misdemeanor of the second degree.

SECTION 19-66: Use of sidewalks and certain other rights-of-way.

(a) All public sidewalks, pedestrian pathways, courtyards, arcades, promenades, seawalls, and boardwalks shall be only available for use by pedestrians or non-motorized or non-electric bicycles, as defined in Section 19-4, except for the following:

(1) Those areas under the control of the federal government or the state of Florida. Department of Transportation (FDOT), in which cases, those regulations shall apply;

(2) Shared use paths, as designated by the city manager, and marked by signage, shall be open to all restricted vehicles or devices; and

(b) Restricted vehicles or devices shall include:

(1) Electronic personal assistive mobility devices, regulated pursuant to F.S. § 316.2068, colloquially known as Segways.

(2) Bicycles, including, but not limited to, electric bicycles or motorized bicycles;

(3) Push scooters, roller skates, rollerblades, inline skates, skateboards, and other similar devices without any motorized parts; and

(4) Electronic or motorized scooters (hereinafter referred to as e-scooters), as defined by the Florida Uniform Traffic Control Law.

(c) Prohibited vehicles or devices shall include:

(1) Shared mobility devices, unless operating on motor vehicle traffic lanes where allowed by the Florida Uniform Traffic Control Law;

(d) If any restricted vehicle or device is specifically permitted to be used on sidewalks or other rights-of-way controlled by the state or federal government and allowed by the Florida Uniform Traffic Control Law (FUTCL), it shall not be a violation of this chapter to do so, notwithstanding the above provisions. Individuals utilizing mobility devices pursuant to the Americans with Disabilities Act (ADA) may operate those devices on any city street, sidewalk, or walkway.

(e) Any restricted vehicles or devices left unattended on public property, including in parks and rights-of-way of the FDOT or the City of St. Augustine Beach may be impounded by the chief of police or his or her designee. A restricted vehicle or device is not considered unattended if it is

secured in a designated bicycle parking area or another location or device intended for the purpose of securing such devices.

(f) Any violation of this Section shall be punishable as provided in Section 19-4(c)

SECTION 3. SEVERABILITY.

It is hereby declared to be the intention of the City Commission the sections, paragraphs, sentences, clauses, and phrases of this Ordinance are severable and if any phrase, clause, sentence, paragraph, or section of this Ordinance shall be declared unconstitutional by the valid judgment or decree of a court of competent jurisdiction, such unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs, or sections of this Ordinance.

SECTION 4. CODIFICATION.

It is the intention of the City Commission of the City of St. Augustine Beach, Florida, and it is hereby ordained the provisions of this Ordinance shall become and be made a part of the Code of Ordinances of the City of St. Augustine Beach, Florida; the Sections of this Ordinance may be renumbered or re-lettered to accomplish such intention; and the word "Ordinance" may be changed to "Section," "Article" or other appropriate word. The Code codifier is granted liberal authority to codify the provisions of this Ordinance.

SECTION 5. CONFLICTS.

All prior ordinances and resolutions or parts thereof in conflict with this Ordinance are hereby repealed to the extent of such conflict.

SECTION 6. EFFECTIVE DATE.

This Ordinance shall become effective immediately upon its passage and adoption.

APPROVED upon first reading on the ____ day of _____ 2026.

Adopted on the second reading after due public notice and hearing on this ____ day of ____2026.

ATTEST

_____ _____

DARIANA FITZGERALD,
CITY CLERK

BETH SWEENY, MAYOR

APPROVED AS TO FORM AND LEGALITY:

_____

JOHN STEINMETZ, ESQ.
CITY ATTORNEY

* * *

Agenda Item # 7
Meeting Date 5-4-26

MEMORANDUM

TO: Mayor Sweeny
Vice Mayor Morgan
Commissioner George
Commissioner Samora
Commissioner Rumrell

FROM: Max Royle, City Manager mk

DATE: April 20, 2026

SUBJECT: Review of Long-Range Financial Report and Related Matters

---

INTRODUCTION

Section 2-106 of the City Code states:

(a) The city manager shall initiate a continuing program of long-range financial planning.

(b) The plan shall forecast both estimated revenues and proposed expenditures for a minimum of five (5) years.

(c) The plan shall be submitted to the city commission at its regular meeting in May of each year, so that the city commission can review it before the review of the next fiscal year's budget is done

THE LONG-RANGE PLAN

As prepared by the Finance Director, the plan is attached as pages 1-10. You'll note that for contrast it provides a review of past revenues, expenditures and fund balances. Those figures are accurate because of the record. What is difficult is forecasting revenues, expenditures and fund balances for the next five fiscal years as they will be affected by the following:

- the likelihood of higher than normal inflation
- Increases in insurance premiums, especially for health insurance
- new unfunded mandates imposed by the state
- what property tax reductions may be proposed by the Legislature and approved by the voters

ACTION REQUESTED

There are two:

1. That you discuss the long-range financial report with the Finance Director.

City of St. Augustine Beach Long-Range Financial Planning
Fiscal Year 2026-2030

Introduction

Per City's Code, in May of each year, a financial plan is to be submitted to the City Commission and is to contain estimated revenues and proposed expenditures for a minimum of five (5) years. The following information will illustrate where the City has been for the past five years, and where we project the City to be over the next five years.

The revenues and expenditures are broken down into groups also known as functions. Below is an outline of what is comprised of each group or function.

Revenues

- **Taxes**
  - Ad Valorem Taxes
  - Utility Taxes
  - Telecommunication Tax
  - Business Tax Receipts
  - Local Option Gas Tax
- **Licenses & Permits**
  - Building Permits
  - Other Permits
  - Franchise Fees
- **Intergovernmental Revenue**
  - Grants (State, Federal & Local)
  - State Revenue Sharing
  - ½ Cent Sales Tax
  - Alcoholic Beverage Licenses
  - County Business Tax Receipts
  - Fuel Tax Refund
- **Charges for Services**
  - Zoning Fees
  - Plan Review/Plat Fees
  - Sales of Maps
  - Impact Fee Administrative Charge,
  - Solid Waste Disposal Fees
  - Beach Patrol
  - Police Reports
  - Certification and Copying Fees
- **Fines and Forfeitures**
  - Court Fines
  - Parking Tickets
  - Other Fines and Forfeitures

    - Code Enforcement Fines
- **Miscellaneous**
    - Scrap Sales
    - Discounts Earned
    - Refunds of Prior Year Expenditures
    - Other Miscellaneous Revenues
    - Contractor License/Special Permits

Expenditures

- **General Government**
    - City Commission
    - City Manager
    - Finance/Administration
    - Comprehensive Planning
    - Other Governmental Services
- **Public Safety**
    - Police
    - Building (Protective Inspections)
- **Physical Environment**
    - Garbage/Solid Waste
    - Infrastructure
- **Economic Environment**
    - Advertising in conference programs/community publication
- **Culture & Recreation**
    - Maintenance of Parks
    - Park Projects

With planning for the future, the capital improvements plan is incorporated into the projected expenditures, as well as the actual debt service payments. As stated above we begin with the past and move into the future on the following pages.

Historical

The graphs on the next three pages depict historical revenues, expenditures and fund balance. Taxes, mainly property taxes, are the City's primary source of revenue used to provide its services. There has been a steady increase in tax revenue of 2.8% due to a 6.7% overall increase in property values and additional State Communication Services Tax, however, other State Revenues have seen a decline. Half-Cent Sales Tax declined 1.74% once again in Fiscal Year 2025. All other revenue streams such as utility taxes, franchise fees, and business tax receipts appear to be steady. The City continued to receive Grant Revenue and State Appropriations.

Expenditures also reflect slow but steady growth of 3% based on inflation increases over the next five years. Capital Outlay in the City reflects a large increase due Grants and State Appropriations from FY21 through FY25.

Fund Balance has continued to increase over the past five years keeping the City in a more stable financial position. The most recent audit for Fiscal Year 2025 indicates the General Fund Unassigned Balance is at 61.9%, or almost seven months of funds in reserves. While the GFOA recommendation is 15%, we are a coastal community, and the City should consider adjusting its minimum requirement to more than 20% to ensure adequate reserves. Perhaps a range should be implemented to keep a threshold the City can meet annually. The Fund Balance also reflects excess funds for projects that were unable to be completed during the prior year.

Projected

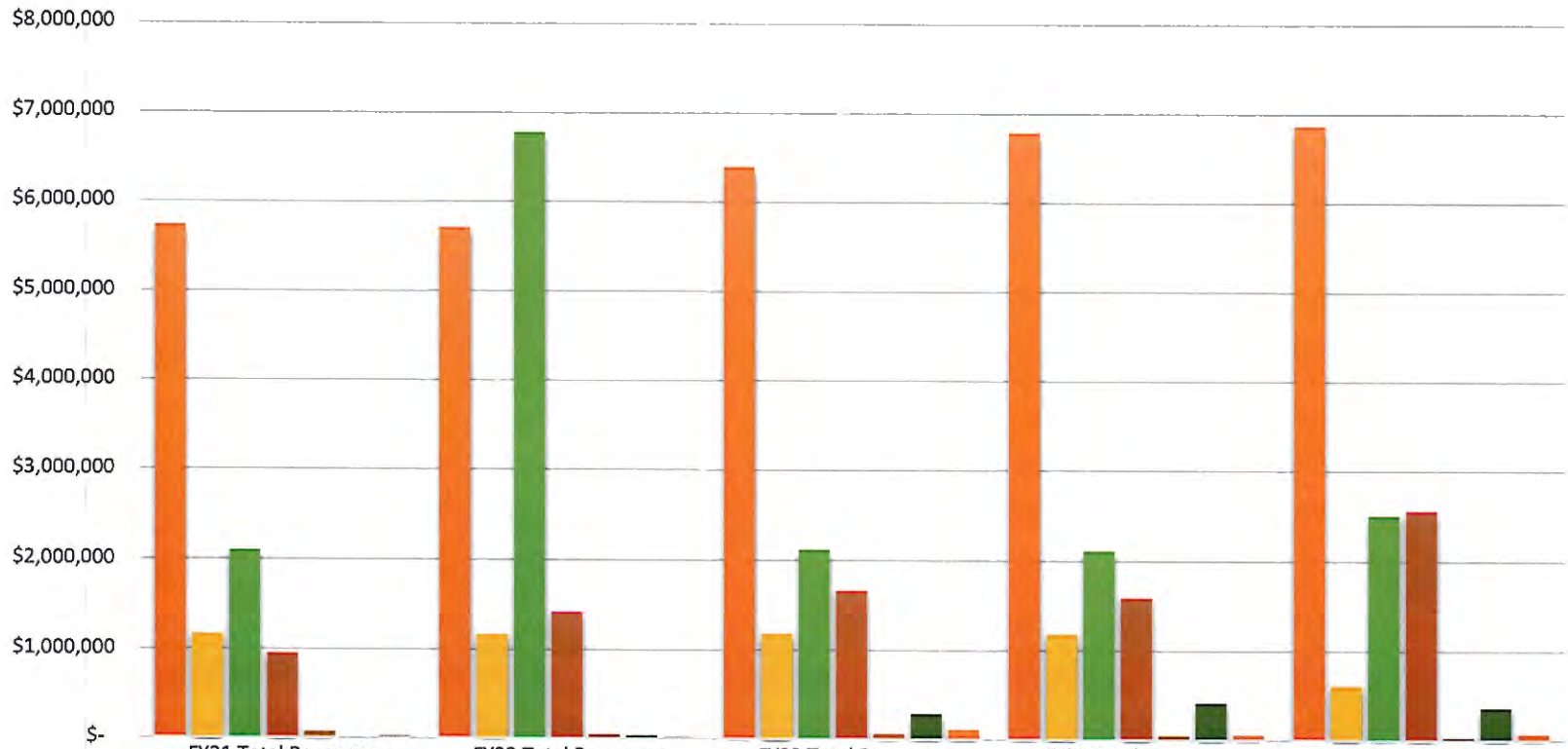
The last two pages illustrate the projected revenues and expenditures from FY26 through FY30. The revenue chart shows slight increases for most categories; however, State Revenue Sharing is projected to decline 9.35% in Fiscal Year 2026 and the City will also see a decline in Ad Valorem Taxes from Debt Service as the collection period will end in Fiscal Year 2026. Debt Service payments will be made from the City Debt Service reserves and some additional allocations from General Fund until all bonds are paid in full. Expenditures reflect a median increase of 3.1% based on the inflation prediction for the next five years from the Federal Reserve Bank of New York.

Capital Outlay continues to reflect a steady amount due to several projects expected to be performed over the next few years. These projects include parking improvements, 7th,8th, and 9th Street drainage projects, Sea Oaks Ponds Improvements, Mickler Boulevard Ditch Mitigation and other projects. For those projects that include funding from State appropriations and grant funds, revenue has also been increased to reflect reimbursement from those agencies. There are also additional capital items for which funding will need to come directly from other City revenue sources.

In comparing the projected revenues and expenditures in future years there are deficits that will need to be addressed. The City must also keep in mind the unfunded mandates that will be passed along by the State, which may decrease revenue or add additional costs. The estimates prepared do not take into account any future legislation that may be coming from the State. There are other possible changes that are being proposed, such as removing property taxes from homestead properties or possibly removing business tax receipt fees. Any of these changes could significantly reduce revenue in the City. Expenditures may also increase based on Senate Bills which will require the City to perform additional cleaning and maintenance to all drainage pipes within the City, requiring the purchase of additional equipment and potentially added employees. We also continue to receive additional mandates to improve cyber security which are unfunded.

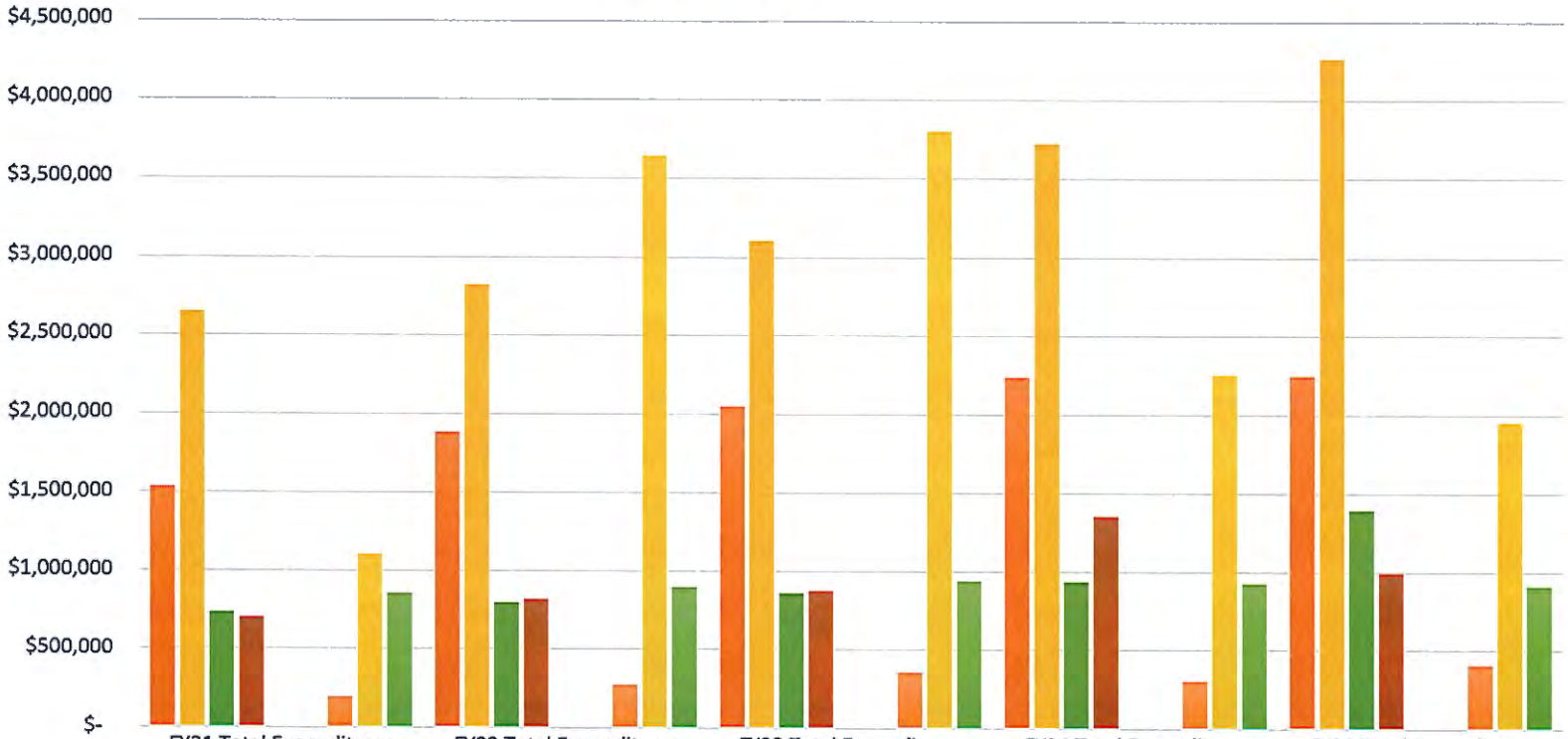
The information presented is one of the many tools utilized when preparing the annual budgets, however, it should be noted that most of the revenue estimates are provided to the Finance Office from the Florida State Office of Economic and Demographic Research in June and July of each year.

Historical Revenues
FY21 - FY25



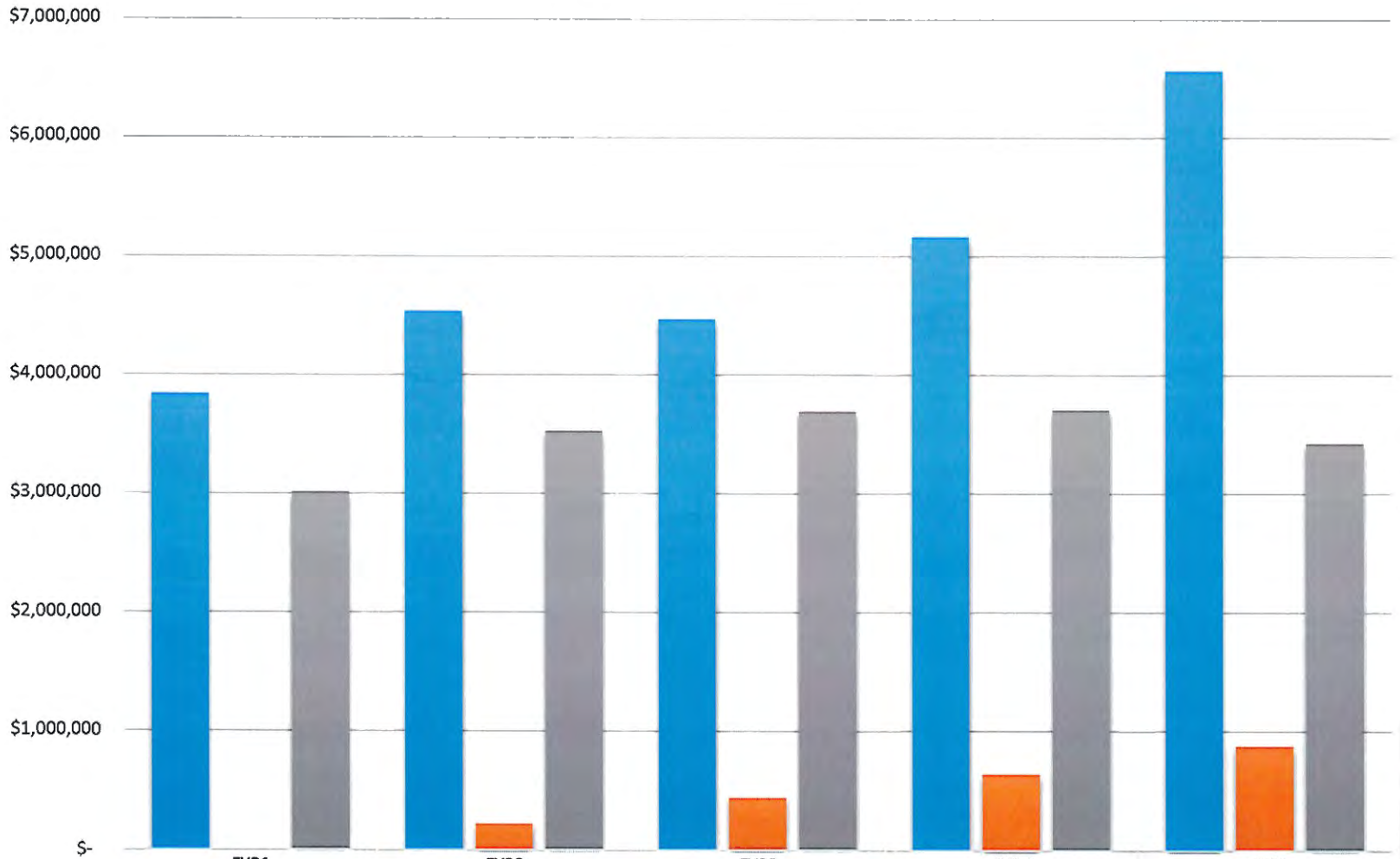
	FY21 Total Revenues $10,054,717	FY22 Total Revenues $15,164,738	FY23 Total Revenues $11,805,180	FY24 Total Revenues $12,187,267	FY25 Total Revenues $13,001,695
Taxes	$5,737,474	$5,708,936	$6,390,881	$6,782,232	6,863,072
Licenses & Permits	1,164,069	1,166,321	1,180,381	1,185,861	608,342
Intergovernmental	2,104,699	6,780,076	2,119,358	2,113,453	2,508,219
Charges for Services	950,267	1,418,060	1,663,586	1,585,611	2,562,552
Fines & Forfeitures	70,703	43,336	58,745	46,151	25,143
Interest	6,604	30,570	286,146	417,520	364,531
Miscellaneous	20,901	17,439	106,082	56,437	69,836

Historic Expenditures
FY21-FY25



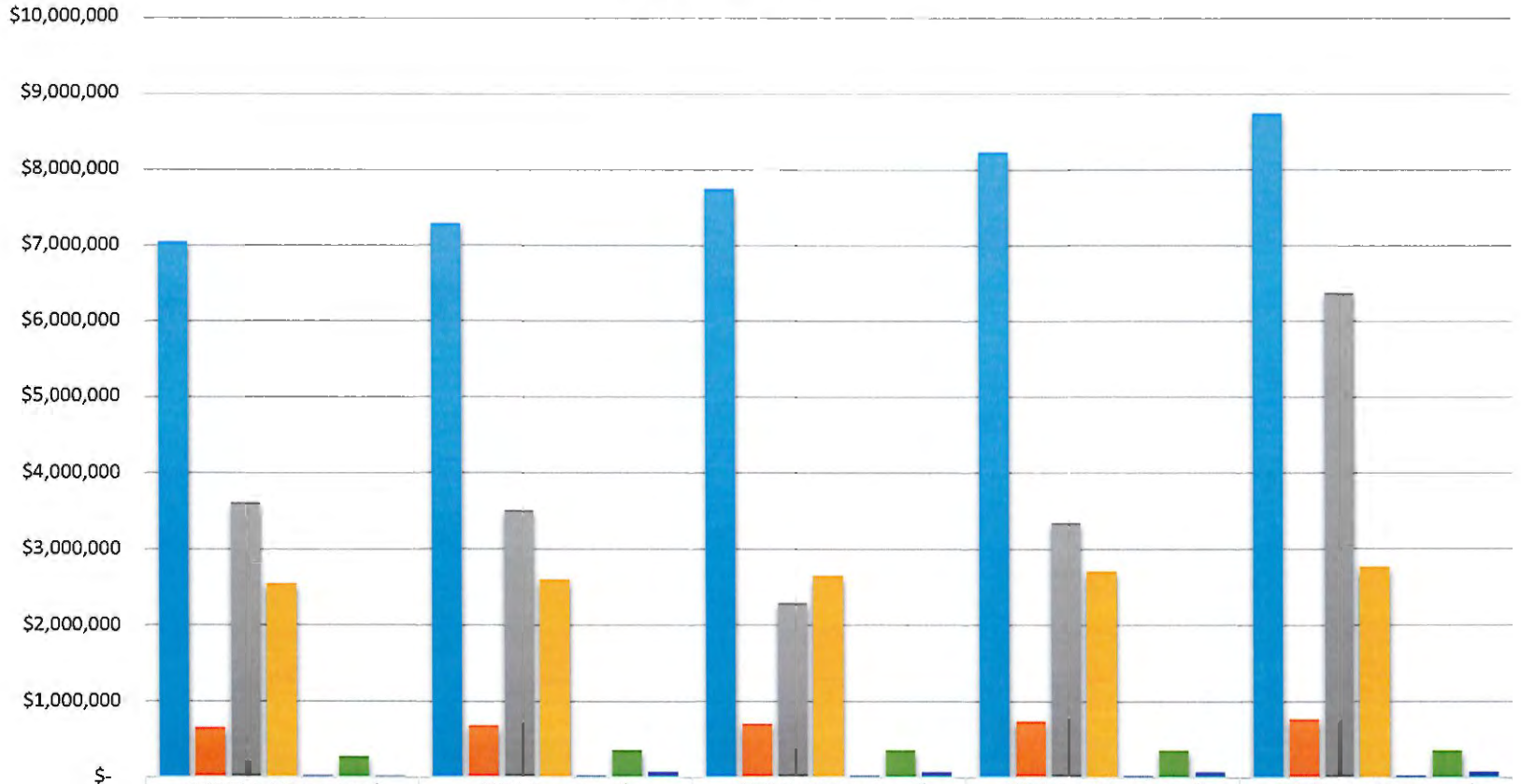
	FY21 Total Expenditures $7,762,232	FY22 Total Expenditures $11,128,526	FY23 Total Expenditures $11,986,184	FY24 Total Expenditures $11,726,148	FY25 Total Expenditures $12,159,920
General Government	$1,533,559	$1,882,500	$2,047,757	$2,235,551	$2,244,088
Public Safety	2,649,187	2,821,545	3,107,468	3,721,279	4,262,045
Physical Environment	734,466	796,666	861,849	937,429	1,395,768
Transportation	699,715	818,649	873,891	1,352,513	993,368
Economic Environment	-	-	-	-	-
Human Services	-	-	-	-	-
Culture & Recreation	191,845	273,422	354,419	302,497	404,327
Capital Outlay	1,098,854	3,638,305	3,800,493	2,249,055	1,949,769
Debt	854,606	897,439	940,307	927,824	910,556

Historical Fund Balance
FY21-FY25



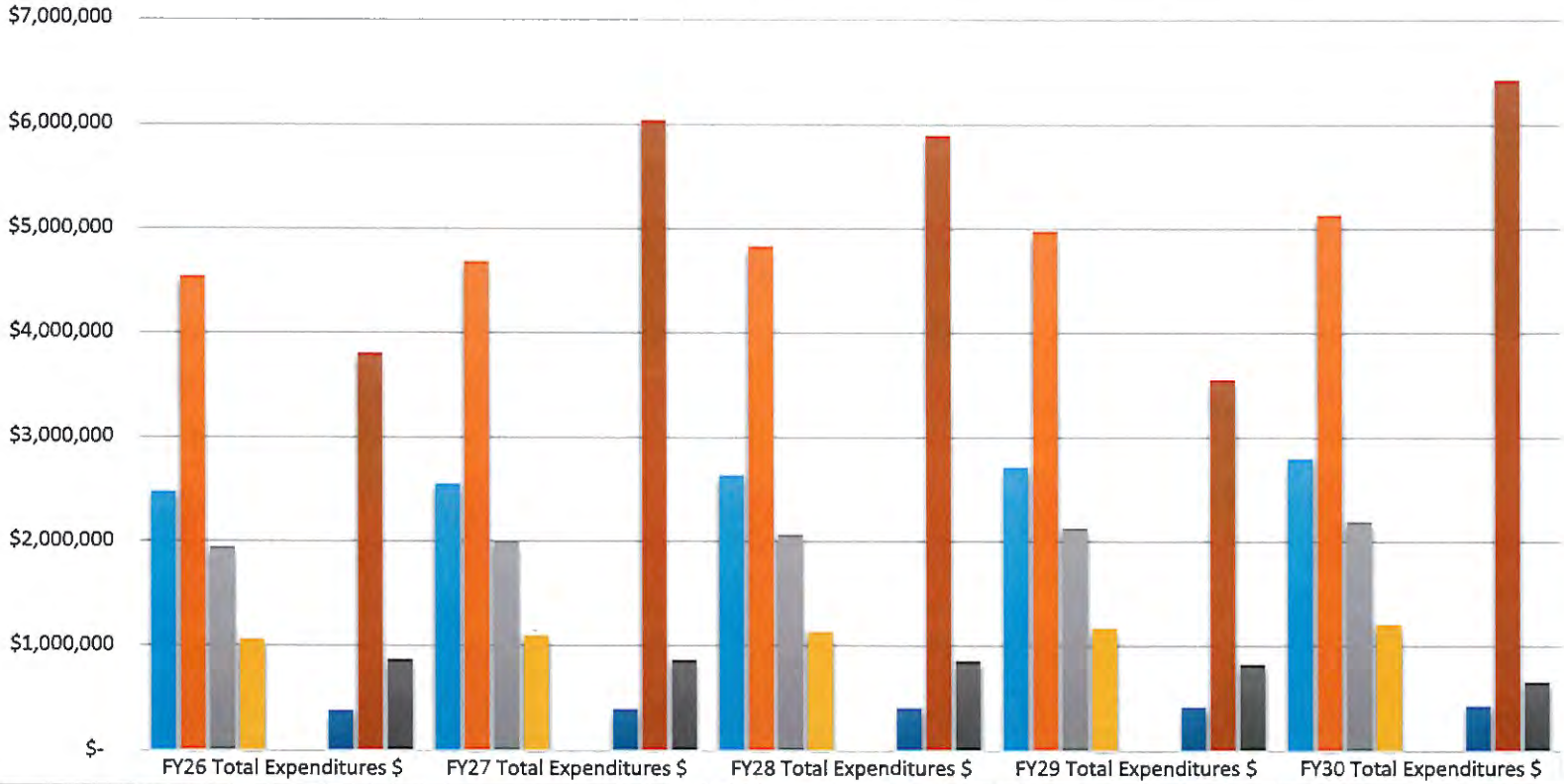
	FY21	FY22	FY23	FY24	FY25
General Fund	$3,844,925	$4,542,406	$4,475,141	$5,165,227	$6,572,420
Road & Bridge Fund	4,340	222,437	441,566	639,787	877,166
Debt Service	3,012,408	3,530,509	3,697,035	3,712,905	3,428,174

Projected Revenues
FY26 - FY30



	FY26 Total Revenues $	FY27 Revenues $	FY28 Total Revenues $	FY29 Total Revenues $	FY30 Total Revenues $
Taxes	$7,057,008	$7,295,509	$7,750,749	$8,234,396	$8,748,222
Licenses & Permits	658,502	684,842	712,236	740,725	770,354
Intergovernmental	3,616,479	3,516,156	2,300,507	3,349,575	6,380,649
Charges for Services	2,549,469	2,600,458	2,652,467	2,705,516	2,759,626
Fines & Forfeitures	24,900	25,149	25,400	25,654	25,911
Interest	276,400	359,320	359,320	359,320	359,320
Miscellaneous	19,000	71,931	74,089	76,312	78,601

Projected Expenditures
FY26-FY30



	FY26 Total Expenditures $	FY27 Total Expenditures $	FY28 Total Expenditures $	FY29 Total Expenditures $	FY30 Total Expenditures $
General Government	$2,473,321	$2,551,235	$2,631,336	$2,713,050	$2,797,350
Public Safety	4,541,224	4,683,331	4,829,598	4,979,470	5,134,043
Physical Environment	1,943,629	2,003,881	2,066,001	2,130,047	2,196,078
Transportation	1,057,420	1,094,110	1,131,212	1,166,735	1,203,514
Economic Environment	250	250	250	250	250
Human Services	-	-	-	-	-
Culture & Recreation	387,237	399,513	412,120	424,928	438,143
Capital Outlay	3,806,504	6,041,500	5,900,000	3,559,500	6,428,500
Debt	871,497	864,997	857,935	826,126	662,551

3.1%

Inflation Prediction Next 5 Years

The inflation predictions for the next five years indicate a slight increase in expected inflation rates. The Federal Reserve Bank of New York reported a median five-year-ahead inflation expectation of **3.1%** in March 2026, up from **3.0%** in the previous month. This increase reflects a rise in public confidence in the Fed's ability to maintain stable prices and anchors expectations around the central bank's inflation target. The inflation risk premium and real risk premium are also important measures of the compensation investors require for holding real bonds, given the potential for unexpected changes in inflation or interest rates. Federal Reserve Bank of St. Louis

Federal Reserve Bank of St. Louis

5-Year Expected Inflation (EXPINF5YR) | FRED | St. Lou...

Federal Reserve Bank of Cleveland

Inflation Expectations

View all

City of St. Augustine Beach
Assessment Data 2008-2025

Year	Assessed Value
2008	$ 1,252,640,382.00
2009	1,034,400,929.00
2010	898,490,528.00
2011	845,659,397.00
2012	839,126,178.00
2013	863,301,116.00
2014	915,821,132.00
2015	991,173,609.00
2016	1,071,134,646.00
2017	1,173,033,241.00
2018	1,260,551,064.00
2019	1,377,712,359.00
2020	1,464,037,916.00
2021	1,524,903,565.00
2022	1,724,583,998.00
2023	1,942,812,004.00
2024	2,116,788,315.00
2025	2,258,821,631.00

BOARD AND DEPARTMENTAL REPORT FOR CITY COMMISSION MEETING
MAY 4, 2026

SUMMARY OF ONGOING PROJECTS

The following is a list of the projects that are currently being done in the City or ones that will be started soon.

- **Replacing playground equipment at Splash Park**
- **Paving new parking area, southwest corner of 8th Street and A1A Beach Boulevard**
- **Magnolia Dunes subdivision drainage project**
- **Oceanside Circle drainage project**
- **Seafoam Way drainage project**
- **New fence south side of City's canal between 11th Street and Mizell Road**
- **Replacing City Hall windows**
- **Ocean Hammock Park Exercise Equipment and Signage**

CODE ENFORCEMENT/BUILDING/ZONING

Please see pages 1-4.

COMPREHENSIVE PLANNING AND ZONING BOARD

The minutes of the Board's January 20, 2026, meeting is attached as pages 5-16. The Board did not meet in February and March because there were no topics for it to consider.

SUSTAINABILITY AND ENVIRONMENTAL PLANNING ADVISORY COMMITTEE

The minutes of the Committee's March 12, 2026, meeting are attached as pages 17-20.

POLICE DEPARTMENT

Please see page 21.

PUBLIC WORKS/ENGINEERING DEPARTMENT

Please see pages 22-31. An update on grants is shown on pages 22-24.

FINANCE DEPARTMENT

Please see page 32.

CITY ATTORNEY

Please see page 33.

CITY MANAGER

1. Comments/Complaints

A. Fence in Alley

The alley is between 2nd and 3rd Streets, west of 2nd Avenue. It was vacated in 2025 with an easement on it for public purposes, such as drainage. A resident has built a fence into part of the alley and has been asked by the Public Works Director to remove the fence so a drainage pipe can be relocated in the center of the easement. In response to the resident's request, the Commission at its March 2nd meeting March 2nd meeting discussed the fence but made no decision concerning whether it can remain or should be removed.

B. Sea Grove Parking/Drainage

A Sea Grove resident wrote that had seen documents that prohibited parking on streets in front of homes. The City Manager replied that private subdivisions might have such signs. He asked the resident to send the documents to him.

The resident also said water was not draining from crosswalks that school children use. That complaint was forwarded to the Public Works Director.

C. Vegetation and Parking on 15th Street

A resident reported to Mayor Sweeny that there were parking problems on 15th Street adjacent to the Sunset Grille restaurant. The rear of parked vehicles intruded into the street. Also, the resident reported vegetation growing into the road. The Public Works Director had a survey done of the right-of-way and trees trimmed that were blocking the view of drivers exiting 15th Street.

D. Parking Congestion on 1st Street, West of the Boulevard

A complaint about parked vehicles blocking the entrance to the brewery on 1st Street. The brewery's owner was asked to call the police if the driveway was blocked.

E. Parking on Parkettes

A resident said drivers were parking on the parkettes at D Street and 2nd Avenue. The Public Works Director noticed No Parking signs were missing. He had new signs posted and told the Police Department about the complaints.

2. Road/Sidewalk Improvements

A. Opening 4th Street from A1A Beach Boulevard West to 2nd Avenue

A consultant has prepared an estimate of $530,000 for permitting, engineering and construction costs and the City has enough money from road impact fees to pay the upfront costs to construct this section of the street. The City will seek repayment of a portion of the money afterwards from the adjacent property owners by means of a special assessment. The usual calculation for payment is that the property owners on both sides of the street each pay a third, and the City pays the final third. The City Engineer issued a purchase order for a consultant to do surveying, design and permitting.

UPDATE: On August 26, 2025, the consultant met with City staff. The outcome of the meeting was to decide the schedule and tasks and when they would be completed. The proposed completion date was December 31, 2025. As of late October, the plans were 60% complete and the plans were sent to utilities and the County for comments. Comments were due by December 6th. By January 21st. the City has a complete set of plans, bid package and construction cost estimate.

UPDATE: The City has received 100% plans for construction. Notices were sent to the owners of the parcels bordering each side of 4th Street. The purpose is to determine whether there's sufficient support for the project. City staff reported at the Commission's April 6th meeting that out of six property owners, two were in favor of paving the street and paying a share of the cost, two were opposed while there was no response from the remaining two owners.

UPDATE: The City Engineer has been told by some property owners that while they are in favor of opening the street, they do not want to pay their share of the costs. The Commission will discuss the opening of the street at its May 4th meeting.

B. Paving 13th Lane

No action to report.

C. 8th Lane

This is an unopened alley between 7th and 8th Streets that ends at the beach. A developer wants to build three houses at the alley's east end. The alley, though unpaved, provides access to a lot the developer owns. Public Works cleared the lane of vegetation. No information as to when construction of the houses will be started.

D. Seafoam Way Drainage

Seafoam Way is a short section of street between the east end of Versaggi Drive and the beach. The pooling of rainwater on Seafoam Way makes it difficult for Linda Mar residents to get to the beach access walkway. An adjacent property owner had offered $20,000 to the City to help pay the costs of a solution. However, this offer may no longer be in effect. The City Engineer has estimated that $70,000 would be needed to solve the drainage problem. The Public Works Director will contact the Florida Department of Environmental Protection to discuss possible drainage improvements at the east end of Seafoam Way.

UPDATE: No action to report at this time.

E. Traffic Calming

There are no requests from residents for new studies. The City is working on traffic calming program with a grant of $75,000 from the North Florida Transportation Planning Organization. The program will provide a standard process for reviewing traffic-related concerns. A draft report will be completed in March 2026. The final report is due June 30, 2026.

F. Oceanside Circle Drainage Improvements

Oceanside Circle is a short street between Versaggi Drive and the Sea Colony subdivision. With the construction of new homes along it, drainage of the street has become an issue. The City has received a grant for drainage improvements, The grant agreement has been executed and the City's consultant is preparing the scope of services for the design/permitting/bidding and construction phases of the project. Construction will be done during Fiscal Year 2027.

UPDATE: The City Engineer has received a scope of work for the design and permitting phase and a purchase order was issued. In late October, a meeting was held with the Florida Department of Transportation to discuss the Linda Mar pump station/force main connection to the DOT system on State Road A1A. DOT has asked City staff to provide technical information concerning the effect of stormwater from the Linda Mar system to the DOT's retention pond. The DOT will then decide whether to allow the City to increase flow from the pump station to the pond.

UPDATE: In mid-January, City staff met with the consultant to review stormwater modeling data to show the impact on the operation of the Linda Mar pump station.

UPDATE: Plans have been 30% completed and are being reviewed by City staff. On April 22nd, City staff held a town hall meeting with residents. Twelve residents attended to review with staff and the engineering consultant the plans for improvements. The plans are 30% complete. Another town hall meeting will be scheduled when the plans are completed. Construction of the project is to be completed by September 30, 2027.

G. Best Foot Forward Program for Pedestrian Safety

This is a program administered by a 501c3 organization, the mission of which is to create a safer Florida for pedestrians by changing the perspective of drivers vis-à-vis pedestrians. Two crosswalks have been identified in the City: A Street/A1A Beach Boulevard and 11th Street/A1A Beach Boulevard. The study is meant to find deficiencies that need to be corrected.

UPDATE: The focus of the study will be the behavior of drivers to pedestrians using the crosswalks. The study is to be completed in 2026.

3. Beach Matters

A. Off-Beach Parking, Southwest Parkette at 8th Street and the Boulevard

The City is having a plan done to make the parkette a public parking lot. Plans have been 30% completed and have been reviewed by City staff and sent with comments to the consultant. Sixty percent plans will be completed by beginning of June.

B. Paid Parking

There is no proposal at this time for having paid parking anywhere in the City.

C. Beach Access Walkovers

No update to provide. On a related matter, City and County staff are reviewing existing interlocal agreements concerning walkovers and beach matters as some provisions are obsolete.

D

D. Easements

The U.S. Army Corps of Engineers has adopted the policy that owners of properties adjacent to the beach must provide a permanent easement to the Corps for it to continue its program to restore eroded sections of the beach. St. Johns County is in charge of obtaining the easements. County staff invited the property owners to a meeting at City Hall on May 14th, to explain the need for the easements.

UPDATE: The City Commission at its September 4th meeting did not approve the perpetual easements for City properties along the beach but asked the City Attorney to review the current 50-year easements with the request for the perpetual easements. The City Attorney prepared a draft of a new easement agreement, which the City Commission approved at its November 3rd meeting.

UPDATE: According to the County, as of the end of April 2026, the count is the same as it was a month ago: 40 property owners have signed an easement agreement. The County needs 62 signed agreements. County staff continues to get more owners to sign.

4. Parks

A. Ocean Hammock Park

The City Commission at its June 5, 2023, meeting directed the City Manager to ask the Florida Communities Trust, the agency that provided the original grants to purchase the property, whether it would approve deleting all or some of projects required by the park management plan. These include an observation deck, central trail, picnic pavilion, children's playscape, signage and secondary trails. In response to the Manager's letter, the Florida Communities Trust has indicated it would consider having the Park's focus changed from recreation to conservation, pending review of information that it requested the City to send to it.

UPDATE: In late June, the City spoke with FCT representatives, who asked that the City do the following: Include an interactive element for children, such as animal sculptures or climbing rocks and having a fitness trail. The FCT said the pavilion and observation deck could be removed from the management plan if the City could provide creative solutions for the playground and fitness trail that are in the original plan.

UPDATE: Money was approved in the Fiscal Year 2026 budget for improvements related the FCT grant requirements. City staff in late October met to discuss proposed improvements that would satisfy the state's request that the Park provide more amenities for active use of it. Staff held another meeting in mid-November to finalize the response to FCT's request to provide more recreation amenities in the Park.

UPDATE: On February 17, 2026, Florida Communities Trust representatives met with City staff by Zoom to review the City's proposed features that will make the Park less obtrusive while at the same time providing active recreational amenities, such as playgrounds, exercise stations and trails. The FCT representatives liked the signage and use of QR codes to explain the Park's natural features and the amenities, like the fitness equipment, such as a pull up bar. The FCT planner will review the special management conditions and provide a response to the City.

UPDATE: a) The City has applied for a grant from Lowe's home improvements company provide improved access at east end of the boardwalk.

b) City staff met with staff of the Florida Communities on March 23rd to discuss modifying trail required by the management plan. The FCT didn't agree to the City's proposed modification to reduce the trail's length. The FCT is requiring the trail be half a mile. The existing trail is one eighth of a mile. The City will add a length to it to make the half mile. In addition, the City will add exercise equipment and information signage to meet current FCT requirements. These improvements will be done by the end of 2026.

B. Hammock Dunes Park

This 6.1-acre park is on the west side of A1A Beach Boulevard between the shopping plaza and the Whispering Oaks subdivision. A local bicycle club has proposed that a bike path be put through the Park. The club would pay for the improvements. This proposal is only in its preliminary stage. A key question is whether a bike trail is a permitted use. When the County deeded the Park to the City, one of the conditions in the deed is that the Park can be used only for passive recreation. The City Attorney has said the use of the Park for bike trail is a passive use; the County Parks and Recreation Director has said it is an active use. The City Commission reviewed the proposal from the bicycle club but did not accept it because of a number of questions, such as liability and insurance. City staff may prepare a survey to see what uses of the Park the public favors.

UPDATE: No information to report.

C. Splash Park

The Public Works Director and City Manager attended the Tourist Development Council's meeting on June 16th, to request money to pay for the new playground equipment and other costs. The TDC recommended to the County Commission that the money be provided. The request will be reviewed as part of the County Commission adoption process. City staff is reviewing the request for proposals to replace the playground equipment, if TDC funding is provided.

UPDATE: The City has been informed that its request for $125,000 for tourist development tax funds for improvements to Splash Park and the adjacent playground have been approved by the County Commission. The TDC staff informed the City in late November that an interlocal agreement is not needed because of existing agreements the City has with the County for Splash Park. The staff also said that the City could begin the repairs. City staff will now purchase the playground equipment. The shade structures will also be improved. Improvements will be done in the summer of 2026.

D. Pier Park

St. Johns County has hired a consultant to develop a plan for renovations to the Pier Park. In April 2025, there was a kick-off meeting at the pavilion with County, City staff and the consultant. Milestones for the plan are:

- May through August, the consultant develops concepts.
- November 2025 to February 2026, the final master plan is prepared.
- March to May 2026, the final master plan is presented at public meetings.

UPDATE: In early December 2025, Mr. Ryan Kane, County Parks and Recreation Director, reported that the project is temporarily on hold as the County evaluates its parks and recreation projects to be certain of funding for its four regional parks.

5. Finance and Budget

A. Monthly Financial Report

The end of March marked the end of the first half of Fiscal Year 2026. As of March 31st, the City had received $7,880,016 and spent $5,551,040 for operations, which provided a surplus of revenues over expenditures of $2,328,976. The City continues to receive revenue from property taxes, its major source. The total received as of the end of March was $5,095,096. In March alone, the City received a payment of $230,879 from property taxes. Year-to-date percentage of property tax revenue received was 95% of the amount projected for the entire fiscal year.

B. Audit of Fiscal Year 2025 Budget

The auditing firm completed the report and presented it to the City Commission at its April 6, 2026, meeting. No problems and/or mistakes were noted. This topic will no longer be included in this Report.

6. Comprehensive Plan

Every seven years, the state mandates that cities and counties review and update their comprehensive plans. Changes may have to be made because of new laws and regulations and/or changes to economic conditions. At its October 21, 2025, meeting, the Comprehensive Planning and Zoning Board recommended to the Commission that the Plan be forwarded to the state and other agencies. At its November 3, 2025, meeting, the City Commission passed on second reading the ordinance adopting the updated Plan. The Plan was sent to the state and other agencies for review and comment.

UPDATE: In January, the state reviewing agency, the Department of Commerce, informed the City that it had completed its review of the City's Comprehensive Plan and that section of it were in conflict with state law, Section 28 of Chapter 2025-190. That law concerns the construction, reconstruction or redevelopment of private property after a storm. The state said the City's Plan was more restrictive than allowed by law. The City's Planning staff provided reasons to show that the Plan is not more restrictive. The Department of Commerce has yet to respond to the City's letter.

UPDATE: Still no response to the City's letter. XXXXX

7. Joint Meetings

None are scheduled at this time with any other governmental agency or with any City committee/board.

8. Updating Personnel Manual

The Manual has been reviewed by staff and a labor attorney. The City Commission at its April 1st meeting accepted the revisions to Phase One of the Manual that the City Clerk presented. Changes to policies in the Manual will be presented as Phase Two later in 2025.

UPDATE: In mid-August, the City Manager signed a contract with a consulting firm that will review the Manual and advise the City of the sections that need changing because of laws and personnel practices.

9. Vision Plan

On November 13th, the Commission held a workshop and a consultant, Mr. Clayton Levins, Executive Director of Smart North Florida, provided an overview of the Smart City concept. The Commission discussed applying the concept to improvements for getting around the City by walking and bicycling, stormwater management and beach access parking.

UPDATE: Nothing to report at this time.

10. Renovations of the Former City Hall/Hotel Property

The 25-year lease the Cultural Council has with the City for the building expires October 1, 2026. Mr. Jeff Potts, Cultural Council Executive Director, will meet with the City Commission at its March 2nd meeting to discuss a three-year renewal of the lease. He will also provide an update on the $750,000 grant that the Cultural Council received from the state to redo the entrance lobby, provide an elevator to the second floor, and renovate some of the second-floor artists' studios.

UPDATE: At its March 2, 2026, meeting, the City Commission agreed to a three-year extension of the City's lease with the Council, which expires October 1, 2026. At its April 6th meeting, the Commission agreed to extend the contract for three years to 2029 with an option to renew it. Also, the Commission agreed to the Cultural Council forming a committee to develop a long-range plan for the building's use and where money is to be found to maintain it.

11. River-to-Sea Loop (SUN Trail)

This is a Florida Department of Transportation project with assistance from St. Johns County, St. Augustine and St. Augustine Beach and has been renamed the Sun Trail. The project is to have 26 miles of a paved bicycle/pedestrian trail as part of the 260-mile trail from the St. Johns River in Putnam County to the ocean in St. Johns County. The Trail will then go south through Flager and Volusia counties to Brevard County. The proposed route is for it to enter St. Augustine along King Street, go across the Bridge of Lions, south along State Road A1A, then to A1A Beach Boulevard along its east side and south to the junction of the Boulevard with State Road A1A. The Trail will then be continued south along SR-A1A to Flagler County. The Trail will be 12 feet wide.

On May 2, 2025, City and County staff met to discuss how and where to fit the Trail in the right-of-way of A1A Beach Boulevard and the City's concerns that the Trail not impede access to businesses along it. Once the consultant has prepared a proposal, it will be presented to the City Commission and the public for review and comment.

At its July 22, 2025, meeting, the County Commission approved a contract with Hanson Professional Services to do the design phase of the Trail.

On July 25, 2025, the Public Works Director and the City Manager attended a meeting at the County's Public Works Department to be briefed about the project and meet with the consultant doing the design

and permitting work. The Trail will enter the City along Santander Street, then go east along Pope Road to A1A Beach Boulevard and then south along the Boulevard on its east side.

UPDATE: The deadline for completion of the design phase of the project is June 30, 2026. County staff presented the plan for the Trail to the public on February 26, 2026, at the Anastasia Island Public Library in the Sea Grove Town Center. The Trail was later discussed with the public at the City Commission's March 2, 2026, meeting, when residents spoke against the project. Since then, the City has received emails opposing the project.

UPDATE: The project will be on the agenda for an upcoming Board of County Commission meeting. The meeting's date has yet to be announced.

12. Updating Interlocal Agreements with the County

In March 2026, City staff reviewed the agreement concerning beach tolls and services. The City Manager prepared a revised draft, which will be sent to the County for its staff to review.

13. Annexations

No requests for annexations have been received.

14. State Appropriation

Thanks to the efforts of former-Mayor Dylan Rumrell, current Mayor Beth Sweeny and members of the County's legislative delegation, the City received from the state in its budget an appropriation of $955,000 for projects related to resiliency and stormwater management. This appropriation will be used to purchase the following:

-Portable Generator
-4-inch Trailer Mounted Pump
-Pipeline Inspection Camera
-Vacuum Truck or Trailer
-Pipe Plugs
-Grapple Truck for Debris Removal
-Mini-Excavator
-Skid Steer

The City has received the signed agreement from the state. At its March 2nd meeting, the City Commission approved a budget resolution that appropriates $490,000 to purchase the following:

- Mini-Excavator: $95,000
- Skid Steer: $85,000
- 4-inch Trailer Mounted Pump: $65,000
- Grapple Truck: $200,000

By the end of March, the City will have ownership of the mini-excavator, the skid steer and the pump. The grapple truck is scheduled for delivery by mid-May 2026.

15. Purchases Using American Rescue Plan Act Funds

At its July 14, 2025, meeting, the City Commission approved a budget resolution which appropriated $297,000 from ARPA for the following:

- Electronic sign for City Hall ($75,000)
- Sidewalk on plaza between A and 1st 5treets ($65,000)
- Sidewalk repairs throughout the City ($27,000)
- Vehicle for Police Department ($65,000)
- Vehicle for Public Works Department ($65,000)
- Replace windows at City Hall and Police station ($265,000)

UPDATE: The electronic sign has been purchased and erected. The sidewalk on the plaza between A and 1st Streets has been built; sidewalk repairs were done along Mickler Boulevard. Repairs to the 2nd Avenue sidewalk are completed. The vehicle for the Public Works Department has been purchased. Bids for the impact-rated windows and doors were opened on March 9, 2026. Nine bids were received. City staff has reviewed the bids and selected a contractor. Work will begin in May.

16. City Charter Changes

The 10-year review of the Charter was completed by a Commission-appointed citizen committee in the spring of 2024, too late to put any changes on the ballot for the 2024 primary or general election. In 2025, the Commission reviewed the changes recommended by the committee and in early 2026 approved an ordinance to adopt minor changes that don't have to be approved by the voters. Another change, to adopt term limits for City Commissioners, will have to be approved by the voters at an election in 2026. The ordinance adopting the ballot language that sets term limits was approved on first reading at the Commission's March 2nd meeting. The Commission at its April 6th meeting approved the ordinance on second reading. The ordinance will have a final reading at the Commission's May 4th meeting.

17. Regulating Electric Bicycles

At the Commission's April 6th meeting, the City Attorney presented an ordinance to regulate the operation of e-bicycles in the City. The Commission directed that staff draft language for an ordinance. This topic will be discussed at the Commission's May 4th meeting.

18. Permits for Special Events

In late March and in April, the City Manager approved the following permits: a) Good Friday Revival and Baptism on the beach, April 3, 2026; b) City's Arbor Day celebration, April 17, 2026; c) City's Art and Park event in Lakeside Park, May 3, 2026; d) City's Night Market at Pier Park, July 25, 2026; e) City's End of Summer Beach Bash at Pier Park, September 12, 2026.

COSAB NEW SFR CONSTRUCTION

Application Id	Property Location	Permit No	Work Type	Issue Date	Description	User Code 1
1312	0000 A1A SOUTH	SFR00001	SFR-D	12/4/2019	NEW SINGLE FAMILY RESIDENCE-BUILDING	RES
7408	6 2ND ST	P2500862	SFR-D	5/1/2025	NEW SINGLE FAMILY RESIDENCE-BUILDING	RES
8010	2576 A1A S	P2400471	SFR-D	2/7/2024	NEW SINGLE FAMILY RESIDENCE-BUILDING	RES
8651	70 HIGH DUNE DR	P2401126	SFR-D	6/28/2024	NEW SINGLE FAMILY RESIDENCE-BUILDING	PP
8846	7 15TH ST	P2501275	SFR-D	8/7/2025	NEW SINGLE FAMILY RESIDENCE-BUILDING	PP
9517	441 OCEAN FOREST DR	P2500476	SFR-D	2/7/2025	NEW SINGLE FAMILY RESIDENCE-BUILDING	RES
10010	13 SUNFISH DR	P2500559	SFR-D	2/19/2025	NEW SINGLE FAMILY RESIDENCE-BUILDING	RES
10461	209 2ND ST	P2501271	SFR-D	5/15/2025	NEW SINGLE FAMILY RESIDENCE-BUILDING	RES
10553	210 D ST	P2501281	SFR-D	8/7/2025	NEW SINGLE FAMILY RESIDENCE-BUILDING	RES
10652	281 MADRID ST	P2501313	SFR-D	8/20/2025	NEW SINGLE FAMILY RESIDENCE-BUILDING	RES
10950	41 SEAFOAM WAY	P2501489	SFR-D	10/17/2025	NEW SINGLE FAMILY RESIDENCE-BUILDING	RES
11060	379 OCEAN FOREST DR	P2600257	SFR-D	12/15/2025	NEW SINGLE FAMILY RESIDENCE-BUILDING	RES
11138	201 2ND ST	P2600427	SFR-D	1/26/2026	NEW SINGLE FAMILY RESIDENCE-BUILDING	RES
11168	697 POPE RD	P2600368	SFR-D	1/14/2026	NEW SINGLE FAMILY RESIDENCE-BUILDING	PP
11213	404 D st	P2600406	SFR-D	11/17/2025	NEW SINGLE FAMILY RESIDENCE-BUILDING	RES
11266	200 WOODLAND AVE	P2600445	SFR-D	11/26/2025	NEW SINGLE FAMILY RESIDENCE-BUILDING	RES
11269	23 OCEANSIDE CIR	P2600240	SFR-D	12/5/2025	NEW SINGLE FAMILY RESIDENCE-BUILDING	RES
11338	124 9th St	P2600359	SFR-D	12/18/2025	NEW SINGLE FAMILY RESIDENCE-BUILDING	RES
11553	122 14TH ST	P2600787	SFR-D	4/8/2026	NEW SINGLE FAMILY RESIDENCE-BUILDING	RES
11672	129 RIDGEWAY RD	P2600737	SFR-D	3/31/2026	NEW SINGLE FAMILY RESIDENCE-BUILDING	RES
11779	51 ATLANTIC OAKS CIR		SFR-D		NEW SINGLE FAMILY RESIDENCE-BUILDING	RES
11780	58 ATLANTIC OAKS CIR		SFR-D		NEW SINGLE FAMILY RESIDENCE-BUILDING	RES

Application Id Range: First to Last
Issue Date Range: First to 04/20/26 Expiration Date Range: First to 09/30/27 Applied For: Y Open: Y
Application Date Range: First to 04/20/26 Use Type Range: First to Last Hold: N
Building Code Range: BUILDING to BUILDING Contractor Range: First to Last Completed: N
Work Type Range: SFR-A to SFR-D User Code Range: First to Last Denied: N
Void: N
Customer Range: First to Last Inc Permits With Permit No: Yes Inc Permits With Certificate: Yes
Waived Fee Status to Include: None: Y All: Y User Selected: Y

COSAB COMMERCIAL CONSTRUCTION LIST

Application Id	Property Location	Permit No	Work Type	Issue Date	Description
8207	1033 A1A BEACH BLVD	P2401051	COM REMODEL	10/23/2024	NEW COMMERCIAL BUILDING -- PHASED SITE
8225	621 A1A BEACH BLVD	P2500427	COM SHELL	3/24/2025	NEW COMMERCIAL BUILDING--SHELL
9043	102 F St.	P2501394	COMMERCIAL NEW	9/10/2025	MIXED USE NEW CONSTRUCTION
9653	1047-1093 A1A Beach Blvd	P2500242	COM REMODEL	1/7/2025	RETAIL B RENOVATION AND FACADE - COMMERCIAL BUILDING EXTERIOR RENOVATION -- UNITS 1047-1093 (ENTIRE SW WING)
9858	1081 A1A Beach Blvd	P2501157	COM BUILD OUT	1/22/2026	COMMERCIAL BUILDING ALTERATION - TENNANT BUILDOUT - FIRST WATCH
10349	2040 A1A S	P2501187	COM ADDITION	7/22/2025	COMMERCIAL BUILDING ALT. -- SHELL ALTERATION
10397	B12 A1A BEACH BLVD		COMMERCIAL NEW		NEW COMMERCIAL BUILDING - CONDOS
11332	1053 A1A BEACH BLVD	P2600284	COM REMODEL	12/16/2025	COMMERCIAL BUILDING ALT.-- INTERIOR RENOVATION - BUILDOUT TO SHELL BOXV2600141
11439	1009 A1A BEACH BLVD	P2600727	COM BUILD OUT	1/22/2026	COMERCIAL BUILDING ALT.-- TENANT BUILD-OUT
11566	621 A1A BEACH BLVD SUITE 1		COM BUILD OUT		COMMERCIAL BUILDING ALT.-- BUILDOUT
11567	621 A1A BEACH BLVD SUITE 3		COM BUILD OUT		COMMERCIAL BUILDING ALT.-- BUILDOUT
11704	350 A1A BEACH BLVD	P2600803	COMMERCIAL NEW		COMMERCIAL NEW BUILDING -- INSTALLING PLAYGROUND AND SHADE AT ST AUGUSTINE PIER PARK
11754	1035 A1A Beach Blvd	P2600717	COM BUILD OUT	3/27/2026	COMMERCIAL ALTERATION BUILDING--BUILDOUT
11907	4 OCEAN TRACE RD		COM REMODEL		COMMERCIAL BUILDING ALT.-- EXTERIOR ELECTRICAL SHED REPAIR

Application Id Range: First to Last
Issue Date Range: First to 04/20/26 Expiration Date Range: First to 09/30/27 Applied For: Y Open: Y
Application Date Range: First to 04/20/26 Use Type Range: First to Last Hold: N
Building Code Range: BUILDING to BUILDING Contractor Range: First to Last Completed: N
Work Type Range: COM ADDITION to COMMERCIAL NEW User Code Range: First to Last Denied: N
Void: N
Customer Range: First to Last Inc Permits With Permit No: Yes Inc Permits With Certificate: Yes
Waived Fee Status to Include: None: Y All: Y User Selected: Y

COSAB FY'26 TREE REMOVAL

Application Id	Property Location	Permit No	Work Type	Issue Date	Description
9185	55 HIGH DUNE DR	P2401262	TREE REMOVAL	10/16/2025	RESIDENTIAL-TREE REMOVAL INSPECTION
10462	103 WHISPERING OAKS CIR	P2500953	TREE REMOVAL	10/16/2025	RESIDENTIAL-TREE REMOVAL INSPECTION
11028	7 MAGNOLIA DUNES CIR	P2600004	TREE REMOVAL	10/1/2025	RESIDENTIAL-TREE REMOVAL INSPECTION
11276	107 15TH ST	P2600232	TREE REMOVAL	12/5/2025	RESIDENTIAL-TREE REMOVAL INSPECTION
11405	305 F ST	P2600357	TREE REMOVAL	2/6/2026	RESIDENTIAL-TREE REMOVAL INSPECTION
11430	10 LEE DR	P2600429	TREE REMOVAL	1/23/2026	RESIDENTIAL-TREE REMOVAL INSPECTION
11521	4 C ST	P2600473	TREE REMOVAL	2/2/2026	RESIDENTIAL-TREE REMOVAL INSPECTION
11556	13 LISBON ST	P2600505	TREE REMOVAL	2/23/2026	RESIDENTIAL-TREE REMOVAL INSPECTION
11674	409 E ST	P2600612	TREE REMOVAL	3/6/2026	RESIDENTIAL-TREE REMOVAL INSPECTION
11686	34 OCEAN PINES DR	P2600623	TREE REMOVAL	3/10/2026	RESIDENTIAL-TREE REMOVAL INSPECTION
11729	413 E ST	P2600660	TREE REMOVAL	3/19/2026	RESIDENTIAL-TREE REMOVAL INSPECTION
11730	436 HIGH TIDE DR	P2600661	TREE REMOVAL	3/19/2026	RESIDENTIAL-TREE REMOVAL INSPECTION
11811	417 OCEAN DR	P2600739	TREE REMOVAL	3/31/2026	RESIDENTIAL-TREE REMOVAL INSPECTION
11820	826 A1A BEACH BLVD UNIT 41	P2600748	TREE REMOVAL	4/1/2026	RESIDENTIAL-TREE REMOVAL INSPECTION
11839	601 OCEAN PALM WAY	P2600763	TREE REMOVAL	4/2/2026	RESIDENTIAL-TREE REMOVAL INSPECTION
11901	202 N OCEAN TRACE RD	P2600831	TREE REMOVAL	4/17/2026	RESIDENTIAL-TREE REMOVAL INSPECTION

- 3 -

Application Id Range: First to Last

Issue Date Range: 10/01/25 to 04/20/26 Expiration Date Range: First to 09/30/27 Applied For: Y Open: Y

Application Date Range: First to 04/20/26 Use Type Range: First to Last Hold: N

Building Code Range: TREE to TREE Contractor Range: First to Last Completed: Y

Work Type Range: TREE REMOVAL to TREE REMOVAL User Code Range: First to Last Denied: N

Void: N

Customer Range: First to Last Inc Permits With Permit No: Yes Inc Permits With Certificate: Yes

Waived Fee Status to Include: None: Y All: Y User Selected: Y

COSAB FY'26 ZONING REPORT

Application Id	Parcel Id	Property Location	Building Code	Activity Type	Inspector	Date	Status
10953	1719800000	508 B ST	ZONING	Z-TREE REMOVAL	JENNIFER	10/21/2025	APPROVED
10954	1684700010	0 9th Ln	ZONING	Z-VARIANCE	JENNIFER	10/21/2025	DENIED
10955	1685600010	1 8TH ST	ZONING	Z-VARIANCE	JENNIFER	10/21/2025	PERFORMED
10955	1685600010	1 8TH ST	ZONING	Z-VARIANCE	JENNIFER	11/18/2025	DENIED
11095	1724910750	379 OCEAN FOREST DR	ZONING	Z-TREE REMOVAL	JENNIFER	11/18/2025	APPROVED
11125	1724910750	379 OCEAN FOREST DR	ZONING	Z-VARIANCE	JENNIFER	11/18/2025	APPROVED
11165	1680900420	122 14TH ST	ZONING	Z-TREE REMOVAL	JENNIFER	11/18/2025	APPROVED
11234	1637100010	697 POPE RD	ZONING	Z-TREE REMOVAL	JENNIFER	12/16/2025	APPROVED
11236	1744900020	8 OCEAN TRACE RD	ZONING	Z-FINAL DEV	JENNIFER	12/16/2025	APPROVED
11330	1696700000	201 2ND ST	ZONING	Z-TREE REMOVAL	JENNIFER	1/20/2026	APPROVED
11367	1716200050	304 F ST	ZONING	Z-TREE REMOVAL	JENNIFER	1/20/2026	APPROVED
11440	1684700010	0 9th Ln	ZONING	Z-APPEAL	JENNIFER	3/2/2026	CANCEL
11666	1698900000	610 A1A BEACH BLVD	ZONING	Z-COND USE	JENNIFER	4/21/2026	OPEN
11666	1698900000	610 A1A BEACH BLVD	ZONING	Z-COND USE	JENNIFER	5/4/2026	OPEN
11694	1691700070	106 7TH ST	ZONING	Z-COND USE	GIL T	4/21/2026	OPEN
11694	1691700070	106 7TH ST	ZONING	Z-COND USE	GIL T	5/4/2026	OPEN
11872	1742000020	1001 A1A Beach Blvd	ZONING	Z-COND USE	GIL T	4/13/2026	OPEN

Application Id Range: First to Last Range of Building Codes: ZONING to ZONING

Activity Date Range: 10/01/25 to 05/30/26 Activity Type Range: Z-APPEAL to Z-VARIANCE

Inspector Id Range: First to Last

Included Activity Types: Both Sent Letter: Y

MINUTES

PLANNING AND ZONING BOARD REGULAR MONTHLY MEETING
TUESDAY, JANUARY 20TH, 2026, 6:00 P.M.
CITY OF ST. AUGUSTINE BEACH, 2200 A1A SOUTH, ST. AUGUSTINE BEACH, FL 32080

I. CALL TO ORDER

II. PLEDGE OF ALLEGIANCE

III. ROLL CALL

BOARD MEMBERS PRESENT: Acting Chairperson Conner Dowling, Acting Vice-Chairperson Larry Einheuser, Victor Sarris, Sarah Ryan, Senior Alternate Eric Kenney

BOARD MEMBERS ABSENT: Chairperson Kevin Kincaid, Hulsey Bray, Joshua Hogan, Junior Alternate Josh Thompson

STAFF PRESENT: Building Official Brian Law, Planner Jennifer Thompson, City Attorney John Steinmetz

IV. APPROVAL OF MINUTES OF REGULAR PLANNING AND ZONING BOARD MEETING OF December 16th, 2025

Motion: to approve the minutes of the Board's meeting of December 16, 2025. **Moved** by Sarah Ryan, **seconded** by Eric Kenney, **passed 5-0** by unanimous voice-vote.

V. PUBLIC COMMENT

Ms. Thompson: Reading into the record of form 8B. It was regarding Larry Einhauser's vote from the November meeting. Larry Einhauser hereby discloses on November 18th, 2025. That a measure came before my agency, which could inherit to my special private gain or loss. The measure before my agency and the nature of my conflicting interest in the measure is as follows; Contracted as a pool builder or applicant homeowner at 122 14th street.

Mr. Reynolds: Tom Reynolds 112, Ari Al 32080. Tonight, folks... Can you set it for 3 minutes? It's just 3 minutes non-agenda. Thank you. If you folks ever heard of, "Thou shall not bear false witness against thy neighbor." But if you have a bad neighbor, you've got to tell the other neighbors. So, I want to tell you about the bad neighbor. You see right here. It says, "Robinson improvement company, suing St. John's County. Well, who is Robinson's lawyer? The Douglas law firm. The city's contracted law firm is suing you folks. Suing all the other city residents. Suing our neighbors downtown. Suing our other County

residents. It's an absolute disgrace. I brought it to the County's attention. Here's what they did. Nothing. Because they're good with it for some unknown reason. Although it violates the code of ethical conduct, several codes, but the one is the ethical city officials should not engage in outside interests that are not compatible with the impartial and objective performance of his or her duties. But that doesn't matter. You see, but I want to make sure you're aware that seats 3, 4, and 5 on the city commission are up for election. If any one of you decided you want to run to better the city, they desperately need help. I've come to realize, especially C3, the absolute worst elected official in the history of St. Augustine beach elected officials is on Dean George. Now folks, just so you know, it only costs $10 to run for city commission. It pays 500. I want you all to know that I am a low-income senior, but I want to donate to anybody's campaign that runs. I also find that the commission really is a group of might be nice people. I don't know how else to put it, but cowards. I've also given them information on the police department, but to finish up tonight, folks, like I've told you before, I know everybody in the room is smarter than me, but that's the part that I'm troubled by. If I can see these things, how is nobody else seeing these things? And folks, I took all the budget figures, and I gave them to 3 of my best friends. That's Al. And every single one of them came back within 3 years, the city will be in receivership because I wrote over bloated police department. And finally, you have weeks' paid vacation going out there. Thank you.

VI. NEW BUSINESS

A. Election of chairperson and vice-chairperson of the Board, per Section 11.02.02.H of the City's Land Development Regulations (LDRs), the election of officers consisting of a chairperson and vice-chairperson shall take place every year as the first order of business at the regularly scheduled meeting for the month of January.

Ms. Thompson: Every year, the first meeting of the year, election of chair and vice chair. Mr. Kincaid could not be here tonight; however, he did send an email to me, which I provided to you in the packet. He would like to become the chair again if you wish to vote that way.

Motion: To elect Kevin Kincaid as Chairperson. **Moved by** Conner Dowling, **seconded by** Larry Einheuser. **Passed 5-0** by unanimous voice vote.

Motion: To elect Conner Dowling as Vice Chairperson. **Moved by** Sarah Ryan, **seconded by** Eric Kenney. **Passed 5-0** by unanimous voice vote.

B. Application for the removal of a tree 30" or greater to build a new single-family residence at a vacant parcel located at 201 2nd St, parcel number: 169670-0000.

Ms. Thompson: The board, so this application is an application to remove a 31-inch diameter at breast height Live Oak. It's located at 201 Second Street. It is a vacant residential parcel. This is to build a new single-family home. Site plan here. An arborist wrote a letter describing the tree. It's location to the proposed house and regarding the

trees. So, it's hard to see this year's site plan. But I have circled the location of the Oak. It's right here. Fairly close to the proposed plan. The applicant's agent is here today to speak, if you'd like to hear.

Mr. Liddy: Bruce Liddy, 460 Trade Wind Lane. I'm with Sparrow Construction. Our office is 421 Nighthawk Lane. St. Augustine. The survey showed that the house corner was 14 inches from the base of the Live Oak. And just for digging the footer we would intrude on the root base and entire, I think it's Northwest corner of the tree. Putting the site together, putting the footer in.

Mr. Kenney: I just want to make sure this is a 50 by 93 lot.

Mr. Liddy: Correct.

Mr. Kenney: Just no room to keep it. Okay.

Mr. Dowling: Any other questions for the applicant. Good? Okay. Thank you. Boarders, is there any public comment on this item? Anyone from the public that would like to speak on this? All right. Seeing none, we'll move to board comment. I appreciate the Arborist report. With cases like this, I think that was helpful in not only identifying the location issue, but furthermore, just the specifics of that tree. That was helpful for me.

Ms. Ryan: Yeah, I would agree. It's the Arborist report saying it's in fair condition. And on these little lots, it's hard too.

Motion: To approve the application for the removal of a tree 30" or greater to build a new single-family residence at 201 2nd St. parcel number: 169670-0000. **Moved by** Eric Kenney, **seconded by** Sarah Ryan. **Passed 5-0** by unanimous voice vote.

C. Application for the removal of a tree 30" or greater to build a new single-family residence at a vacant parcel located at 304 F St, parcel number: 171620-0050.

Ms. Thompson: This next item is very similar, same issue. They have a 41-inch diameter breast height Live Oak. This one's located at 304 F Street. [Inaudible] It's also in a very similar location, the front area, right here. [Inaudible] This is for a vacant parcel. It's for a new bill. Single family residence. And the applicants are here.

Mr. Kinchetsky: Hi. My name is Greg Kinchetsky, 66 Villa Sovana court, St. John's 32259. And just comment. It's the identical situation as you just heard. We don't have an arborist report, but we have talked to 2 builders that said pilling the foot on the house will damage that tree, the root system. It is on the corner of our lot. And that tree overhangs other neighbor's property. So, I would fear that it would be a safety issue, not just our home but the adjacent homes if that tree was not taken out. We love trees. We're going to keep the trees in the front and any of those Oaks that we can maintain. But that one is an issue for the site plan.

Mr. Dowling: Now, when I was looking at your site plan. It was a question I had about the trees at the front. Obviously, there's maybe some of the palms that are adjacent to your driveway but that's good to hear because the canopy down that street's attractive a big part of the neighborhood.

Mr. Kinchetsky: We moved the driveway to go in between the trees. So, I think that it should be fine.

Motion: To approve the application for the removal of a tree 30" or greater to build a new single-family residence at 304 F St. parcel number: 171620-0050 **Moved by** Victor Sarris, **seconded by** Larry Einheuser. **Passed 5-0** by unanimous voice-vote.

D. First Reading for a proposed Code Change to adjust the street side building setback requirements for oceanfront lots that are 46.5 feet wide or less to have an 8.5-foot street side setback instead of the currently required 12 feet, per Section 6.01.03 of the City of St. Augustine Beach's Land Development Regulations.

Ms. Thompson: So, this agenda item is regarding a proposed code change. As you all know recently there were 2 variance applications that came before you regarding some oceanfront lots. After staff reviewed this, you know it came to our attention that this would be a consistent issue for most oceanfront homeowners. So, the proposed code change is to allow oceanfront lots on lanes and streets that are 46.5 feet or smaller in width to have an 8.5-foot street side setback and the front shall be ocean facing side. So, from about 15th Street all the way down to F Street you have several oceanfront homes that are 46.5-foot width lots or smaller. So, although most of these homes already exist on those properties if there were to be a storm some substantial damage all these homes would have to conform to the 12-foot street side setback. And just from the aerial imagery you can see many of these homes do not currently abide by the 12-foot street side setback. So, this is just a way to make the code benefit those who do have these smaller lots on the oceanfront. The oceanfront is a dead end. Most areas have no parking signs down there so that's why me and Brian work together to change this code and propose it to you. We also added in number 6 on section 6.01.03 we did add a line clarifying that the front and oceanfront lot shall be the eastern property line and clarifying that pools and equipment shall be allowed in the front setback area for oceanfront lots. Historically, this is how it's always been done. We believe that in the past it had been written in our overlay district code which no longer exists. So, we just wanted to make that clarification and put number 6 on there.

Mr. Kenney: Say that again?

Ms. Thompson: So, number 6, so this is the [inaudible] item number 6 which clarifies that the front on oceanfront lots shall be the eastern property line. Pools and equipment shall be allowed in the front setback area for oceanfront lots.

Mr. Kenney: You said at one time it was in your ordinance and then it got taken out?

Ms. Thompson: We believe it was in our overly district ordinance.

Mr. Law: There was a time when we had two overlay districts and this one specifically did have that. That overlay was replaced because at the Commission's request, there was no need to appear in front of an overlay district if you complied with the code. That was the only place it was ever mentioned. So, this is just clarification. Obviously, because of the unique shape of the lots and the way they're buildable, obviously the front would be the ocean, and the rear would be the backside. That's just how it's done. So, this is just simply a clarification to bring back a code from 6 years ago that just clarified it. Because you could not build it if the front was a street. You'd be able to build a one-and-a-half-foot house wide.

Mr. Dowling: My only question, Ms. Thompson, is just the process of this plan's adoption and just to review that for the record. I just want to make sure, just since it's if you include this item under the umbrella that Mr. Schaefer has been gracing our presence with for a few months, it's been consecutive. And so, my only thought is I just want to give the folks that came out to speak on the 2 properties a chance to- if they have an opinion on this to when that would be.

Ms. Thompson: Yeah, so we brought this to the City Commission this month just to see if they would have an interest in us writing up the code change for a proposal. So, if the planning and zoning staff, the building official, if any of the staff see that a code might need to be changed to assist the residents, we'll propose that. So first we went to the Commission to see if they would have any interest in hearing the code. They said, "Go ahead." So, this would be the first reading where you all would give your recommendation or for approval or denial. Then it would go back to the City Commission for their February meeting for a second reading and then to their March meeting for the third and final reading. And if the Commission doesn't like the code at their February meeting, they could just say, "No we're done with this code."

Mr. Dowling: Okay, got you. Thank you.

Ms. Ryan: How many lots does this effect, or you said it's a lot of the oceanfront or 46?

Ms. Thompson: I'm hearing 40, but it is hard to say because from 15th Street down to F Street, all the oceanfront lots, each street or lane has two oceanfront lots. However, over time people have combined lots, re-split them, combined them again chopped them up. Currently this morning we had someone in our office who said that their neighbor is going to tear down a huge house next door to them and they want to buy half of their neighbor's lot. So, it's hard to say, it's in flux. And just like one of the variances applications you saw there was a lot being split.

Ms. Ryan: And I remember during one of the evenings that this had been a setback previously or was that the front setback that you're talking about, but there was discussion that this had been a setback at some point and it was modified.

Ms. Thompson: Over the years the setbacks have been modified repeatedly again.

Mr. Kenney: Was there ever a time that it was at 8 and a half and it got undone to 12?

Ms. Thompson: I don't believe it was 8 and a half exactly. I believe there was a time when it was 7 and a half.

Mr. Law: The overlay districts guided how to develop these specific lots, whether it was a city center or the medium-density overlay, whatever. It told us it didn't address street side setbacks, so it wasn't a consideration. But when that code went away it now fell under the side setback and because of lanes, most lanes provide primary access, it's defined as a street even though it was called a lane. Now in the beginning of time, it wasn't even called a lane, it was an alley. Somewhere the city changed it to a lane. This is simply the 8 and a half foot. I'm sure most of you, if not all of you, have figured it out. The lots are 3 and a half feet narrower, so I took 3 and a half feet from 12 feet. That's why it's an 8 and a half versus a 7 and a half. The Commission did dwell on making it a 7 and a half for simplicity. The Commission did support this overwhelmingly. But yes, the overlay district didn't encapsulate a lot of this and simply by omitting the street side setback it didn't apply. But keep in mind the letter of the intent of the overlay district was every application had to go in front of the Planning and Zoning Board. So, you could just imagine you're... And you were forced to approve of it. It was very similar to the medium density overlay district on the west side of the boulevard and I know some of you were here or some of you had partaken in that where basically you must approve it because it complies with the code. So, it was redundant and a waste of the Planning and Zoning Board's time where they can concentrate on bigger things.

Mr. Sarris: Yeah, just so I understand if you took 46.5 minus the 19.5, are you talking about a 27-foot buildable width? Is that where the challenge lies too? 46.5 width minus the 19.5, accumulation of the setbacks gives us 27.

Mr. Law: I'd have to look at it. But the reason this came about is simply because a lot turned the other way. 50-foot-wide lot has a 15-foot setback, 7 1/2 and 7 1/2. So, these, which are narrower, have a 19 1/2-foot setback. So, the logic of 3 1/2 foot coming off to 8 1/2 was simply just the difference in the width of the lots from 50 foot to 46 1/2.

Mr. Kenney: Yeah, what's that side?

Mr. Law: 7 and a half feet.

Mr. Kenney: Then 8 and a half to the other side, 16 feet.

Mr. Law: Unless the board wants to consider 7 and a half feet on the street side for simplicity. Keep in mind, they're still limited by every other code.

Mr. Sarris: The ISRs are still in play.

Mr. Law: Nothing changes with any of that. We're not proposing any of that. We're not proposing any changes to the city's right of way. This is simply their lot to level the playing field between a 50-foot-wide lot and a 46 and a half, like Ms. Thompson said. And mark my words, there will be a storm one day. And this department will have to rebuild the city. And part of our intent is to not have 50 variances to rebuild the exact same house that was there. Now obviously, as we know, there are some from 40 years ago that might be three feet from the lot line. I can't do everything, but I can set the codes up to be fair.

Mr. Sarris: And Brian, the driving factor was what again?

Mr. Law: The fact that the lot is 3 and a half feet narrower than any other lot in the east of the boulevard in the medium density district. It was simply just a level of playing field. It's very similar to what I did when I reduced the 50 by 93 lot setbacks to 7 and a half from 10.

Ms. Ryan: I don't have an opinion either way. It's just something I want to bring up. And it's what we're looking at with some of these last cases is that these oceanfront lots extend way out. And so...

Mr. Kenney: The mean high tide.

Ms. Ryan: ...they're getting the benefit of a bigger house and ISR in that footprint. And now their ISR is being offset by the dunes and everything, but I think the effect will be a bigger house, whether that's good or bad. I just want to bring it up that you're going to have more square footage.

Mr. Kenney: And 3-foot wider house, what's currently allowed.

Ms. Ryan: So, it's a lot more valuable. I mean, just bringing it up. I don't have an opinion either way.

Mr. Sarris: I'm still trying to visualize the way that you would come into that lot and where you would put your garage and all those things.

Ms. Ryan: Right, the turnaround.

Mr. Sarris: The rear load garage, right on the rear road.

Mr. Dowling: Or side.

Mr. Law: To a rear or side lot. And as far as turning around, single family residences are allowed to turn around in the road. They're the one exception to that rule that affects the city's rights. So, a commercial camp, single families would be able to. But honestly, that's a design issue for the designer.

Ms. Ryan: Well, there is the protection that it has the 46 and a half foot parameters. So, if the lots are combined, it's not like then they can take advantage of those reduced setbacks. And you're pulling into a dead-end alley in theory. Except if there's.

Mr. Dowling: Yeah, it would also apply to the main streets as well. Not just the lanes or the alleys, it would apply to...

Mr. Law: Yes, sir, anything with a 46 and a half foot. If you look at the way we rode, especially number 5 oceanfront lots on lanes and streets. That are 46 and a half feet or smaller and which will have an 8-and-a-half-foot street side setback in the front shall be the ocean facing side.

Mr. Dowling: I have some thoughts, but I do, Mr. Stauffer wants to speak on the matter. I thought we'd let him speak and then we can discuss, unless do you have anything else? I was not trying to kick you out.

Ms. Thompson: Yeah. So not all the lots do have access all the way to the main waterline. There is some oceanfront lots where the city does own the property in front of their homes. So, I just wanted to point out that.

Mr. Stauffer: Michael Stauffer, 1417 Sadler Road, Fernandina Beach, Florida. Sorry, you're seeing me here again four months in a row, but I'm not representing any clients, but I am here to speak about this. Clearly over the last couple of meetings, 3 meetings we've had, I've been advocating that in fairness, all the 600 or so 50 by 92 lots or whatever they are, original platted lots have the benefit of their inner lots, their 7 half foot side yard setbacks on a 50 foot wide lot have a 35 foot building envelope. If it's on a corner, they had a 30 and a half foot building envelope. These were diminished to 27 feet. So, I have argued in the last three months that that was detriment to these lots. So, I think this to me solves that problem, allows them to build the same width. The question, I didn't mean to bark out the answer. There were 20 lanes originally platted. Let's talk about what was platted because it's completely been changed over time. And so, 2 lots at the end of each lane, well, 4 lots on streets and the lanes and everything else. So, it's about 40 lots. Of those, as I think I remember, I told y'all that 13 of those 20 had been closed. So those lots have assumed the alleyway into them. So, in some of those cases, this wouldn't apply. So, some of the interior lots, because they would be more than 46 and a half feet wide. Unlike the other change in the other code thing, it doesn't say the originally platted, it says, if they are 46 and a half foot wide. So somebody with a 50 foot wide lot isn't going to suddenly be able to go claim, "I get an eight and a half foot setback" because it specifically says, "If you're a 50 foot wide lot, you're going to have to comply with the other set, the 12 foot," if I'm reading it correctly, because it only applies if you're 46 and a half. The other thing about the front

yard deal is that your current code says, pools cannot be built in the front yard. So, the clarification on this one that helps for those of us who are designing, technically, the front yard has been on the east side and there've been pools built on the east side of oceanfront houses. So, there's been a certain violation, accepted violation of what your, technically, your land development code says. So that would just clear this up because everybody's going to put their pool on the east side. I know one client of mine that did addition renovation, their pool is on the west side and they like it there. So again, I'm here to support this. I think it helps equity. I know there's been discussion about this, the whole idea of the increased lot coverage. I think we had that conversation. My clients didn't do it. Yes, could they have built a 78-foot-long house? But keep in mind that the DEP dictates our eastern. And really, it's a small percentage of these lots that go to the main high water. Those ones all south, the lettered streets, as Ms. Thompson showed, there's a public on that side. My 2 clients that you've seen recently had about 60 feet, more beyond. It wasn't full all the way to the ocean, 30-acre lot. So, there are unique situations. And like the one lot that I'm looking at now, they own 46 and a half feet, but they got 7 feet of the south end of the lot on D lane. So that lot is actually- but that lot goes all the way to the ocean. But the one right next to it stops, it's only 100-foot-deep lot. So, there are some unique anomalies, and I think that's why this works. If it says, "If you're 46 and a half feet, you get this grace. But if you're 50 feet or 60 feet, you don't get to use the smaller side yard, the street side setback." So, keep that in mind. It's just going to be if you're 46 and a half foot wide. So happy to answer any questions if I know we've been talking about this for a long time.

Mr. Kenney: Currently, the 50-foot lots that are behind it are all 7 and a half feet side setbacks.

Mr. Stauffer: Correct. Or, if they're interior lots. If they're a corner lot, they have a 12-foot side yard setback and a seven-and-a-half-foot interior. But because they're 50 feet wide, they're allowed to have a 30 and a half foot wide building envelope, whereas the oceanfront lots are restricted to 27 feet.

Mr. Sarris: Mike, from just a design standpoint, does the 27 feet limit you more than the 30 feet, the 29 and half?

Mr. Stauffer: It really is big. It sounds silly to say. So, if you just even do a math, if you got a 27-foot-wide house and you do an 8-inch concrete block wall on the first floor, then you have a stair that's 7 or eight feet wide. Then you have another wall. Suddenly, you've only got 14, 15 feet left. You got a four-foot walkway to get by to get to the east and the west end of the house. Now, suddenly you've got little skinny pieces in between. It's very difficult for quality, especially when you're paying a million dollars for an oceanfront lot. I don't mean to bring money into this thing. But if these lots were $150,000 and had no view, wouldn't care a whole lot about it. But it's difficult when you're spending a million dollars on a lot. And another thing to keep, I know we keep talking about hurricanes, but the eighth lane lot that I've been working here with for the variants, that was one parcel had two oceanfront lots and the lot to the back. Somebody bought it, divided it back up into 3 lots and sold the parcel behind and one of the

oceanfront is trying to sell the other one. That's going to happen as much as a hurricane. So, I wouldn't say we're waiting for the big hurricane to have this be effective. It's going to start happening with some of these older homes. I think that home was built in like the 1920s. It covered all 3 lots, was torn down and now it's 3 lots. So, this is 46-and-a-half-foot rule applied to them. But I've also, we talked about it on my one project. You questioned us about, were we abusing the ISR? I mean, I could imagine that there's a way to say that from the Western platted boundary, you get the only part that you can count is 110 feet in depth. Put you on the same lot coverage as you would have from a 50 by 100-foot lot. So, you could then say, "Hey, there's equity. I gave you equity by letting you build a 30-foot-wide house, but you now didn't need to be equitable with everybody else. "It's really restricted by DEP. You know, it really is. Like with those lots, we were only able to use 98 feet, not even 100 feet because of the seaward construction line. Anyway, happy to answer any more questions.

Mr. Kenney: The only difference is if you had a 100-foot lot, you're capped at 100 feet. Then you're going 20 and 20, 50 feet of using.

Mr. Stauffer: Correct, exactly. And the ones that we just saw, those ones that she just showed up that are the lettered lanes, other than that one anomaly lot, those are going to be treated like a 46 and a half foot by 100-foot lot. We're going to have to apply a rear yard, front yard setback that the other one you would have at the DEP dictating the line, which gives you about 5 feet because you don't have a pool setback. Now you're going to have to have a pool setback from a property line of 5 feet. Whereas with DEP, you can push it to the DEP construction line. There's a lot of anomalies in there. It's not a uniform ocean front, for sure. But one thing is uniform, they're 46 and a half feet unless they've glommed on to some other lot or the ones who had the lanes closed. But this is only applying to those who are 46 and a half feet. So, I think that's...

Mr. Kenney: For my own clarification, when you're saying DEP, you're talking about the Coastal Construction Control Line is out there 110 feet. The actual lot line is out there at 110 feet.

Mr. Stauffer: That's what I say. There's very few of these that have a 100-foot lot line. Those ones on the letter streets do, the rest of them had the original platted lots were 46 and a half by 100 feet. Somewhere along history out to the rock revetment that's buried under there that nobody knows that is there right now. Most of these lots, that's where the new line goes to. For some reason, all these property owners have been able to call that part of their property. Then there's some that go to the ocean and then there's those other ones that don't. I lost track of where I was going with your question.

Mr. Kenney: Whether or not it was the Coastal Construction Line.

Mr. Stauffer: So, the Coastal Construction Control Line is really, look at an aerial map. You look at that aerial map, and you see where the houses are built.

Mr. Kenney: What you're saying is none of those come into- that the Coastal Construction Control Line does not come into play on any of these 46 by 100.

Mr. Stauffer: Generally, not, because the line of construction is well established, but we're really going to be working from a 20-foot rear yard setback. So those lots are going to be treated like the same as the 50 by 92-foot alley lot.

Mr. Sarris: And Mike, your point is also that this situation may keep presenting itself as people get into these situations where they're buying this property, tearing it down?

Mr. Stauffer: Exactly right.

Mr. Kenney: Yeah, we voted, how many times now? 4 times, 4 properties or 2 properties, 4 times we voted them down. I mean, we had to vote it down, I think because of the way it was... It fell into the presentation of it. Not that we agreed with what we were voting on. We just were voting on, I think, and I'm not talking for everybody, I'm talking for myself. I think I was voting on, "Hey, it is what it is and we're not here to fix everybody's problems. I do think this is a better method and who knows, you look back in hindsight, maybe this is where we should have started from the beginning."

Mr. Stauffer: Yeah, no, it's harder to do the variance process that we did because most people don't want to grant variances unless there's a true, true hardship. So, you're put in an awkward position at that. If this isn't done, you don't even have to see me anymore.

Mr. Dowling: Thank you, Mr. Stauffer. We'll miss you, if you're not around anymore. Any other public comment on this item before we close with a comment? All right, seeing...

Mr. McGarvey: I've been here before, my name's Jay McGarvey. I've done a little bit of residential development here in St. Augustine Beach.

Mr. Dowling: Address, please.

Mr. McGarvey: 207 San Juan Dr, Ponte Vedra Beach. I will say that 3 feet does make, from a design standpoint, a huge difference in a small, narrow lot. Anyway, Mike Stauffer stole all my thunder. He asked me to come down here and stump for this. Pardon me? First. But I will put a small plug in. If you haven't been to the French Pantry downtown, you really need to go. The food's great and the restaurant is beautiful.

Mr. Dowling: All right, any other public comment on the item? All right; we'll close public comment and go to board comment. My 2 cents for this, for the record, thank you, Brian and Ms. Thompson, for working on this because it was, as Mr. Stauffer graced us with a lot of his presence, it was a hard one to say no to, but in my opinion, it was hard to say yes from thinking of what could happen to this board down the line and what could be presented in front of us. And it was just uniquely [inaudible] for me

personally. So, this change, I would support it as Mr. Law and Ms. Thompson have written it with the proposed setbacks and that the commission has given their thumbsupr initially.

Ms. Ryan: I'd agree with that.

Mr. Kenney: Presenting it this way, I think, fixes problems that we won't have in the future. We don't have to sit here and say, "What's your hardship?" Every single time. It's already figured out for us.

Mr. Dowling: And there's an easier path, like I think Mr. Law mentioned, and Mr. Stauffer, if these lots get divided up and sort of rezoned, it'll be easier, I think, for the board to have sway to say, "Yes or no, you can't build on your existing footprint if you want to split this up. "We have clear guidelines in the code for these lots. Because I could see us, every single one of these lots could have to come in front of us, which would be arduous and unnecessary.

Mr. Sarris: Yeah, and you think from a design standpoint, these guys are going to come in here when they get down and put pen to paper and say, "Crap, a 27 foot doesn't work here, and so I'm going to get a variance." So yeah, it presents itself in both ways.

Ms. Ryan: It will be 27 feet now. It was at 24.

Mr. Kenney: No, it's 27 going to 30.

Mr. Dowling: I think that gives the board a lot to think about when- it just makes these lots equitable to other lots similarly zoned across the city.

Mr. Steinmetz: An ordinance of the city of St. Augustine Beach, Florida relating to land development regulations and review amending Appendix A, Article VI of the city's code of ordinances providing for repeal of ordinances in conflict, providing for severability and providing an effective date.

Motion: First reading to recommend approval for a proposed code change to adjust the street side building setback requirements for oceanfront lots that are 46.5ft wide or less to have an 8.5ft street side setback instead of the currently required 12ft, per Section 6.01.03 of the City of St. Augustine Beach's Land Development Regulations. **Moved by** Conner Dowling, **seconded by** Larry Einheuser. **Passed 5-0** by unanimous voice vote.

VII. OLD BUSINESS

VIII. BOARD COMMENT

There was no board comment.

MINUTES

SUSTAINABILITY & ENVIRONMENTAL PLANNING ADVISORY COMMITTEE MEETING
THURSDAY, MARCH 12, 2026, AT 6:00 P.M.
CITY OF ST. AUGUSTINE BEACH, 2200 A1A South, St. Augustine Beach, FL 32080

I. CALL TO ORDER

Chair Candler called the meeting to order at 6:00 p.m.

II. PLEDGE OF ALLEGIANCE

The Committee recited the Pledge of Allegiance.

III. ROLL CALL

Present: Chair Karen Candler, Vice Chair Todd Grant, and Members Craig Thomson, Sandra Krempasky, and Sarah Kent Seignious.

Alternate Lana Bandy was absent.

Also present: City Clerk Dariana Fitzgerald.

IV. APPROVAL OF MINUTES OF THE FEBRUARY 12, 2026, REGULAR MEETING

Motion: to approve the minutes of February 12, 2026. **Moved by:** Member Krempasky. **Seconded by:** Member Thomson. Motion passed unanimously.

V. PRESENTATION OF REPORTS:

1. Reforestation and Landscaping Projects

   a. Tiny Forest

   The Committee reviewed the progress and performance of the City's first Tiny Forest project, noting strong plant survival rates, growing public interest, and volunteer engagement. Members discussed early maintenance challenges, including weed control, irrigation demands during establishment, fencing, and public perceptions of an unmanicured appearance. Overall, the Committee expressed encouragement that the forest is functioning as intended, demonstrating biodiversity benefits, resilience, and reduced long-term maintenance compared to traditional tree plantings, while acknowledging that aesthetic expectations may take time to align with ecological goals.

   Chair Candler acknowledged a guest to the meeting and invited him to speak.

   Paul Davis, 973 Windward Way, St. Augustine, FL, stated that he had spoken with Dr. Kaczmarsky about the City's Tiny Forest project, was interested in learning more about it, and helping out with any future projects.

The Committee noted that Mr. Davis had helped with taking photographs of the project and thanked him for that contribution. They expressed their willingness to continue working with him on future projects.

Chair Candler noted the comments provided from Public Works [Exhibit A].

Significant discussion focused on Public Works' reservations regarding staff capacity, watering schedules, and long-term maintenance responsibilities. SEPAC members emphasized that the project relies heavily on volunteers rather than Public Works staff, and that drip irrigation and phased establishment reduce ongoing impacts. Members agreed that the advisory role of SEPAC is to evaluate sustainability outcomes and provide recommendations to the City Commission, even when staff concerns remain. The Committee recognized the importance of continued coordination with Public Works while maintaining alignment with the City's reforestation and resilience objectives.

The Committee debated whether to proceed with planning additional tiny forest sites or to delay expansion until the initial forest matures further. Members generally agreed that lessons learned from the first project should inform any future installations, including improved site preparation, clearer perimeter treatments, mulch and clear zones, and proactive community outreach. Several potential future sites were identified and reviewed using maps, with consideration given to visibility, drainage conditions, adjacent land uses, and neighborhood compatibility, including 2nd Avenue between 1st and A Streets, northeast corner of 3rd Street and 2nd Avenue, northwest corners of D Street and 2nd Avenue or D Street and 4th Avenue, and the southwest corner of D Street and 4th Avenue. Smaller or partial installations were discussed as potential alternatives where space or public acceptance may be limited.

Public engagement emerged as a central theme, with members emphasizing the need for outreach letters to nearby residents, clear educational materials explaining the purpose and appearance of a tiny forest, and opportunities for community involvement. The Committee discussed the timing of outreach, generally favoring allowing the existing forest more time to mature so residents can better understand its benefits before evaluating new proposals. Members also noted that while some opposition is based on personal preference for manicured landscapes, many residents have expressed curiosity and support upon learning about the project's goals.

The Committee agreed to continue monitoring the existing tiny forest, document maintenance and survival data over the coming months, and refine site selection and communication strategies before advancing additional projects. The Committee supported preparing responses to Public Works' concerns, maintaining transparency with neighbors, and aligning future efforts with the City's long-term sustainability, biodiversity, and tree-canopy objectives before making formal recommendations to the City Commission.

b. Plaza at Northeast Corner of D Street and A1A Beach Boulevard

The Committee reviewed recent improvements to the plaza, noting that the site appeared well-maintained and visually improved following mulch, cardboard layering, and limited plantings. Members discussed the placement of interpretive signage, agreed on the approved signage amount, and supported moving forward with installation. Ongoing

maintenance expectations were described as minimal. The Committee also discussed the need to designate a clear volunteer or project contact for the site, while recognizing limitations related to Florida public records laws and the use of private email accounts for City-associated projects. Members emphasized the importance of establishing a transparent, City-compliant method for volunteer coordination and communication.

c. Plaza at Northwest Corner of D Street and A1A Beach Boulevard

The Committee discussed maintenance and volunteer coordination needs at the plaza, particularly weed control and experimentation with non-chemical alternatives to herbicides. Members noted that Public Works has explored alternative maintenance products and methods that align with sustainability objectives.

d. 8th Street Ecogarden

The Ecogarden was discussed with a focus on uncertain future use, including potential parking or redevelopment. Members expressed concern that landscaping and sustainability considerations may not be adequately incorporated as planning progresses. SEPAC reaffirmed its role, as outlined in its enabling resolution, to participate early in design and planning rather than after decisions are finalized. The Committee supported formally requesting inclusion in the design review process at an early milestone, such as 30% design completion, should a consultant be engaged. Members emphasized the need to balance functional needs with green infrastructure, aesthetics, and long-term sustainability goals before irreversible site changes occur.

2. Educational Programs

a. Environmentally Friendly Landscaping Recognition

Member Krempasky noted that she had reached out to a property with the questionnaire and was now waiting for them to respond. Members emphasized the importance of positively highlighting residents who implement sustainable practices and suggested acknowledgment through City communication channels, including the City newsletter, and noted that the goal of the program is to encourage broader participation by showcasing successful examples rather than relying solely on regulatory approaches.

b. Environmental Speaker and Film Series

Member Seignious commented that the next film is on May 28 titled *Waste and the Story of Food Waste*, with Sunny Mulford from Epic Cure speaking, which focuses on food waste and landfill methane. The Committee supported broader outreach efforts, including flyers, radio announcements, and coordination with community partners, to expand attendance beyond regular participants. Members agreed that the series remains an effective entry point for public environmental education.

c. Newsletter Topics

The Committee suggested recognizing volunteers by name where appropriate and providing timely information on upcoming programs such as film screenings, ecogarden workdays, and Arbor Day activities.

d. Environmental Education Materials

SEPAC discussed reusing and updating existing educational materials, including flyers and handouts related to composting, tree planting, and sustainable landscaping. Members agreed that materials used successfully in prior years could be adapted as needed rather than recreated from scratch. The importance of clear, accessible information for the general public was emphasized, particularly for outreach events and tabling opportunities.

3. Environmental Planning Projects

The Committee discussed several environmental planning initiatives, with extended focus on tree protection and landscaping regulations. Members reviewed recommendations developed by consultants and subject-matter experts concerning critical root zones, construction impacts, and protection standards for existing trees. The Committee debated whether to adopt external manuals by reference or incorporate specific language directly into the City's Land Development Regulations to improve clarity and enforceability. Consensus emerged around drafting ordinance language that strengthens tree protection standards while remaining practical for small lots and redevelopment contexts, with further refinement needed before forwarding recommendations to the City Commission.

VI. OTHER COMMITTEE MATTERS

City Clerk Fitzgerald reported that preparations for the upcoming Arbor Day event were well underway. Members discussed logistics such as tabling, educational materials, giveaways, and coordination with other planned activities. The event was viewed as an important opportunity to promote environmental education initiatives, distribute outreach materials, and publicize upcoming programs such as the film series and volunteer opportunities. SEPAC members agreed to support staff as needed and assist with outreach and on-site engagement.

VII. ADJOURNMENT

Motion: to Adjourn. **Moved by** Member Thomson. **Seconded by** Vice Chair Grant. Motion passed unanimously.

Chair Candler adjourned the meeting at 8:07 p.m.

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Karen Candler, Chair

ATTEST

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Dariana Fitzgerald, City Clerk

COMMISSION REPORT

April 2026

TO: MAYOR/COMMISSIONERS

FROM: DANIEL P. CARSWELL, CHIEF OF POLICE

DEPARTMENT STATISTICS – March 24, 2026-April 20,2026

CALLS FOR SERVICE – 1341

OFFENSE REPORTS - 31

CITATIONS ISSUED - 37

LOCAL ORDINANCE CITATIONS - 33

DUI - 2

TRAFFIC WARNINGS - 130

TRESSPASS WARNINGS - 14

ARRESTS – Arrests Total – 11

Arrests - 9

Warrant Affidavits - 2

Juvenile Civil Citations - 0

ANIMAL COMPLAINTS -

- St. Johns County Animal Control handled _**4**_ complaints in St. Augustine Beach area

MONTHLY ACTIVITIES –

April 7, 2026: Blood Drive

April 9, 2026: Job Fair

April 17, 2026: Storytime at the Library

GRANT PROJECTS	GRANT TYPE	GRANT AMOUNT	GRANT EXP DATE	PROJECT STAGE	STATUS
Adaptation Plan	FDEP 25PLN24	$70,000	03/31/27	Draft AP Report	04/20: Consultant incorporating comments into final report. 04/10: Received Task 3 Deliverable Acceptance Letter from FDEP. 04/07: Request for Reimb. #2 prep underway. 04/06: Sent qrtrly rpt to FDEP.
Magnolia Dunes/ Atlantic Oaks Circle Drainage Improvements	FDEP LPA0387	$1,200,000 (~$1,003,863 for Construction)	06/30/26	Atlantic Oaks Ph 1 Construction & Magnolia Dunes Phase 1 Construction	04/20: Mag Dns Ph 1 tracer wire continuity test pass, relocate northern terminal pull box to em pump out location, plan for substantial completion walk thru following well casing repair. On-site mtg with TB Landmark and H2O Systems to discuss well casing repair. 04/17: MD Ph 1 S-2 Manhole install. 04/16: MD Ph 1 6-inch force main pipe pressure test passed. Core into existing inlet structure for 12" HP pipe and S-2 for 6" HDPE pipe and 2" pipe/conduit. 04/15: MD Ph 1 Force main Pressure Test set up. Atlantic Oaks Ph 1 water test on asphalt shows drainage impvmt. 04/14: Palmettos removed at 42 Mag Dns Circle to prep for well casing repair. 04/13: MD Ph 1 - expose irrigation heads for 27 Mag Dns Cir. AO ph 1 asphalt mods complete. 04/10: MD Ph 1 Air Release Valve(s) tapping sleeves installed along Ewing St and behind 42 MD Cir. 04/09: MD Ph 1 Emergency Pump out standpipe installed. AO Ph 1 inlet aprons complete. Fence reinstalled at F St and creek. 04/07: MD Ph 1 Rain Day. AO Ph 1: Contractor forming and



pouring inlet aprons. 04/06: MD Ph 1 - Installed 6" FM by open trench along Mag Dunes Circle to Em PO riser. Remaining materials scheduled for pick up from Ferguson. AO Ph 1: Sent invoice to SJCUD for Type B crossings. 04/06: Sent Qrtrly Rpt to FDEP. 04/03: AO Ph 1 Substantial Completion Walk thru certification & punch list sent. 04/02: AP Ph 1 Substantial Completion walk thru. 04/02: Some materials delivered. 04/01: MD Ph 1 Drill #3 complete. 03/24: MD Ph 1 Drill #2 complete. 03/23: MD Ph 1 Drill #1 complete. Pvt irrigation well impacted. AO Ph 1: 5th & F repair complete. 03/18: Mag Dunes Ph 1 Contractor Eqpmt mobilized.

GRANT PROJECTS	GRANT TYPE	GRANT AMOUNT	GRANT EXP DATE	PROJECT STAGE	STATUS
SAB Stormwater System Resiliency (Eqpmt)	2025-26 Leg Appr L0344	$955,000	09/2030	Equipment Procurement	04/20: Await grapple truck arrival. All other equipment received. 04/01: Qrtrly Rpt sent to FDEP. 03/10: POs approved for skid steer, mini excavator, 4" pump and grapple truck.
Oceanside Circle Roadway and Drainage Improvements	FDEP 25RCP08 L0108	$1,500,000	09/30/27	Design/Perm	04/22: 30% design plan review Town Hall public mtg. 04/17: Received Deliverable Acceptance Letter from FDEP for Task 1 SLIP Study. Delivered 30% revised plan review comments to consultant. 04/06: Received executed grant agreement amendment 1 from FDEP. Created budget resolution for May meeting. Quarterly report sent to FDEP. 03/31: Field visit with Jones Edmunds to walk project route and discuss desired design. Need additional survey. 03/27: Plan markups sent to consultant. 03/26: Progress meeting, on-site meeting scheduled for 03/31. 03/20: 30% plans received.
St. Aug (FDOT) Ponds 400, 500 and Associated Infrastructure Improvements	LegApp/ FDEP L0109	$1,500,000	12/2031	Scoping/Des/Perm	04/06: Sent quarterly report to FDEP. Rehabilitate Linda Mar/Versaggi pump station and no increase in flow to FDOT's system.

PROPOSED LEGISLATIVE APPROPRIATIONS/ CONGRESSIONAL EARMARK	FUNDING	ESTIMATED AMOUNT	STATUS
Mickler Blvd (16th Street to 11th Street; A Street to 11th Street) to Mizell ICW Outfall (discharge canal, weir, berm)	Congressional Earmark/CPF/EPA	$1M (Federal 20% local match)	03/02: Call with Congressman Rutherford's office indicated an EPA representative will reach out to City Manager with next steps for 2026 award agreement to fund design/permitting of Mickler N&S and Mizell primary and secondary (East to Fiddler's Pt) Outfalls. $800,000 w/ 20% match ($1M total)
Mizell Outfall, S Bank W of Fiddler's Pt. Dr.	2026-27 Legislative Action Plan & FY 2027 CPF (W of Fiddler's Pt Dr)	$1,035,000 (State: 25% Federal: 20% local match)	03/11: provided letters of support to Congressman Rutherford's office. 03/04: Provided FY27 CPF request to Congressman Rutherford's office for project construction only funding. 01/2026: Requested FY26-27 state legislative appropriations funding for design/perm/constr.
Mickler Outfall North, 16th to 11th, W Bank	2026-27 Legislative Action Plan (State Only)	$1,104,000 (State 25% local match	03/02: Call with Congressman Rutherford's office indicated an EPA representative will reach out to City Manager with next steps for 2026 award agreement to fund design/permitting of Mickler N&S and Mizell primary and secondary (E to Fiddler's Pt) Outfalls. 01/2026: Requested FY26-27 state legislative appropriations funding for des/perm/constr.
Mickler Outfall South, A St to 11th, W Bank and Driveways	2026-27 Legislative Action Plan (State Only)	$2,139,000 (State 5% local match)	03/02: Call with Congressman Rutherford's office indicated an EPA representative will reach out to City Manager with next steps for 2026 award agreement to fund design/permitting of Mickler N&S and Mizell primary and secondary (E to Fiddler's Pt) Outfalls. 01/2026: Requested FY26-27 state legislative appropriations funding for des/perm/constr.
11th St Canal from Mickler Blvd to Lake Anhinga	TBD NEW Project	$10M	03/12: One of many projects identified in the draft Adaptation Plan report. See list at end of this document.

NON-GRANT PROJECTS	CONTRACT EXP. DATE	PROJECT STAGE	COMPLETION	STATUS
Citywide Pavement Management	09/30/26	Post-Construction	FY26	04/16: Remaining items: touch up C St (hotmix on C street near 2nd), asphalt on MH covers and striping at Sea Grove Main. 04/13: Contractor making corrections this week. 04/09: Met on-site with contractor to review areas for correction.
100 Block of 4th Street	NA	Parcel Owner Feedback / Commission agenda item	NA	04/16: Received conditional yes from last remaining parcel owner. Yes votes 67%. 04/07: Received Yes email from one of remaining parcel owners. 04/07: CC mtg agenda item last PM. Commission directed staff to reach out to parcel owners who have not responded.
Mizell SWTF Discharge Canal Bulkhead O&M	TBD	Planning	TBD	04/20: South bulkhead rpcmt from Fiddler's Pt Dr to W terminus planned. See legislative appropriations section.
Lakeshore Drive Roadway and Drainage Improvements	10/31/25	Project Closeout	01/2026	03/25: Sod and C&G accepted for service, received close out docs. Project complete.
8th St Lot SW -- Parking	08/2026	Des/Perm	09/30/26	04/13: Sent 30% plan review comments to consultant
5th Ave Clean & CCTV	01/21/2026	Construction	09/30/26	04/21: Continue clean and TV from C to D and D to E. 04/17: Clean and TV from C to D then D to E. 04/13: cleaning and TV from B to A then B to C. 04/06: No work this week due to rain chance. 03/31: Clean and TV started. Cleaning continued thru Friday 04/03. 03/30: Flow thru plug installed. 03/23: 5th & F Repair complete

SITE PLAN REVIEW/BLDG DEPT COORDINATION	STATUS
A1A and F St Motel	04/20: Close to construction completion
812 A1A Beach Blvd (Condos East of Fiesta Falls)	04/20: Await next submittal.
8 Ocean Trace Road	04/20: No progress.

MISC PROJECTS	STATUS
NPDES Program	04/13: DSands preparing annual report for review. 12/17: Annual Report due January 26 (internal deadline) for final year of Cycle 4.
NPDES Erosion and Sedimentation Control Ordinance 05-08/Chap 7	12/20/25: See new NPDES permit requirement for proposed revision to Code of Ordinances. Include also NPDES inspection fee. Coordinate with DSands to provide revision and with Max to for agenda item to adopt penalty $$$ amount for non-compliance.
Ocean Hammock Park Management Plan Revision	04/17: Email from SSalamy, FDEP. City is expected to submit updated materials as soon as revisions are complete and ready for review.
Linda Mar Subdivision Stormwater System	03/11: Received draft amended FDEP grant agmt for Linda Mar pump station rehabilitation. 01/26: Rehab Linda Mar pump station. No increase in flow to FDOT system. Requested quotes from contractor and FDEP grant agmt amendment. 12/17: Coordinate with Oceanside Circle (L0108) and need to Clean/CCTV entire system.
Citywide Traffic Calming Program Update	03/31: Received draft final deliverables from consultant.
26 Ocean Pines Drive	02/13: Coordinating with contractor to help define roadway drainage impvmts w/consultant assist. 12/11: Topo provided. 10/28: Alliant survey collected field data for topo along roadway.
11th St & A1A Sidewalk Mod	04/20: FDOT project funding (from 4 lane to SR 312) earmarked for FY2027
SUNTrail	04/20: Some CSAB residents expressing opposition. 03/02: Commission meeting presentation by SJC. 02/26: SJCPW and Hanson held public meeting/open house at Anastasia Branch library 02/24: 60% plan review comments sent to SJCPW.
STAR Circulator	04/20: Update from COSA at May CC mtg.
9th Lane	04/20: Paver and curb installation pending.

FUTURE FY PROJECTS	PROJECT YEAR(S)	STATUS
8th & 9th St & Atlantic Oaks Ph 2 Drainage Impvmts	TBD - $500K	Bid ready
Magnolia Dunes pump station	TBD	Bid Ready
Citywide Pavement Management	FY27-35	~$300k/yr
Stormwater Utility Drainage Maintenance	FY27-35	~$200k/yr
Adaptation Plan Projects	FY27-35	Draft report under review. See project list below.

DRAFT Prioritized Adaptation Plan Projects by Asset Class

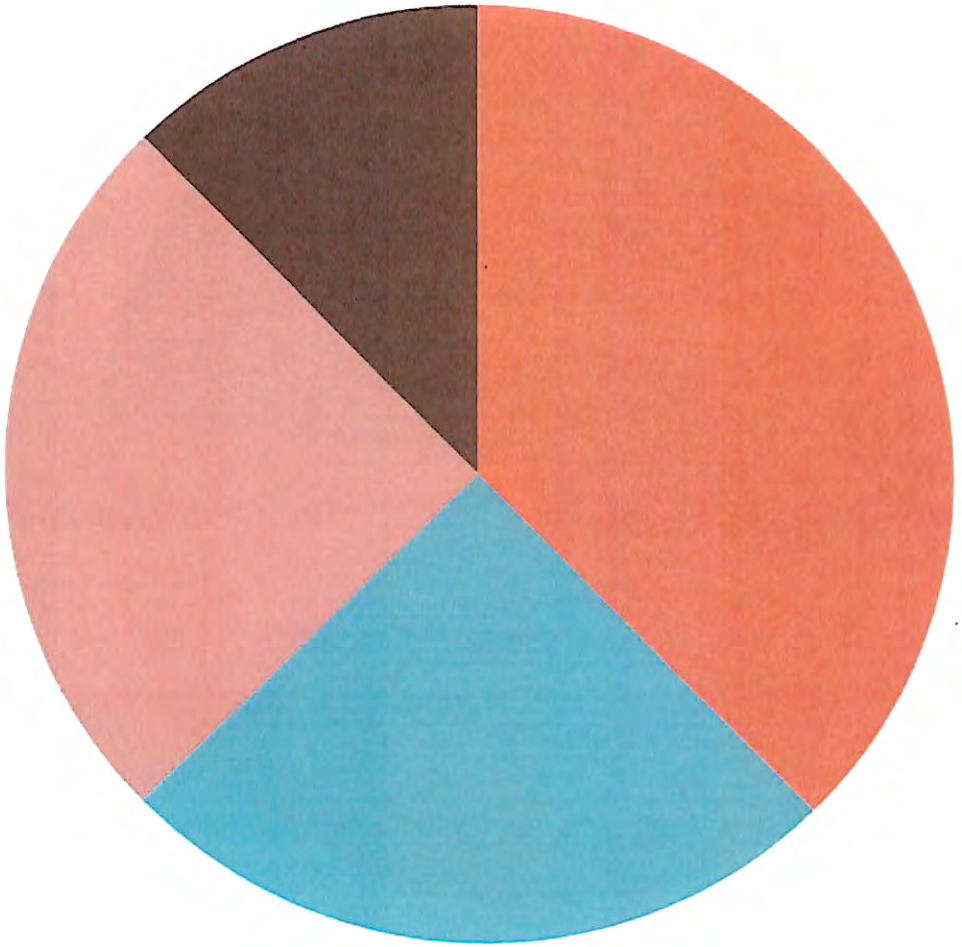
Asset Class	Adaptation Project	Priority	Estimated Cost ($ Millions)
Transportation and Evacuation Routes	CR A1A and Pope Road Drainage Improvements	Near-Term	0.6
	Oceanside Circle/Linda Mar Subdivision Drainage Improvements	Near-Term	1.5
	Magnolia Dunes and Atlantic Oaks Drainage Improvements	Near-Term	1.2
	Drainage Improvements on 8th and 9th Streets	Near-Term	0.25
	FDOT Ponds 400, 500, and Associated Infrastructure Improvements	Near-Term	1.5
Critical Infrastructure	Purchase of a Portable Pump to Reduce Flooding Impacts	Completed	0.035
	Mizell Pond Outfall Ditch Stabilization	Near-Term	4.6 – 6.0
	11th Street Outfall System Improvements from Mickler Boulevard to Lake Anhinga	Near-Term	7.3 – 9.5
	11th Street Outfall System Improvements from Mickler Boulevard to 2nd Avenue	Near-Term	1.6 – 2.1
	Mickler Boulevard Outfall System Improvements	Near-Term	9.7 – 12.6
	2nd Avenue South of A Street Flow Diversion to Mickler Boulevard Ditch	Mid-Term	1.7 – 2.8
	Pope Road Culvert Improvements	Mid-Term	0.2 – 0.25
Critical and Emergency Facilities	None Identified at This Time	N/A	N/A
Natural, Cultural, and Historical	Old City Hall	Mid-Term	TBD

Note: N/A = Not Applicable.

Engineering Inspection Type	Totals (03/17/26 – 04/20/26)
Stormwater – Lot Grading	6
Stormwater – Silt Fence	3 (AO, MD, 9th Ln)
Waste Control	0

Grant Projects

As of: April 20, 2026



In Progress: 3

- SAB Stormwater System Resiliency - Equipment
- NFTPO UPWP Traffic Calming Program Update
- Vulnerability Assessment - Adaptation Plan

Design & Permitting: 2

- FDOT Pond 400/500
- Oceanside Circle Roadway and Drainage Improvements

Construction: 1

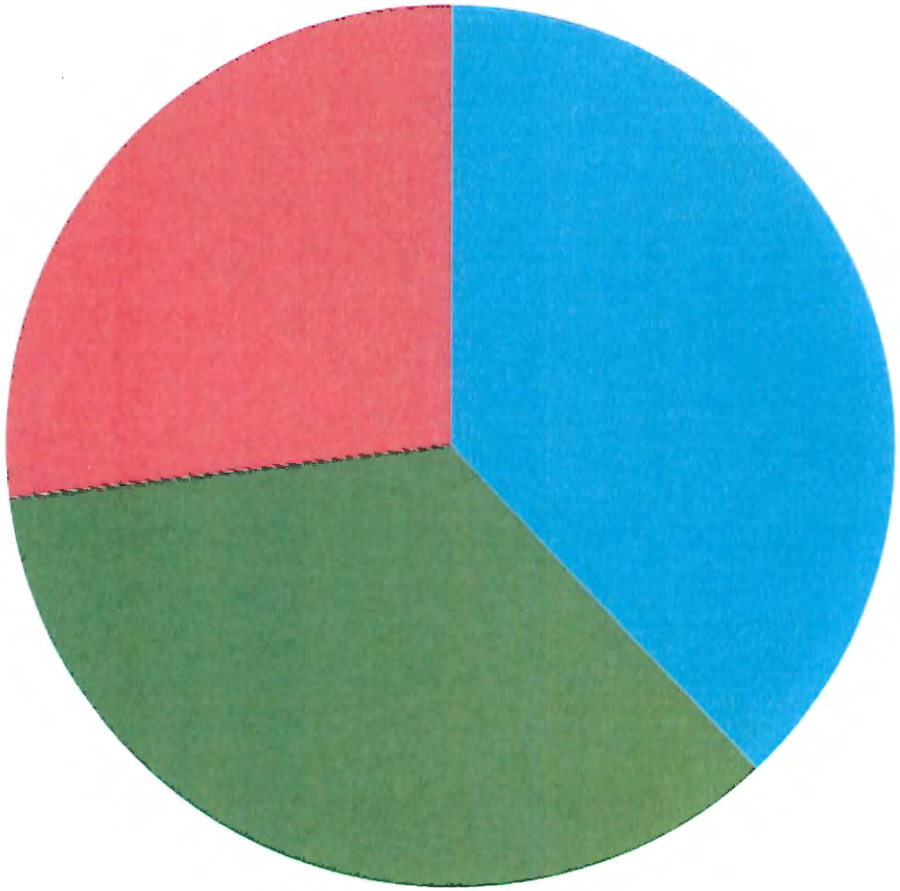
- Magnolia Dunes: Phase I

Close Out: 1

- Atlantic Oaks Phase I

Non-Grant Projects

As Of: April 20, 2026



In Progress: 3

- Linda Mar Pump Station Rehab - (proposed as part of the Oceanside Cir grant)
- 5th Ave Clean/Camera/Lining
- 5th Ave Drainage Pipe Repair

Close Out 1:

- Lake Shore Drive

Design & Permitting: 2

- 100 Block of 4th Street ("4th Street - WEST")
- 8th Street Parking - Southwest

M E M O R A N D U M

TO: MAX ROYLE, CITY MANAGER

FROM: PATTY DOUYLLIEZ, FINANCE DIRECTOR

SUBJECT: MONTHLY REPORT

DATE: 4/13/2026

Finance

The city has received 67% of the budgeted revenue and processed 49% of the budgeted expenditures for the year. To date the city has received an estimated $5.1 million of the budgeted $5.4 million in Ad Valorem taxes. The current year appears to be on track with projects moving forward according to budget. The Finance Department is also in the process of setting up the budget files for Fiscal Year 2027 to begin the budgeting process over the next few weeks.

Communications and Events

https://www.staugbch.com/events/page/city-events

The city will be hosting ***Art & Bark in the Park*** in Lakeside Park on May 3rd from 11am – 4pm. We will have live music, food, and artists set up in the park. Hope to see you there!



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Holly Southworth

April 22, 2026

City of St. Augustine Beach
ATTN: Max Royle
2200 A1A S
St. Augustine Beach, Florida 32080

RE: Monthly legal update from City Attorney

Please see the following update on legal matters pending in St. Johns County involving the City of St. Augustine Beach with a brief description of each.

1. *City of Saint Augustine Beach v. Debra Johnson*

Case Number	2023 CA 290
Case Type	Code enforcement lien foreclosure
Party	Plaintiff
Status	Bankruptcy filed; foreclosure sale cancelled, and case stayed.
Other notes	See related *George Pezanowski v. Debra Johnson* 2024 CA 1164 (homestead foreclosure by private lender on same property at issue). City is a party as judgment creditor.

2. *James Alexander v. City of Saint Augustine Beach*

Case Number	2021 CA 957
Case Type	Constitutional challenge to ordinance
Party	Defendant
Status	Stay of proceedings since May 17, 2023
Other notes	None.

Sincerely,

/s/ John Steinmetz
John Steinmetz, Esq.